

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before The Honorable Doris Johnson Hines
Administrative Law Judge**

In The Matter Of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**RESPONDENTS' MOTION *IN LIMINE* NO. 3: TO PRECLUDE SAMSUNG
FROM PRESENTING UNTIMELY EVIDENCE AND ARGUMENT OF SEA'S
PURPORTED AUTHORITY TO PRACTICE THE ASSERTED PATENTS**

GROUND RULE 5.1 CERTIFICATION

Pursuant to Ground Rule 5.1, Oura states that it made reasonable, good-faith efforts to resolve the matter with Samsung prior to filing the Motion. Samsung has indicated that it opposes this motion and agrees that the parties are at an impasse.

I. INTRODUCTION

Respondents Ouraring Inc. and Oura Health Oy (“Oura” or “Respondents”) respectfully move to preclude Complainants Samsung Electronics Co., Ltd. (“SEC”) and Samsung Electronics America, Inc. (“SEA”) (together, “Samsung” or “Complainants”) from presenting new testimony or argument relating to any alleged authorization by SEA to practice the Asserted Patents. Samsung has the burden to prove there is a qualifying economic domestic industry, which requires investments by an entity that has rights to practice the Asserted Patents. But Samsung represented throughout discovery that only certain named licensees and SEC had rights to the Asserted Patents. This changed in its prehearing brief, when it for the first time acknowledged Oura’s longstanding challenge to SEA’s authority and stated that SEA has rights to the Asserted Patents by counsel’s *ipse dixit*. Samsung’s new position is untimely and contradicted by the evidence and representations provided during discovery. Oura respectfully requests that Samsung be precluded from making this argument or eliciting previously undisclosed testimony from witnesses about this issue at the hearing.

II. BACKGROUND

Samsung contends that “SEC is one of the largest providers by volume of wearables and smartphones in the world” and “is involved in the development and manufacture of the DI Products.” CPreHB at 328 (EDIS ID 891086). But Samsung relies on investments made by SEC’s wholly owned U.S subsidiary SEA to support its economic domestic industry (“EDI”) contentions. *See id.* at 289-90, 292. “SEA is the Samsung entity that sells Samsung products in the United States.” CPreHB at 289.

On December 15, 2025, Samsung filed its complaint in this investigation. Compl. (EDIS ID 866474). It disclosed that SEC has full ownership rights to the Asserted Patents and identified

the following licensees to the Asserted Patents: [REDACTED]

[REDACTED]. Compl. ¶¶ 5, 18, Ex. 10 (EDIS ATTCH ID 2463877). A later amendment to the complaint made no change to this disclosure. EDIS ID 867832.

On February 17, 2026, Samsung agreed to produce all “relevant, responsive, and non-privileged documents” that “concern[] any rights in the Asserted Patents.” Ex. A, Rog No. 28.

On March 16, 2026, Samsung served its initial EDI contentions, which do not claim any authority by SEA to practice the Asserted Patents. Ex. B. On that day, Oura contended that Samsung lacked “standing” because “Samsung has failed to provide complete responses to Oura’s requests seeking licensing and assignment information....” Ex. C, No. 10 at 342.

On March 30, 2026, Oura submitted a discovery dispute letter to the ALJ, saying that Samsung had not fully responded to interrogatory responses that “would allow Oura to fairly probe Samsung’s standing.” Ex. D at 3. Samsung agreed to provide a fulsome supplement. Ex. E at 2-3.

On April 10, 2026, Samsung responded to Oura’s Interrogatory No. 13 seeking identification of “any ownership interest” by incorporating the Complaint and its Exhibit 10, the assignment records (JX-0075 – JX-0078), Asserted Patents and file histories (JX-0001 – JX-0008), and licenses to the parties identified in Exhibit 10 to the Complaint (RX-0371C – RX-0377C). Ex. F at 49. [REDACTED]

[REDACTED] Ex. G.

On April 15, Oura served Interrogatory No. 21: “For each Asserted Patent, identify all entities that have any rights to use that patent, the scope and terms of those rights, and all documents conferring or memorializing those rights.” Ex. H. On April 27, Samsung responded, alleging Rog No. 21 was “duplicative” of Oura’s Rog No. 13 and identified the same narrative that

“Samsung was the original applicant and assignee to the Asserted Patents and owns all rights to the same,” citing the same documents cited in response to Oura’s Rog No. 13, in addition to assignment sheets (SAMS382-0029006-SAMS382-0029019, attached here as Exs. J-L). Ex. I at 13-14. Samsung has not supplemented this response.

On May 13, Oura challenged Samsung’s “Standing/Failure to State Domestic Industry Claim” because “Samsung has [REDACTED]” and, “[w]hen specifically asked through interrogatories and meet and confers to describe all rights to the Asserted Patents, Samsung [REDACTED].” Ex. C, No. 10 at 346, No. 9 at 228 (incorporating this response by reference).

On May 27 (Korea Standard Time), Oura deposed Samsung’s corporate representative on licensing to the Asserted Patents, Minsoo Kim. Ex. M (M. Kim) 20:12-22; Ex. N (Samsung 30(b)(6) Responses). Mr. Kim is legal counsel to SEC’s licensing team. Ex. M (M. Kim) 11:21-12:5. He spent “[a] whole day” preparing for his deposition. *Id.* 15:23-16:5. He verified that Exhibit 10 to the Complaint (which was Exhibit 7 to his deposition) contained the [REDACTED] [REDACTED] to the Asserted Patents. Ex. M (M. Kim) 25:3-23. He testified that SEC has all ownership interests in the Asserted Patents, but he understood [REDACTED] [REDACTED] *Id.* 68:6-69:6. He was asked, “Based on that understanding, how were those rights to SEA granted?” *Id.* 69:8-9. He answered, “I do not know. That’s a legal question, I believe. All I can say is SEA is a wholly-owned subsidiary of SEC.” *Id.* 69:12-15.

On May 27, Samsung served its final (amended) EDI contentions (originally served on May 13), which rely on investments made by SEA. Ex. O. Samsung did not claim that SEA had any rights to any of the Asserted Patents. *See id.* On May 27, Oura served its final EDI contentions. Ex. C, No. 9. Oura explained that SEA has “Unproven Authority” to the Asserted Patents,

reiterating that “Samsung was unable to identify any [REDACTED]
[REDACTED].” *Id.* at 231.

On August 10, Samsung served its prehearing statement, representing it would not bring Mr. Minsoo Kim to the upcoming evidentiary hearing. EDIS ID 891057.

On the same day, Samsung served its prehearing brief setting out its EDI contentions for the hearing. EDIS ID 891086. For the first time, Samsung acknowledged Oura’s contention that Samsung had not proven SEA’s rights to practice the patents, stating in a footnote, without any reference to record evidence, that “[REDACTED]” CPreHB at 289 n.14. In Oura’s prehearing brief, served the same day, Oura challenged Samsung’s unexplained reliance on SEA’s investments. RPreHB at 232-34 (EDIS ID 891067).

III. ARGUMENT

A. Only Authorized Entities Can Make Domestic Investments

Investments related to the Asserted Patents count toward the economic prong of the domestic industry only if made by entities authorized to do work associated with those patents. *See Certain Optical Disc Drives, Components Thereof, & Prods. Containing Same*, Inv. No. 337-TA-897, Comm’n Order at 4-5 (Sep. 29, 2014) (EDIS ID 541391). Many complainants go to great lengths to identify investments by licensees to their patents and perform third-party discovery to gather sufficient information about those investments. *See, e.g., Certain Video Capable Electronic Devices, Including Computers, Streaming Devices, Televisions, Cameras & Components & Modules Thereof*, Inv. No. 337-TA-1379, ID at 78, 98-99 (Jan. 29, 2025) (EDIS ID 842988).

Here, SEA is a complainant, but it is not the patent holder. As set out above, Samsung made crystal clear that SEC is the patent holder and is the only entity with ownership rights. *See* Ex. I at 13-14. And Samsung specifically identified all entities that are licensed to those patents. *See id.* [REDACTED] Compl. Ex. 10 (EDIS ATTCH ID 2463877). In sum, SEA

is neither the patent holder [REDACTED], and there is no record evidence that SEA has rights to make investments related to the Asserted Patents. As such, its investments cannot be counted toward EDI.

For the first time in this Investigation, Samsung contends in its prehearing brief that SEA does have that authority. CPreHB at 289 n.14. But Samsung does not provide any supporting evidence or indicate what evidence it will offer at the hearing, nor does Samsung explain the source of [REDACTED]. Samsung cites only *Certain Products Containing Interactive Program Guide and Parental Control Technology*, Inv. No. 337-TA-845, Final Initial Determination at 276 (June 7, 2013) (EDIS ID 512554-5). But page 276 discusses standing, not authority for EDI investments. *Id.*

While investments by wholly owned subsidiaries may be recognized for purposes of EDI, the complainant must still present sufficient *evidence* of authorization vis-à-vis the Asserted Patents. *See, e.g., Certain Electrical Connectors & Cages, Components Thereof, & Products Containing the Same*, Inv. No. 337-TA-1241, ID at 354-55 (Mar. 11, 2022) (EDIS ID 767918) (“[T]here is undisputed evidence in the record that FCI is authorized to practice Amphenol’s patents”). Samsung never presented such evidence in discovery and thus waived its reliance on this theory. G.R. 11.2.

Samsung has not carried its burden to show that SEA is authorized to practice the Asserted Patents. [REDACTED]

[REDACTED] Ex. M (M. Kim) 69:12-15. When asked during discovery to list every entity that has any rights to the Asserted Patents, [REDACTED]

[REDACTED]. Ex. I at 13-14. Samsung’s counsel represented that it produced [REDACTED] Ex. G. It

is undisputed that [REDACTED]. Further, Samsung has consistently treated SEC's subsidiaries as wholly separate entities, including a request that Oura in a separate investigation issue subpoenas (rather than deposition notices) to employees of another wholly owned subsidiary Samsung Research America. *See* Ex. P, 10:1-6, 11:5-12:4. Samsung's insistence on corporate formalities suggests that if [REDACTED]

B. Samsung's Position that SEA Has Authority Is Untimely

"A party cannot rely on contentions in its pre-hearing brief that have not been timely disclosed during discovery." *Certain Audio Processing Hardware, Software, and Prods. Containing the Same*, Inv. No. 337-TA-1026, Order No. 58 at 6 (Aug. 15, 2017) (EDIS ID 622876) (further collecting cases). Samsung's position that SEA [REDACTED] was disclosed for the first time in its prehearing brief. CPreHB at 289 n.14. This contention, untimely made, should be struck from Samsung's case.

Throughout discovery, Samsung did not disclose SEA as an entity that had any rights to the Asserted Patents. *See, e.g.*, Ex. F at 49; Ex. I at 13-14. Accordingly, it was reasonable for Oura to understand that only SEC and the [REDACTED] to the complaint had rights to the Asserted Patents. It would have been unreasonable for Oura to assume that Samsung, which has the burden to prove qualifying EDI investments, had but did not [REDACTED] had authority to practice the Asserted Patents. CMC Tr. (May 4, 2026) at 20:12-15 (ALJ referring to Samsung's counsel, "I don't need to remind you, this is your burden. This is your issue. So...providing as fulsome a record as possible seems to be to your benefit.").¹ Samsung's

¹ Twice during fact discovery, Oura was forced to raise issues with the ALJ regarding Samsung's failure to provide fulsome evidence regarding the economic domestic industry prong despite the fact that EDI was Samsung's burden to carry. Oura first submitted a dispute letter on March 30, which it withdrew after Samsung committed to curing its deficiencies. Ex. D. But Samsung made

background description that SEA is a subsidiary of SEC is not disclosure of Samsung's theory or evidence, and it does not follow that merely because SEA is an SEC subsidiary it has authority to practice the Asserted Patents. *See Poly-Am., L.P. v. GSE Lining Tech., Inc.*, 383 F.3d 1303, 1311 (Fed. Cir. 2004) (parties "may not enjoy the advantages of their separate corporate structure and, at the same time, avoid the consequential limitations of that structure"); *United States v. Bennett*, 621 F.3d 1131, 1136-38 (9th Cir. 2010) (describing "bedrock" law of corporate separateness); Ex. R at 178 (contracting for third-party's patent rights to be granted "to Samsung *and* its Subsidiaries," without assumption that its subsidiaries would inherently have those rights)).

Samsung has long been on notice that rights to the Asserted Patents was an important issue in this Investigation. As set out above, Oura specifically sought complete licensing information from Samsung as early as March and continued to press Samsung for complete information about entities that had rights to the Asserted Patents, including through an additional and targeted interrogatory (Ex. H, No. 21). Oura also set out in its contentions its theory for why Samsung had not proven that SEA had the requisite authority to make EDI investments. Ex. C, Nos. 9-10. And Samsung recognized this in its prehearing brief, writing "Contrary to Oura's assertion, SEA is authorized to practice the patents in the U.S." CPreHB at 289 n.14.

Samsung did nothing to clarify its position in response to Oura's described challenge to Samsung's reliance on SEA's EDI investments. At no point in discovery did Samsung contend that it could rely on SEA's investments related to the Asserted Patents because SEA was granted authority by SEC to practice them. Dropping a footnote (without any explanation, no less) is too little, too late, and should be precluded as waived.

only small supplements, leaving important issues of EDI bare. Then on April 29, 2026, Oura again submitted a dispute letter to reraise issues with the ALJ regarding Samsung's failures. Ex. Q.

Even if Samsung's brief's disclosure of its position had been timely, it is too conclusory to preserve the argument. *See, e.g., Certain Video Processing Devices & Components Thereof*, Inv. No. 337-TA-1343, ID at 32 (May 29, 2024) (EDIS ID 823778) (rejecting an "argument that consists of one conclusory sentence" as insufficient under a G.R. with similar language to G.R. 11.2); *Certain Electrical Connectors and Cages, Components Thereof, & Products Containing the Same*, Inv. No. 337-TA-1241, ID at 177 (Mar. 11, 2022) (EDIS ID 767918) (the party without the burden of proof "should not be placed in a position where they have to guess at [the] contentions"). Samsung's single sentence does not put Oura on notice of Samsung's argument for why or how SEA is allegedly authorized and the scope of that authorization, such as what its alleged rights to "practice" includes. Samsung cites no evidence or explanation, nor does Samsung preview whether it expects to offer any supportive testimony or from whom. Samsung's brief disclosure does not allow Oura to prepare a rebuttal during the evidentiary hearing.

C. Samsung's Untimely Argument Prejudices Oura

Oura is prejudiced by Samsung's untimely and conclusory disclosure of its position. Oura cannot fairly prepare for the hearing. And Samsung's discovery positions representing that SEA had no agreement to the Asserted Patents stymied Oura's challenge to Samsung's standing. This challenge was supported at least by the Commission's finding in a separate investigation that SEC's implied license to a subsidiary's patent may have jeopardized a standing claim. *Certain Active Matrix Organic Light-Emitting Diode Display Panels & Modules for Mobile Devices, & Components Thereof*, 337-TA-1351, Comm'n Op. at 14 (May 15, 2024) (EDIS ID 821542). Because SEC has other U.S.-based subsidiaries, including non-complainant SRA, Oura disclosed its intention to investigate any rights to the Asserted Patents, even if not memorialized in a written agreement. Ex. C, No. 10. [REDACTED] foreclosed any further investigation by Oura, to the benefit of Samsung. It would be prejudicial for Samsung

[REDACTED]

to now backfill its claims about which entities have authority to the patents because it is too late for Oura to investigate the scope of that authority granted to Samsung's subsidiaries.

Moreover, any evidence Samsung could offer to support its position is foreclosed by its discovery disclosures, which it did not seek to supplement. *See, e.g.*, Rule 210.27(f)(1) (requiring supplementation of interrogatory responses). In those responses, Samsung specifically identified all entities that have rights, which did not include SEA. Exs. F, I. Oura had no reason to accuse Samsung of misrepresenting the facts, especially given Samsung's own interest in proving authorization. And Samsung's corporate witness on rights to the Asserted Patents, legal counsel in SEC's licensing group, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Ex. M (M. Kim) 68:24-70:6 (emphasis added). Accordingly, if Samsung is allowed to argue that SEA has rights to the Asserted Patents at the hearing, the only evidence it could provide is evidence that directly contradicts its verified discovery responses and corporate testimony that such rights were unknown to Samsung.

Oura gave Samsung multiple opportunities over multiple months to make and support the claim that is Samsung's burden to prove. Samsung never did. Even its prehearing brief does not disclose what it intends to argue, or how. Accordingly, Samsung should be precluded from eliciting any testimony or making any argument that SEA is authorized to practice the Asserted Patents.

V. CONCLUSION

For the foregoing reasons, Oura respectfully requests that Samsung be precluded from presenting arguments, submitting evidence, or eliciting any testimony concerning SEA's alleged authority to practice the Asserted Patents.

Dated: August 24, 2026

Respectfully submitted,

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Exhibit A

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**COMPLAINANTS SAMSUNG ELECTRONICS CO., LTD. AND SAMSUNG
ELECTRONICS AMERICA, INC.’S RESPONSES TO RESPONDENTS OURARING
INC. AND OURA HEALTH OY’S FIRST SET OF REQUESTS FOR PRODUCTION OF
DOCUMENTS AND THINGS (NOS. 1-88)**

Pursuant to the United States International Trade Commission’s Rules of Practice and Procedure (“Commission Rules”) 19 C.F.R. §§ 210.27 and 210.30, Complainants Samsung Electronics Co., Ltd. (“SEC”) and Samsung Electronics America, Inc. (“SEA”) (collectively, “Samsung” or “Complainants”) hereby respond to Respondents Ouraring Inc. and Oura Health Oy’s (collectively, “Oura” or “Respondents”) First Set of Requests for Production (Nos. 1-88) as follows:

GENERAL OBJECTIONS

The following general objections are expressly incorporated into each of the specific responses set forth below:

1. Samsung objects to each and every definition, instruction, and request to the extent that it purports to impose any requirements or discovery obligations upon Samsung other than those set forth in the Commission’s rules or the ALJ’s Ground Rules (Order No. 2).
2. Samsung objects to each and every definition, instruction, and request to the extent that it seeks information protected by the attorney-client privilege, the work product doctrine, or any other applicable privilege, rule, or duty of confidentiality that precludes or limits the disclosures of such information (hereinafter referred to as “Privileges”). Samsung will not disclose

involving the licensing of patents or other intellectual property to or from other persons or businesses, including documents sufficient to show the individuals at Samsung involved in licensing of the Asserted Patents.

RESPONSE TO REQUEST FOR PRODUCTION NO. 27:

In addition to its General Objections, Samsung objects to this request as vague, unclear, and ambiguous, including without limitation its use of the phrases “[d]ocuments sufficient to show,” and “customs or practices.” Samsung further objects to this request as overly broad, unduly burdensome, beyond the scope of Commission Rule 210.27(b), not relevant to the claims or defenses of any party to this Investigation, not proportional to the needs of the Investigation, and/or not reasonably calculated to lead to the discovery of admissible evidence because, among other things, it seeks information regarding “[d]ocuments sufficient to show,” “Samsung’s policies, procedures, customs or practices involving the licensing of patents or other intellectual property to or from other persons or businesses.” The request has not been narrowly tailored to seek discovery regarding the issues in this Investigation. Samsung further objects to this request because information about “Samsung’s policies, procedures, customs or practices involving the licensing of patents or other intellectual property to or from other persons or businesses” is not relevant to any party’s claims or defenses and is not proportional to the needs of the case. Samsung further objects to this request to the extent that it seeks information that, if disclosed, would result in the violation of any legal or contractual obligation to third parties, including confidentiality obligations.

REQUEST FOR PRODUCTION NO. 28:

All documents concerning any rights in the Asserted Patents and/or any Related Patents or Applications including without limitation, licenses, assignments, agreements of forbearance,

agreements of non-assertion, covenants not to sue, other agreements regarding the Asserted Patents and/or any Related Patents or Applications.

RESPONSE TO REQUEST FOR PRODUCTION NO. 28:

In addition to its General Objections, Samsung objects to this request as vague, unclear, and ambiguous, including without limitation its use of the phrase “[a]ll documents concerning any rights.” Samsung further objects to this request as overly broad, unduly burdensome, beyond the scope of Commission Rule 210.27(b), not relevant to the claims or defenses of any party to this Investigation, not proportional to the needs of the Investigation, and/or not reasonably calculated to lead to the discovery of admissible evidence because, among other things, it seeks information regarding “[a]ll documents concerning,” “licenses, assignments, agreements of forbearance, agreements of non-assertion, covenants not to sue, other agreements regarding the Asserted Patents and/or any Related Patents or Applications.” The request has not been narrowly tailored to seek discovery regarding the issues in this Investigation. Samsung further objects to this request to the extent that it seeks information that, if disclosed, would result in the violation of any legal or contractual obligation to third parties, including confidentiality obligations.

Subject to its General and Specific Objections, Samsung responds as follows: Samsung will produce relevant, responsive, and non-privileged documents in its possession, custody, or control at the time and in the manner contemplated by the ALJ’s Ground Rules and the Procedural Schedule that govern this Investigation.

REQUEST FOR PRODUCTION NO. 29:

All documents and communications related to licenses or efforts to license any of the Asserted Patents and/or any Related Patents or Applications (or any package or portfolio of assets including any of the Asserted Patents and/or any Related Patents or Applications), including, but

not limited to, all license agreements and all documents relating to past license negotiations (whether or not those negotiations ultimately resulted in a license).

RESPONSE TO REQUEST FOR PRODUCTION NO. 29:

In addition to its General Objections, Samsung objects to this request as vague, unclear, and ambiguous, including without limitation its use of the phrases “[a]ll documents and communications,” “efforts to license,” and “any package or portfolio of assets.” Samsung further objects to this request as overly broad, unduly burdensome, beyond the scope of Commission Rule 210.27(b), not relevant to the claims or defenses of any party to this Investigation, not proportional to the needs of the Investigation, and/or not reasonably calculated to lead to the discovery of admissible evidence because, among other things, it seeks information regarding “[a]ll documents and communications,” “related to licenses or efforts to license,” “including, but not limited to, all license agreements and all documents relating to past license negotiations (whether or not those negotiations ultimately resulted in a license).” The request has not been narrowly tailored to seek discovery regarding the issues in this Investigation. Samsung further objects to this request because information about “all license agreements and all documents relating to past license negotiations (whether or not those negotiations ultimately resulted in a license)” is not relevant to any party’s claims or defenses and is not proportional to the needs of the case. Samsung further objects to this request to the extent that it seeks information that, if disclosed, would result in the violation of any legal or contractual obligation to third parties, including confidentiality obligations. Samsung further objects to this request as unduly burdensome and harassing, because it asks for information that is duplicative of those requested in Request No. 28. Samsung further objects to this request to the extent it seeks information protected by attorney-client privilege, the work product doctrine, the common interest privilege or any other applicable privilege or immunity doctrines.

CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on February 17, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

<i>Counsel for Respondents Ouraring Inc. and Oura Health Oy</i> Jasjit S. Vidwan James A. Fussell, III Saqib J. Siddiqui Bryan C. Nese MAYER BROWN LLP 199 K. Street NW Washington, DC 20006 Tel: 202-263-5282 Robert G. Pluta Nicholas H. Ciulla MAYER BROWN LLP 71 S. Wacker Drive Chicago, IL 60606 Tel: 312-782-0600 Email: Oura-ITC@mayerbrown.com	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☐ Via Electronic Filing (EDIS) ☒ Via Electronic Mail
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/s/ Brian A. Treggs

Brian A. Treggs
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Exhibit B

REDACTED IN ENTIRETY

Exhibit C

REDACTED IN ENTIRETY

Exhibit D

March 30, 2026

The Honorable Doris Johnson Hines
Administrative Law Judge
U.S. International Trade Commission
500 E Street, SW
Washington, DC 20435
JohnsonHines1468@usitc.gov

Re: *Certain Wearable Devices*, Inv. No. 337-1478 – G.R. 5.6.1 Discovery Dispute

Dear Honorable Judge Johnson Hines:

Respondents Ouraring Inc. and Oura Health Oy (“Oura”) seek to raise Samsung’s discovery deficiencies at the upcoming case management conference on April 2, 2026. Oura has complied with Ground Rule 5.1 by meeting and conferring with Samsung. Ex. A (correspondence). Oura informed Samsung of multiple, prejudicial deficiencies in its discovery in February, and despite a subsequent conference and proposed compromises, Samsung has still failed to 1) produce documents it agreed were relevant and 2) provide complete interrogatory responses. From 3:00 to nearly 4:00 ET on March 30, 2026, Oura and Samsung met and conferred about the issues set out below and were able to resolve some but not most of the issues.

I. Samsung’s Deficient Document Production

In February, Oura and Samsung met and conferred over deficiencies in Samsung’s discovery efforts. Ex. B (letter memorializing teleconference). Samsung agreed to make reasonable efforts to produce responsive documents. Samsung made a few subsequent, but deficient, document productions. No, or very few, documents were produced for the categories set out below, and on March 30, Samsung criticized Oura for requiring the production of documents when the discovery deadline was still weeks away, despite these RFPs being served two months ago on January 20 and Oura receiving no response from Samsung after the February 27 conference until Oura indicated it would submit a dispute letter. *See* Ex. A.

1) Depositions and hearing transcripts from prior litigation involving relevant subject matter as this Investigation, including but not limited to those relating to allegations that Samsung has an economic domestic industry in Inv. Nos. 337-TA-1299, -1376, -1379, and 1380. Samsung did not dispute that these were relevant but has not produced them. On March 30, Samsung indicated it would produce these materials relating to economic domestic industry but could not confirm which materials, which cases, or when those materials would be produced. Samsung indicated that these materials may include third-party information but did not explain whose or why Samsung’s transcripts would have third-party information. Samsung indicated that it would

produce the non-public versions of these materials, but these would have most material information redacted and consequently are insufficient substitutes.

2) Third-party correspondence concerning the Asserted or Related Patents. Samsung agreed to look into these documents but did not say whether this correspondence existed or could be produced without prejudicial burden.

3) Documents relating to Samsung's investments in the DI Products. Samsung contends an economic domestic industry based on a wide range of activities and investments but has failed to provide any underlying documents except for three spreadsheets prepared for litigation (one of which may be from a *different* litigation pursuant to a "subpoena") that appear to present investment data without explanatory descriptions. When asked about the spreadsheets produced before the February call, Samsung's counsel was unable to confirm the source of these spreadsheets or any details including, for example, whether they included investments in foreign activities or were limited to the DI Products. Nor has Samsung provided an explanation of these documents in its economic domestic industry contentions. Others are not dated or do not include the months leading up to the complaint filing date. On March 30, Samsung said it was not required to provide context for these documents. Accordingly, Oura cannot know whether Samsung has produced complete records of its investments, including those that could support Oura's contention that Samsung does not have a qualifying economic domestic industry as compared to its foreign investments or investments in other products. Among the documents Samsung has not produced are facility leases, equipment invoices, depreciation models, employment charts that show compensation and headcount allocations, and any contracts, including with vendors and carriers that Samsung appears to rely on. And because Samsung did not identify with any specificity the relevant facilities, equipment, and vendors in its economic domestic industry contentions, Oura cannot know whether Samsung's summary spreadsheets provide complete information.

Finally, Oura asked for confirmation from Samsung that it had produced all licenses to the Asserted Patents, including internal licenses, and all responsive technical documents, excluding source code, which is governed by a different process. On March 30, Samsung said it would confirm that all licenses have been produced and that Samsung has no internal licenses, in addition to confirming that all technical documents responsive to Oura's RFPs have been produced, but Samsung did not do so before the deadline for this letter. Oura respectfully requests that Samsung be compelled to produce all such documents identified above or confirm in writing that no such documents exist.

II. Samsung's Incomplete Interrogatory Responses

On February 27, 2026, Samsung agreed to investigate the following interrogatory responses—or consider the proposed compromises—but did not supplement them. Ex. C (Samsung Interrogatory Responses, March 16, 2026).

Interrogatory No. 7 seeks a description of Samsung's competitive analyses on wearable products and those that Samsung contends practice the Asserted Patents. Samsung provided no substantive response and did not identify documents pursuant to Rule 210.29(c). On March 30, Samsung represented it would confirm in writing a complete supplement by April 10 but has not yet so confirmed.

Interrogatory No. 8 seeks a description of Samsung's investigation into (alleged) infringement by the Accused Products. Samsung said it had no non-privileged responsive *documents*. On the February 27 teleconference, Samsung agreed it would investigate the circumstances and, if it learned there was no responsive *information*, state so clearly. On March 30, Samsung represented it would confirm in writing a complete supplement by April 10 but has not yet so confirmed.

Interrogatory No. 9 seeks identification of Samsung's relevant personnel. Samsung just named two people without description or explanation. As a compromise, and at Samsung's suggestion, Oura offered to limit this interrogatory to just the five persons most knowledgeable about each of Samsung's DI Products. On March 30, Samsung represented it would confirm in writing a complete supplement by April 10 but has not yet so confirmed.

Interrogatory No. 12 seeks a description of communications with the named inventors of the Asserted Patents, which Oura narrowed as a compromise to those discussions or agreements relating to the Asserted Patents or DI Products. On March 30, Samsung represented it would confirm in writing a complete supplement by April 10 but has not yet so confirmed.

In addition, despite the passing of burden contention deadline on March 16, Samsung has failed to provide complete answers to the following interrogatories:

Interrogatory No. 3 seeks a description of the circumstances of the inventions claimed in the Asserted Patents. Samsung merely incorporated by reference the Complaint, the Asserted Patents, and their public file histories. These filings fall far short of the descriptions requested. On the March 30 call, Samsung's counsel indicated that these documents should be sufficient and was unable to confirm whether a supplement was planned.

Interrogatory No. 13 seeks a description of the ownership interests in the Asserted Patents. Samsung's response only incorporated by reference the Complaint, Exhibit 10 to the Complaint that lists licensees without any explanation, and produced assignment and file history records. Although these arguably relate the ownership interests, they do not provide a full description of the ownership interests that would allow Oura to fairly probe Samsung's standing. On March 30, Samsung represented it would confirm in writing a complete supplement by April 10 but has not yet so confirmed.

Oura respectfully requests that the ALJ compel Samsung to provide supplements to these interrogatories or clearly state that Samsung has no responsive information.

Sincerely,
/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*

Certain Smart Wearable Devices

Inv. No.: 337-TA-1478

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing document was served upon the following as indicated below on March 30, 2026:

The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436 JohnsonHines1468@usitc.gov	Via Box and email: JohnsonHines1468@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, DC 20006 Telephone: (202) 383-5300 Facsimile: (202) 383-5414	Via email: OMM-SAMSUNG-OURA@OMM.COM

/s/ Jasjit S. Vidwan
Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*

Exhibit A

Julia Haines

From: Schroeder, Nancy L. <nschroeder@omm.com>
Sent: Monday, March 30, 2026 1:03 PM
To: Julia Haines; #OMM-SAMSUNG-OURA; Trainor, D. Sean
Cc: WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS; Robert Pluta
Subject: Re: 337-TA-1478 - Samsung Discovery Deficiencies

Julia - I can meet and confer after the Rahman deposition is finished today.

From: Julia Haines <JHaines@mayerbrown.com>
Sent: Monday, March 30, 2026 9:06:58 AM
To: Schroeder, Nancy L. <nschroeder@omm.com>; #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>; Trainor, D. Sean <dstrainor@omm.com>
Cc: WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>; Robert Pluta <RPluta@mayerbrown.com>
Subject: RE: 337-TA-1478 - Samsung Discovery Deficiencies

Nancy,

Thank you for your confirmation below, but Oura requested a meet and confer on these topics. Please let us know your availability today before 4pm ET.

Best,
Julia

Julia Haines

T +1 202 263 3279
mayerbrown.com

From: Schroeder, Nancy L. <nschroeder@omm.com>
Sent: Monday, March 30, 2026 6:40 AM
To: Julia Haines <JHaines@mayerbrown.com>; #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>; Trainor, D. Sean <dstrainor@omm.com>
Cc: WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>; Robert Pluta <RPluta@mayerbrown.com>
Subject: Re: 337-TA-1478 - Samsung Discovery Deficiencies

Julia - we will provide our response today.

Thank you,
Nancy

From: Julia Haines <JHaines@mayerbrown.com>
Sent: Friday, March 27, 2026 5:56:21 PM
To: #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>; Trainor, D. Sean <dstrainor@omm.com>

PUBLIC VERSION

Cc: WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>; Robert Pluta <RPluta@mayerbrown.com>

Subject: RE: 337-TA-1478 - Samsung Discovery Deficiencies

Counsel,

We have not received a response on the below and intend to submit a discovery dispute letter Monday. Please provide your availability to meet and confer before 1p ET on Monday.

Best,
Julia

Julia Haines

T +1 202 263 3279
mayerbrown.com

From: Julia Haines <JHaines@mayerbrown.com>

Sent: Wednesday, March 25, 2026 8:11 PM

To: #OMM-SAMSUNG-OURA <omm-samsung-oura@omm.com>; Trainor, D. Sean <dstrainor@omm.com>

Cc: WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>; Robert Pluta <RPluta@mayerbrown.com>

Subject: 337-TA-1478 - Samsung Discovery Deficiencies

Counsel,

Samsung's discovery contains substantial deficiencies that prejudice Oura. These include several deficiencies about which the parties previously met and conferred. See Mar. 2, 2026 Letter Pluta to Trainor. Please provide your availability for a meet and confer this Friday or next Monday morning. If we cannot resolve the following discovery disputes, we intend to file a letter with the ALJ in advance of the April 2 case management conference.

1. Interrogatory No. 3
 - a. Samsung has provided no response other than incorporating by reference the Complaint, Asserted Patents, and their file histories. These materials do not (and cannot alone) fully respond to the interrogatory. Oura disagrees that this is a contention interrogatory, but even if characterized as such, the time to respond has passed.
2. Interrogatory No. 5
 - a. Samsung did not identify any factual bases for imposing a bond and did not propose a bond amount. For example, Samsung did not present its contention for the Galaxy ring's ASP or provide any information regarding what it could possibly contend constitutes a reasonable royalty.
3. Interrogatory No. 7
 - a. Samsung agreed to supplement this interrogatory response during the February 27 teleconference but has not done so. To date, Samsung has provided no substantive response to this Interrogatory.
4. Interrogatory No. 8
 - a. Samsung agreed to supplement this interrogatory response during the February 27 teleconference but has not done so.
5. Interrogatory No. 9
 - a. Samsung agreed to supplement this interrogatory response during the February 27 teleconference but has not done so.
6. Interrogatory No. 12

PUBLIC VERSION

- a. In response to Samsung's complaint regarding scope of this Interrogatory during the February 27 teleconference, Oura proposed a compromise in its March 2 letter. Samsung has not responded to that compromise and has not supplemented its response to this interrogatory.
- 7. Interrogatory No. 13
 - a. Samsung's response to this Interrogatory is incomplete. The documents incorporated by reference and/or cited by Samsung do not even purport to fully describe ownership interests in each Asserted Patent.
- 8. Samsung's Document Production
 - a. Samsung has not produced deposition and hearing transcripts from other cases and Investigations relating to its U.S. investments, including but not limited to Inv. Nos. -1299, 1376, 1379, and 1380. The parties discussed this during the February 27 teleconference.
 - b. Samsung has not produced any third-party correspondence concerning the Asserted Patents or related patents. The parties discussed this during the February 27 teleconference.
 - c. Samsung has not produced any underlying documents supporting its economic domestic industry claims. The parties discussed this during the February 27 teleconference. These documents include but are not limited to carrier agreements, leases, equipment costs, depreciation and other accounting models, and vendor contracts. Samsung has not even identified, e.g., the addresses of the facilities on which it is relying for domestic industry.
 - d. Samsung has not produced complete sales data for all models/sizes of DI Products and products on which it is relying to assert a bond through 2025.
 - e. We appreciate that Samsung produced several licenses for the Asserted Patents. Please confirm that all licenses, including licenses within Samsung and/or to other Samsung-affiliated entities, have been produced.
 - f. Please confirm whether Samsung plans to make additional productions of technical documents (excluding source code) or whether Samsung's technical production is complete.

Best,
Julia

Julia Haines

Associate

Mayer Brown LLP

1999 K St. NW

Washington, DC 20006

T +1 202 263 3279

jhaines@mayerbrown.com

mayerbrown.com

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Certain Wearable Devices

Inv. No.: 337-TA-1478

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **DISCOVERY DISPUTE LETTER TO JUDGE JOHNSON HINES** was served upon the following as indicated below on March 30, 2026:

The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: dstrainor@omm.com

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*

Exhibit E

O'Melveny & Myers LLP
1625 Eye Street, NW
Washington, DC 20006-4061

T: +1 202 383 5300
F: +1 202 383 5414
omm.com

March 31, 2026

D. Sean Trainor
D: +1 202 383 5114
dstrainor@omm.com

VIA E-MAIL

The Honorable Doris Johnson Hines
Administrative Law Judge
U.S. International Trade Commission
500 E Street, S.W.
Washington, DC 20436

Re: Certain Wearable Devices, ITC Inv. No. 337-TA-1478

Dear Honorable Judge Johnson Hines,

Pursuant to Ground Rule 5.6.1 (Order No. 2), I write on behalf of Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. (collectively, "Samsung") to respond to the March 30, 2026, Discovery Dispute Letter filed by Respondents Ouraring Inc. and Oura Health Oy ("Oura"). In its letter, Oura raises issues relating to certain of Samsung's interrogatory responses and Samsung's production of certain categories of documents. As explained below, Samsung represented on the parties' March 30, 2026 meet and confer that it would provide written status updates and supplemental responses by April 10, 2026. Oura demanded that Samsung provide its representations in writing, which Samsung did on the evening of March 30, 2026. See Exhibit 1.

I. Samsung Has Substantially Met Its Production Obligations to Date and Is Continuing to Search for Responsive Documents in Good Faith

To be clear, Samsung has produced almost 5,000 documents (over 28,000 pages), including a substantial amount of its technical documents and source code relating to the Domestic Industry products and other internal documents relating to its claims and defenses. These documents were collected and produced after a reasonable search in response to Oura's discovery requests. Despite Samsung's productions to date, which Oura mischaracterizes as "deficient," Oura continues to demand additional documents—which are, at most, only tangentially relevant—on its own, unilateral timeline. Nevertheless, as indicated below, Samsung has agreed to provide a written status update to Oura as to the following categories of documents by April 10, 2026:

1. Depositions and hearing transcripts relating to the Domestic Industry Products and the subject matter of this Investigation: Samsung is in the process of collecting relevant, responsive transcripts from the identified investigations and intends to produce those in its possession, custody, and control in a timely manner once third

party confidential information (i.e., CBI belonging to the other parties to the investigations) issues have been addressed. Samsung agrees to provide Oura a status update by April 10, 2026.

2. Third party correspondence concerning the Asserted Patents: Samsung does not believe it has any responsive, non-privileged communications to produce, but nonetheless agrees to provide written confirmation by April 10, 2026.
3. Documents relating to Samsung's economic domestic industry: Samsung has produced detailed financials and related investment information in support of its economic domestic industry contentions. Samsung has also served detailed economic domestic industry contentions citing to and analyzing those documents. As Samsung noted during the parties' March 30, 2026 meet and confer, it is unclear what "context" Oura is demanding beyond the information it already has. Nevertheless, Samsung has agreed that, to the extent it identifies additional information or obtains updated financial information, it will timely produce that information in accordance with the applicable Commission and Ground Rules. Oura's demands for additional, redundant documents, including "facility leases, equipment invoices, depreciation models, employment charts that show compensation and headcount allocations, and any contracts, including with vendors and carriers," are overly broad, unreasonably burdensome, and request duplicative information. As stated above, Samsung has already produced the relevant requested financial and investment information. Oura's suggestion that the investment information Samsung has produced is somehow improper is entirely baseless. The documents contain summaries of data maintained in the ordinary course of business by Samsung and counsel for Samsung so stated during the parties' prior meet and confer.
4. Licenses relating to the Asserted Patents: As Samsung stated during the parties' March 30, 2026 meet and confer and in writing later that day, Samsung has produced all licenses relating to the Asserted Patents. To the extent additional licenses come to light as discovery proceeds, Samsung will make timely productions accordingly.
5. Technical documents: As Samsung stated during the parties' March 30, 2026 meet and confer and in writing later that day, Samsung has produced a substantial number of technical documents relating to the Domestic Industry Products in its possession, custody, and control that were located after a reasonable search. As provided by the applicable rules, Samsung reserves the right to make additional productions of technical documents as discovery is ongoing.

II. Samsung Has Agreed to Supplement the Requested Interrogatory Responses by April 10, 2026

As noted in Oura's discovery letter, Samsung agreed to provide written confirmation that it would supplement its responses to Interrogatory Nos. 3, 7-9, 12, and 13 following the

parties March 30 meet and confer. Samsung did so that evening, confirming that it would supplement those interrogatory responses by April 10, 2026. See Exhibit 1.

Additionally, Samsung notes there are still six weeks remaining until the close of fact discovery, and, as laid out above, the parties have not yet reached any impasse. Accordingly, given Samsung's representations to Oura and the ALJ, Samsung believes there are no discovery disputes necessary for the ALJ to address at the upcoming Case Management Conference.

Respectfully submitted,

/s/ D. Sean Trainor

D. Sean Trainor

O'MELVENY & MYERS LLP

1625 EYE STREET, NW

WASHINGTON, DC 20006

*Counsel for Complainants Samsung
Electronics Co., Ltd. and Samsung Electronics
America, Inc.*

CERTIFICATE OF SERVICE**Investigation No. 337-TA-1478**

The undersigned certifies that on March 31, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, D.C. 20436 Email: JohnsonHines1478@usitc.gov	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☐ Via Electronic Filing (EDIS) ☒ Via Electronic Mail
<i>Counsel for Respondents Ouraring Inc. and Oura Health Oy</i> Jasjit S. Vidwan James A. Fussell, III Saqib J. Siddiqui Bryan C. Nese MAYER BROWN LLP 199 K. Street NW Washington, DC 20006 Tel: 202-263-5282 Robert G. Pluta Nicholas H. Ciulla MAYER BROWN LLP 71 S. Wacker Drive Chicago, IL 60606 Tel: 312-782-0600 Email: Our-ITC@mayerbrown.com	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☐ Via Electronic Filing (EDIS) ☒ Via Electronic Mail

/s/ Brian A. Treggs

Brian A. Treggs
Senior IPT Specialist
O'Melveny & Myers LLP
400 South Hope Street
Los Angeles, CA 90071

Exhibit F

REDACTED IN ENTIRETY

Exhibit G

Julia Haines

From: Schroeder, Nancy L. <nschroeder@omm.com>
Sent: Friday, April 10, 2026 5:37 PM
To: WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS
Cc: #OMM-SAMSUNG-OURA
Subject: 337-TA-1478 - Samsung discovery update

Counsel,

I write to provide the previously-agreed discovery status update for Samsung.

- Supplemental responses to Interrogatory Nos. 3, 7-9, 12, 13:
 - Samsung will be serving today supplemental responses to Interrogatory Nos. 3, 7-9, 12, and 13, representing Samsung's current status in discovery. Where Samsung's efforts are ongoing, Samsung will endeavor to provide further supplementation in a timely fashion.
- Deposition and hearing transcripts relating to economic domestic industry from prior ITC investigations:
 - Samsung is collecting and preparing to produce deposition transcripts and associated exhibits relating to Samsung's economic domestic industry from the following prior ITC investigations, to the extent they exist (i.e., Samsung did not offer hearing testimony at any scheduled hearing relating to the identified investigations) and are in Samsung's possession, custody, or control. Samsung will produce said documents by April 24.
 - 337-TA-1299
 - 337-TA-1375, 337-TA-1376, 337-TA-1387
 - 337-TA-1379, 337-TA-1380
 - 337-TA-1448
- Third party correspondence regarding the asserted patents:
 - After a reasonable search, Samsung confirms it has no non-privileged communications with third parties regarding the asserted patents. To the extent Samsung locates any responsive, non-privileged communications, it will produce those in due course.
- Documents relating to Samsung's economic domestic industry:
 - As stated in Samsung's March 31 letter to the ALJ, Samsung has produced the financial and investment information relating to its economic DI claims. Discovery is ongoing and the deadline for final burden contentions has not yet passed; as such, Samsung reserves the right to produce additional information as it is located or becomes available.
- Licenses relating to the asserted patents:
 - After a reasonable search, **Samsung confirms it has no additional licenses or agreements relating to the asserted patents.** To the extent Samsung locates any additional responsive, non-privileged information, it will produce those in due course.
- Additional technical documents:
 - As stated in Samsung's March 31 letter to the ALJ, Samsung has produced a substantial number of technical documents relating to the Domestic Industry Products. Discovery is ongoing and the deadline for final burden contentions has not yet passed; as such, Samsung reserves the right to produce additional information as it is located or becomes available.

Thank you,
Nancy

O'Melveny

Nancy Lynn Schroeder

Counsel

she, her, hers

nschroeder@omm.com

O: +1-213-430-8266

M: +1-774-571-8677

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400 South Hope Street, 18th Floor
Los Angeles, CA 90071
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Exhibit H

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**RESPONDENTS' SECOND SET OF
INTERROGATORIES TO COMPLAINANTS**

Pursuant to Commission Rules 210.27 and 210.29, 19 C.F.R. §§ 210.27 and 210.29, Respondents Ouraring Inc. and Oura Health Oy (collectively, “Oura” or “Respondents”) serve the following set of interrogatories on Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. (collectively, “Complainants” or “Samsung”) in the above-captioned investigation. Oura requests, pursuant to Commission Rule 210.29(b)(2) that Complainants serve a copy of their answers within 10 days after service hereof or at such other time as agreed to by the parties.

DEFINITIONS

The following definitions shall apply to these interrogatories.

1. The “’359 Patent” means U.S. Patent No. 10,642,359.
2. The “’677 Patent” means U.S. Patent No. 10,945,677.
3. The “’675 Patent” means U.S. Patent No. 10,231,675.
4. The “’789 Patent” means U.S. Patent No. 10,978,789.
5. The “Asserted Patents” means the ’359, ’677, ’675, and ’789 Patents. An “Asserted

Patent” refers to any one of the Asserted Patents.

Management; 2) Research & Development; 3) Content & Services; 4) Retail Operations; 5) Service & Repair; and 6) Supply Chain Management.

INTERROGATORY NO. 19:

Identify each facility—both in the U.S. and internationally—where You, or someone on Your behalf, are, or have been, engaged in the research, development, manufacturing, testing, quality control, repair, servicing, sourcing, supporting, marketing, distribution, sale, importation, or licensing of any DI Product, including the physical address of each facility, the primary operator of each facility, the functions performed at each facility, and the DI Products involved.

INTERROGATORY NO. 20:

For each U.S. facility that You are relying on to establish domestic industry, identify by product name all products supported by the activities and/or equipment there, including relevant time periods and a description of those activities/equipment.

INTERROGATORY NO. 21:

For each Asserted Patent, identify all entities that have any rights to use that patent, the scope and terms of those rights, and all documents conferring or memorializing those rights.

Dated: April 15, 2026

Respectfully submitted,

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

James A. Fussell, III

Saqib J. Siddiqui

Bryan C. Nese

Michael L. Lindinger

Tiffany A. Miller

Clark S. Bakewell

Alison T. Gelsleichter

Julia L. Haines

Tariq Javed

Amanda E. Stephenson

Matthew A. Stanford
Seth W. Bruneel
Courtney Krawice
Séké Godo
Angeline Premraj
Paul Choi
So Ra Ko
Andrew Huntsinger
Jaspreet Momi
Jennifer Weinberg
MAYER BROWN LLP
1999 K Street, NW
Washington, DC 20006-1101
Tel.: +1 202.263.3000

Robert G. Pluta
Nicholas H. Ciulla
MAYER BROWN LLP
71 S. Wacker Drive
Chicago, IL 60606
Tel.: +1 312.782.0600

*Counsel for Respondents Ouraring Inc. and Oura
Health Oy*

Oura-ITC@mayerbrown.com

Certain Wearable Devices

Inv. No.: 337-TA-1478

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **RESPONDENTS' SECOND SET OF INTERROGATORIES TO COMPLAINANTS** was served upon the following as indicated below on April 15, 2026:

Counsel for Complainant Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com
---	--

/s/ Jasjit S. Vidwan
Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*

Exhibit I

REDACTED IN ENTIRETY

Exhibit J

PUBLIC VERSION
PATENT ASSIGNMENT COVER SHEET

Electronic Version v1.1
Stylesheet Version v1.2

EPAS ID: PAT4463700

SUBMISSION TYPE:	NEW ASSIGNMENT
NATURE OF CONVEYANCE:	ASSIGNMENT
CONVEYING PARTY DATA	
Name	Execution Date
HAN-MIN CHO	05/17/2017
CHAN-GI PARK	05/17/2017
YEON-SANG YUN	05/17/2017
TAE-WOOK HAM	05/17/2017
HEI-SEONG KWAK	05/17/2017
BYOUNG-IL SON	05/17/2017
SUNG-CHUL PARK	05/17/2017
RECEIVING PARTY DATA	
Name:	SAMSUNG ELECTRONICS CO., LTD.
Street Address:	129, SAMSUNG-RO, YEONGTONG-GU
City:	SUWON-SI, GYEONGGI-DO
State/Country:	KOREA, REPUBLIC OF
Postal Code:	16677
PROPERTY NUMBERS Total: 1	
Property Type	Number
Application Number:	15621687
CORRESPONDENCE DATA	
Fax Number:	(516)228-8475
<i>Correspondence will be sent to the e-mail address first; if that is unsuccessful, it will be sent using a fax number, if provided; if that is unsuccessful, it will be sent via US Mail.</i>	
Phone:	5162283565
Email:	genmail@farrelliplaw.com
Correspondent Name:	PAUL J. FARRELL
Address Line 1:	290 BROADHOLLOW ROAD
Address Line 2:	SUITE 210 E
Address Line 4:	MELVILLE, NEW YORK 11747
ATTORNEY DOCKET NUMBER:	678-5477
NAME OF SUBMITTER:	PAUL J. FARRELL
SIGNATURE:	/pjf/
DATE SIGNED:	06/16/2017

Total Attachments: 2

source=Assignment#page1.tif

source=Assignment#page2.tif

PATENT

REEL: 042730 FRAME: 0761

SAMS382-0029007

Docket No. 678-5477
Client Ref.: P23235-US (GM-201507-095-1-US0)

ASSIGNMENT

AS A BELOW NAMED INVENTOR, I, and each of us, individually hereby declare that: IN CONSIDERATION of the sum of TEN (\$10.00) dollars or the equivalent thereof, and other good and valuable consideration, the receipt of which from the hereinafter named Assignee is hereby acknowledged, I do hereby sell, assign and forever grant and convey unto:

ASSIGNEE: Samsung Electronics Co., Ltd.

ADDRESS: 129, Samsung-ro, Yeongtong-gu, Suwon-si, Gyeonggi-do, 16677, Republic of Korea

Who is my Assignee, and to the successes and assigns of my Assignee, all my right, title and interest, in and for the United States of America and all other countries, including all rights of priority, in and to the invention entitled:

TITLE: ELECTRONIC DEVICE INCLUDING HIGH-FREQUENCY TRANSMISSION CIRCUIT

invented by me (if only one inventor is named below) or us (if more than one inventor is named below) and described in an application for a United States patent the specification of which is either attached hereto or otherwise accompanies this Assignment or indicates an attorney docket no. 678-5477 or is more particularly identified as:

- ☒ executed on even date herewith, or
☐ Serial No. 15/621,687 filed in the U.S. Patent & Trademark Office on 06/13/2017, or
☐ executed on _____

and in and to all United States patents which may be granted thereon and therefore, and in and to all certificates of corrections, divisions, continuations, continuations-in-part, reissued and re-examined patents, and to any extensions thereof, said interest being the entire ownership of the patent when granted, to be held and enjoyed by said SAMSUNG ELECTRONICS CO., LTD., my Assignee, its successors, assigns or other legal representatives, to the full end of the term, terms, or any extension or renewal thereof, for which said patent or patents may be granted, as fully and entirely as the same would have been held and enjoyed by me or us if this assignment, sale and conveyance had not been made;

AND I hereby covenant and agree to sign and execute any further documents or instruments which may from time-to-time be either necessary, lawful, proper or requested by the Assignee, in the prosecution of the above-named application or in the preparation and prosecution of any certificate of correction, division, continuation, continuation-in-part, reissue, re-examination, in any amendment, extension, or interference proceeding, whether administrative or judicial, or otherwise, to secure the title hereto in said Assignee;

AND I do hereby authorize and request the Commissioner of Patents and Trademarks to issue said Patent or Patents to the Assignee, and I hereby appoint as my, or our attorney, and authorize and request Paul J. Farrell, Reg. No. 33,494, to insert on this Assignment any further identification or to complete such identification which may be either necessary or desirable in order to comply with the rules of the United States Patent and Trademark Office for recordation of this document.

Page 1 of 2

And I further covenant that ASSIGNEE will, upon its request, be provided promptly with all pertinent facts and documents relating to said invention and said Letters Patent and legal equivalents as may be known and accessible to ASSIGNOR and will testify as to the same in any interference, litigation or proceeding related thereto and will promptly execute and deliver to ASSIGNEE or its legal representatives any and all papers, instruments or affidavits required to apply for, obtain, maintain, issue and enforce said application, said invention and said Letters Patent and said equivalents thereof which may be necessary or desirable to carry out the purposes thereof.

IN WITNESS WHEREOF, I and we have set our hands and seals on the dates written beside my and our respective names:

<u>INVENTOR(S)</u>	<u>Date Signed</u>	<u>Witness(es)</u>
1) <u>Han-Min Cho</u> Han-Min CHO	(Seal) <u>May 17, 2017</u>	_____
2) <u>Chan-Gi PARK</u> Chan-Gi PARK	(Seal) <u>May 17, 2017</u>	_____
3) <u>Yeon-Sang YUN</u> Yeon-Sang YUN	(Seal) <u>May 17, 2017</u>	_____
4) <u>Tae-Wook HAM</u> Tae-Wook HAM	(Seal) <u>May 17, 2017</u>	_____
5) <u>Hei-Seong KWAK</u> Hei-Seong KWAK	(Seal) <u>May 17, 2017</u>	_____
6) <u>Byoung-Il SON</u> Byoung-Il SON	(Seal) <u>May 17, 2017</u>	_____
7) <u>Sung-Chul PARK</u> Sung-Chul PARK	(Seal) <u>May 17, 2017</u>	_____

Exhibit K

PUBLIC VERSION
PATENT ASSIGNMENT COVER SHEET

Electronic Version v1.1
Stylesheet Version v1.2

EPAS ID: PAT3902213

SUBMISSION TYPE:	NEW ASSIGNMENT
NATURE OF CONVEYANCE:	ASSIGNMENT
CONVEYING PARTY DATA	
Name	Execution Date
GIHSUNG CHUNG	05/30/2016
JOOMAN HAN	05/30/2016
SO HYUN CHUNG	05/30/2016
DAE-YONG LEE	05/30/2016
HONGSIG KIM	05/30/2016
HYUNWOO JANG	05/30/2016
CHEOLHO CHEONG	05/26/2016
JAE-WOONG CHUN	05/26/2016
WON SUK CHOI	05/26/2016
RECEIVING PARTY DATA	
Name:	SAMSUNG ELECTRONICS CO., LTD.
Street Address:	129, SAMSUNG-RO, YEONGTONG-GU
City:	SUWON-SI, GYEONGGI-DO
State/Country:	KOREA, REPUBLIC OF
PROPERTY NUMBERS Total: 1	
Property Type	Number
Application Number:	15173099
CORRESPONDENCE DATA	
Fax Number:	
<i>Correspondence will be sent to the e-mail address first; if that is unsuccessful, it will be sent using a fax number, if provided; if that is unsuccessful, it will be sent via US Mail.</i>	
Phone:	202-293-0804
Email:	usdocketing@jeffersonip.com
Correspondent Name:	JEFFERSON IP LAW, LLP
Address Line 1:	1130 CONNECTICUT AVE., NW, SUITE 420
Address Line 4:	WASHINGTON, D.C. 20036
ATTORNEY DOCKET NUMBER:	0202-1231
NAME OF SUBMITTER:	JOHN A. LEBLANC
SIGNATURE:	/John A. LEBLANC/

DATE SIGNED:	06/03/2016	PUBLIC VERSION
Total Attachments: 4 source=0202-1231AssignmentAsFiled#page1.tif source=0202-1231AssignmentAsFiled#page2.tif source=0202-1231AssignmentAsFiled#page3.tif source=0202-1231AssignmentAsFiled#page4.tif		

RECORDATION FORM COVER SHEET
PATENTS ONLY

To the Director of the U.S. Patent and Trademark Office: Please record the attached documents or the new address(es) below.

1. Name of conveying party(ies)

1) Gihung CHUNG, 2) Jooman HAN, 3) So Hyun CHUNG,
4) Dae-Yong LEE, 5) Hongsig KIM, 6) Hyunwoo JANG,
7) Cheolho CHEONG, 8) Jae-Woong CHUN,
and 9) Won Suk CHOI

Additional name(s) of conveying party(ies) attached? ☐ Yes ☒ No

3. Nature of conveyance/Execution Date(s):

Execution Date(s) May 26, 2016 and May 30, 2016

- ☒ Assignment ☐ Merger
☐ Security Agreement ☐ Change of Name
☐ Joint Research Agreement
☐ Government Interest Assignment
☐ Executive Order 9424, Confirmatory License
☐ Other _____

2. Name and address of receiving party(ies)

Name: Samsung Electronics Co., Ltd.

Internal Address: _____

Street Address: 129, Samsung-ro, Yeongtong-gu

City: Suwon-si, Gyeonggi-do

State: _____

Country: Republic of Korea Zip: 16677

Additional name(s) & address(es) attached? ☐ Yes ☒ No

4. Application or patent number(s):

☐ This document is being filed together with a new application.

A. Patent Application No.(s)

15/173,099

B. Patent No.(s)

Additional numbers attached? ☐ Yes ☒ No

5. Name and address to whom correspondence concerning document should be mailed:

Name: Jefferson IP Law, LLP

Internal Address: John A. LeBlanc

Street Address: 1130 Connecticut Ave., NW, Suite 420

City: Washington

State: DC Zip: 20036

Phone Number: 202-293-0804

Fax Number: 202-403-3587

Email Address: usdocketing@jeffersonip.com

6. Total number of applications and patents involved: One

7. Total fee (37 CFR 1.21(h) & 3.41) \$ _____

- ☐ Authorized to be charged by credit card
☐ Authorized to be charged to deposit account
☐ Enclosed
☐ None required (government interest not affecting title)

8. Payment Information

a. Credit Card Last 4 Numbers _____
Expiration Date _____

b. Deposit Account Number _____

Authorized User Name _____

9. Signature:

/John A. LEBLANC/ Reg. No. 64,611

June 3, 2016

Signature

Date

John A. LeBlanc

Name of Person Signing

Total number of pages including cover sheet, attachments, and documents:

4

Documents to be recorded (including cover sheet) should be faxed to (571) 273-0140, or mailed to:
Mail Stop Assignment Recordation Services, Director of the USPTO, P.O.Box 1450, Alexandria, V.A. 22313-1450

PATENT
REEL: 038803 FRAME: 0090

SAMS382-0029012

DOCKET NO.: 0202-1231

CLIENT REF.: SP16061-US_DMC

SAMSUNG REF.: GM-201507-140-1-US0

Assignment

WHEREAS, the following inventors, namely 1) Gihung CHUNG, 2) Jooman HAN, 3) So Hyun CHUNG, 4) Dae-Yong LEE, 5) Hongsig KIM, 6) Hyunwoo JANG, 7) Cheolho CHEONG, 8) Jae-Woong CHUN, and 9) Won Suk CHOI, all, citizens of the Republic of Korea (hereinafter called "Assignors"), having made or discovered certain new, useful and non-obvious improvements in an invention having a working title of:

**METHOD FOR DETECTING BIOMETRIC INFORMATION AND
ELECTRONIC DEVICE USING SAME,**

for which a United States Patent Application is being filed concurrently herewith or, if not being concurrently filed, was filed on June 3, 2016, and assigned Serial No. 15/173,099 ___; and,

WHEREAS, Samsung Electronics Co., Ltd., a corporation duly organized under the laws of the Republic of Korea, located and doing business at 129, Samsung-ro, Yeongtong-gu, Suwon-si, Gyeonggi-do, Republic of Korea, 16677 (hereinafter called "Assignee"), is desirous of acquiring the entire right, title and interest therein;

NOW, THEREFORE, BE IT KNOWN that for and in good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Assignors do hereby sell, assign and transfer unto said Assignee the entire and exclusive worldwide right, title and interest in and to all said inventions and discoveries disclosed in said application, and in and to said application, any and all substitutions, divisions, provisionals, conversions of provisionals and continuations thereof, and in and to all Letters Patent, United States and foreign, that may be granted for said inventions and discoveries, and in and to all extensions, renewals and reissues thereof; and the right to file any foreign application and/or claim priority under the provisions of any international treaty or convention arising from this application or any divisional, continuing, substitute or reissue application therefrom. The aforesaid assignment includes the right in and to all income, royalties, damages and payments, now or hereafter due or payable with respect to any Letters Patent which may be granted, and in and to all causes of action (either in law or in equity), and the right to sue, counterclaim, and recover for past, present and future infringement of the rights assigned or to be assigned under this Assignment, as fully and entirely as the same would have been held and enjoyed by Assignors if this sale, assignment and transfer had not been made.

Assignors covenant and agree, without further compensation to said Assignors but at Assignee's expense:

- a. to execute:
 - i. all papers to be used in connection with this application and any divisional, continuing, substitute or reissue application thereof, as the Assignee may deem necessary or expedient, and
 - ii. all papers in connection with any interference, litigation, mediation, arbitration or other proceeding relating to this application or any divisional, continuing, substitute or reissue application thereof, as may be necessary or expedient;

PUBLIC VERSION

DOCKET NO.: 0202-1231

CLIENT REF.: SP16061-US_DMC

SAMSUNG REF.: GM-201507-140-1-US0

- b. to cooperate with the Assignee in every way possible in obtaining evidence and going forward in any interference, litigation, mediation, arbitration or other proceeding relating to said invention, said application and any divisional, continuing, substitute or reissue application thereof;
- c. to communicate to the Assignee any facts relating to said invention, said application and any divisional, continuing, substitute or reissue application thereof, including evidence for any interference, litigation, mediation, arbitration or other proceeding relating to said invention, whenever requested;
- d. to testify in any interference, litigation, mediation, arbitration or other proceeding relating to said invention, said application and any divisional, continuing, substitute or reissue application thereof whenever requested; and
- e. to perform all other affirmative acts which may be necessary or desirable to secure full and complete protection of the inventions and discoveries or that may be necessary or desirable to vest in Assignee the complete title to the inventions and discoveries and Letters Patent hereby conveyed and to enable Assignee to record title.

Assignors hereby authorize and request the United States Patent and Trademark Office or any other issuing authority to issue any and all Letters Patent that may be granted upon this invention and/or this application or any divisional, continuing, substitute or reissue application thereof to the Assignee, its legal representatives, successors and assigns.

Assignors each hereby represents, covenants and warrants that he or she has the full right to convey the entire right, title and interest by this instrument, free of any encumbrances and that no other agreement has been or will be executed in conflict herewith.

The provisions of this Assignment are binding upon Assignors' heirs, legal representatives and/or administrators and assigns.

Assignors hereby grant to the law firm of Jefferson IP Law, LLP of Washington, DC and its attorneys and agents as associated with **Customer No. 68103** the authority and power to insert on this instrument any further identification which may be necessary or desirable for purposes of recordation in the United States Patent and Trademark Office or a Patent Office of any foreign country.

PUBLIC VERSION

DOCKET NO.: 0202-1231

CLIENT REF.: SP16061-US_DMC

SAMSUNG REF.: GM-201507-140-1-US0

Signature of Inventor:


Gihung CHUNG

May 30, 2016
Date

Signature of Inventor:

Jooman Han
Jooman HAN

May 30, 2016
Date

Signature of Inventor:


So Hyun CHUNG

May 30, 2016
Date

Signature of Inventor:


Dae-Yong LEE

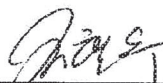
May 30, 2016
Date

Signature of Inventor:

Hongsig KIM
Hongsig KIM

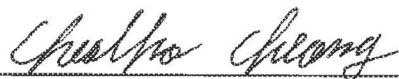
May 30, 2016
Date

Signature of Inventor:


Hyunwoo JANG

May 30, 2016
Date

Signature of Inventor:


Cheolho CHEONG

May 26, 2016
Date

Signature of Inventor:


Jae-Woong CHUN

May 26, 2016
Date

Signature of Inventor:


Won Suk CHOI

May 26, 2016
Date

Exhibit L

PUBLIC VERSION
PATENT ASSIGNMENT COVER SHEET

Electronic Version v1.1
Stylesheet Version v1.2

EPAS ID: PAT3747320

SUBMISSION TYPE:	NEW ASSIGNMENT
NATURE OF CONVEYANCE:	ASSIGNMENT
CONVEYING PARTY DATA	
Name	Execution Date
CHANG MOK CHOI	12/17/2015
SANG JOON KIM	12/18/2015
SEUNG KEUN YOON	12/18/2015
RECEIVING PARTY DATA	
Name:	SAMSUNG ELECTRONICS CO., LTD.
Street Address:	129, SAMSUNG-RO, YEONGTONG-GU, GYEONGGI-DO
City:	SUWON-SI
State/Country:	KOREA, REPUBLIC OF
Postal Code:	443-742
PROPERTY NUMBERS Total: 1	
Property Type	Number
Application Number:	14913085
CORRESPONDENCE DATA	
Fax Number:	(202)315-3758
<i>Correspondence will be sent to the e-mail address first; if that is unsuccessful, it will be sent using a fax number, if provided; if that is unsuccessful, it will be sent via US Mail.</i>	
Phone:	202-429-0020
Email:	pto@nsiplaw.com
Correspondent Name:	NSIP LAW
Address Line 1:	P.O. BOX 65745
Address Line 4:	WASHINGTON, D.C. 20035
ATTORNEY DOCKET NUMBER:	012052.0799
NAME OF SUBMITTER:	ALICIA M. CHOI
SIGNATURE:	/Alicia M. Choi/
DATE SIGNED:	02/19/2016
Total Attachments: 3	
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source=NewApp_0120520799_CDAexecuted#page2.tif	
source=NewApp_0120520799_CDAexecuted#page3.tif	

SAIT Docket No.: RL-201303-009-1-US0
Attorney Docket No.: 01205.0799

COMBINED DECLARATION AND ASSIGNMENT UNDER 37 CFR 1.63(e)

DECLARATION

As a below-named inventor, I hereby declare that this declaration is directed to the application attached hereto, or to United States Application Number or PCT International Application Number PCT/KR2014/004073 filed on May 8, 2014 (if applicable), entitled:

WEARABLE BIOSIGNAL INTERFACE AND METHOD THEREOF

The above-identified application was made or authorized to be made by me.

I believe I am the original inventor or an original joint inventor of a claimed invention in the above-identified application.

I hereby acknowledge that any willful false statement made in this declaration is punishable under 18 USC 1001 by fine or imprisonment of not more than five (5) years, or both.

I have reviewed and understand the contents of the above-identified application, including the claims.

I am aware of the duty to disclose to the United States Patent and Trademark Office all information known to me to be material to patentability as defined in 37 CFR 1.56, including for continuation-in-part applications, material information that became available between the filing date of the prior application and the national or PCT international filing date of the continuation-in-part application.

ASSIGNMENT

For valuable consideration, I, as a below-named assignor, hereby assign to:

Samsung Electronics Co., Ltd.
129, Samsung-ro, Yeongtong-gu
Suwon-si, Gyeonggi-do, 443-742
Republic of Korea

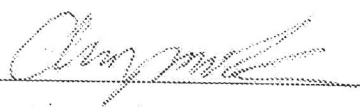
and its successors and assigns (collectively hereinafter called "the Assignee"), the entire right, title, and interest throughout the world in the inventions and improvements that are the subject of the application identified in the above declaration, which is United States Application Number or PCT International Application Number PCT/KR2014/004073 filed on May 8, 2014.

SAIT Docket No.: RL-201303-009-1-US0
 Attorney Docket No.: 01205.0799

I authorize and request the attorneys appointed in the above-identified application to hereafter complete this Assignment by inserting above the application number and the filing date of the above-identified application when known, and to correct any typographical errors that may be discovered in this Assignment.

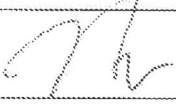
This Assignment includes the above-identified application, any and all United States and foreign patents, utility models, and design registrations granted for any of the inventions and improvements that are the subject of the above-identified application, and the right to claim priority based on the filing date of the above-identified application under the International Convention for the Protection of Industrial Property, the Patent Cooperation Treaty, the European Patent Convention, and all other treaties of like purposes; and I authorize the Assignee to apply in all countries in my name or in its own name for patents, utility models, design registrations, like rights of exclusion, and inventors' certificates for any of the inventions and improvements that are the subject of the above-identified application; and I agree for myself and my heirs, legal representatives, and assigns without further compensation to perform such lawful acts and to sign such further applications, Assignments, preliminary statements, and other lawful documents as the Assignee may reasonably request to effectuate fully this Assignment.

In witness whereof, I, as a below-named inventor and assignor, intending to be legally bound, have hereunto affixed my signature on the date indicated below next to my signature.

Inventor's Legal Name	Chang Mok CHOI		
Inventor's Signature		Date	17 Dec. 2015
Residence (City, Country)	Suwon-si, Republic of Korea		
Mailing Address	Samsung Advanced Institute of Technology 130, Samsung-ro, Youngtong-gu Suwon-si, Gyeonggi-do, 443-803 Republic of Korea		

SAIT Docket No.: RL-201303-009-1-US0

Attorney Docket No.: 01205.0799

Inventor's Legal Name	Sang Joon KIM		
Inventor's Signature		Date	12.18.2015
Residence (City, Country)	Suwon-si, Republic of Korea		
Mailing Address	Samsung Advanced Institute of Technology 130, Samsung-ro, Youngtong-gu Suwon-si, Gyeonggi-do, 443-803 Republic of Korea		

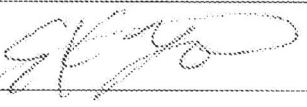
Inventor's Legal Name	Seung Keun YOON		
Inventor's Signature		Date	12.18.2015
Residence (City, Country)	Suwon-si, Republic of Korea		
Mailing Address	Samsung Advanced Institute of Technology 130, Samsung-ro, Youngtong-gu Suwon-si, Gyeonggi-do, 443-803 Republic of Korea		

Exhibit M

REDACTED IN ENTIRETY

Exhibit N

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before The Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**COMPLAINANTS SAMSUNG ELECTRONICS CO., LTD. &
SAMSUNG ELECTRONICS AMERICA, INC.'S
OBJECTIONS AND RESPONSES TO
RESPONDENTS' CORPORATE DEPOSITION NOTICE (1-55)**

Pursuant to the United States International Trade Commission's Rules of Practice and Procedure ("Commission Rules"), 19 C.F.R. §§ 210.27 and 210.28, Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. (collectively, "Samsung" or "Complainants") hereby serve their Objections and Responses to Respondents Oura Health Oy and Ouraring Inc.'s (collectively, "Oura" or "Respondents") Notice of Deposition of Samsung Complainants Pursuant to Fed. R. Civ. 30(b)(6).

GENERAL OBJECTIONS

1. Samsung objects to each and every definition and topic for deposition to the extent that it purports to impose any requirement or discovery obligation upon Samsung other than those set forth in the Commission's rules or the ALJ's Ground Rules (Order No. 2).

2. Samsung objects to each and every definition and topic for deposition to the extent that it seeks information protected by the attorney-client privilege, the work product doctrine, or any other applicable privilege, rule, or duty of confidentiality that precludes or limits the disclosures of such information (hereinafter referred to as "Privileges"). Samsung will not disclose such information in response to these topics for deposition. Inadvertent disclosure of

TOPIC NO. 12:

Samsung's licensing policies and practices for any intellectual property relating to the subject matter of the Asserted Patents in the United States.

RESPONSE TO TOPIC NO. 12:

In addition to its General Objections, Samsung objects to this topic as vague, unclear, and ambiguous, including without limitation its use of the phrases "any intellectual property" and "the subject matter." Samsung further objects to this topic as overly broad, unduly burdensome, beyond the scope of Commission Rule 210.27(b), lacking any reasonable limitation as to time and/or scope, not relevant to the claims or defenses of any party to this Investigation, not proportional to the needs of the Investigation, and/or not reasonably calculated to lead to the discovery of admissible evidence. Samsung further objects to this topic to the extent it seeks information not in Samsung's possession, custody, or control. Samsung further objects to this topic to the extent that it seeks information that, if disclosed, would result in the violation of any legal or contractual obligation to third parties, including confidentiality obligations. Samsung further objects to this topic to the extent it seeks information protected by attorney-client privilege, the work product doctrine, the common interest privilege or any other applicable privilege or immunity doctrines.

Subject to its General and Specific Objections, Samsung responds as follows: Samsung will produce one or more witnesses to provide relevant, non-cumulative testimony within its possession, custody, or control regarding non-privileged facts relating to the licenses identified in Interrogatory No. 13.

TOPIC NO. 13:

All royalties paid or received by Samsung in connection with any patented technology

[REDACTED]

relating to the subject matter of the Asserted Patents.

RESPONSE TO TOPIC NO. 13:

In addition to its General Objections, Samsung objects to this topic as vague, unclear, and ambiguous, including without limitation its use of the phrases “any patented technology” and “the subject matter.” Samsung further objects to this topic as overly broad, unduly burdensome, beyond the scope of Commission Rule 210.27(b), lacking any reasonable limitation as to time and/or scope, not relevant to the claims or defenses of any party to this Investigation, not proportional to the needs of the Investigation, and/or not reasonably calculated to lead to the discovery of admissible evidence. Samsung further objects to this topic to the extent it seeks information not in Samsung’s possession, custody, or control. Samsung further objects to this topic to the extent that it seeks information that, if disclosed, would result in the violation of any legal or contractual obligation to third parties, including confidentiality obligations. Samsung further objects to this topic to the extent it seeks information protected by attorney-client privilege, the work product doctrine, the common interest privilege or any other applicable privilege or immunity doctrines.

Subject to its General and Specific Objections, Samsung responds as follows: Samsung will produce one or more witnesses to provide relevant, non-cumulative testimony within its possession, custody, or control regarding non-privileged facts relating to the licenses identified in Interrogatory No. 13.

TOPIC NO. 14:

All agreements, licenses, covenants not to sue or assert, offers to license or covenant, refusals to license, licensing programs, licensing activity, and related discussions, negotiations, and other communications related to the Asserted Patents or Related Patents, including

[REDACTED]

communications with any licensee or potential licensee—including with entities related to Samsung—about the scope, validity, infringement, or enforceability of any such licenses, covenants, Asserted Patents or Related Patents.

RESPONSE TO TOPIC NO. 14:

In addition to its General Objections, Samsung objects to this topic as vague, unclear, and ambiguous, including without limitation its use of the phrases “related discussions, negotiations, or other communications” and “potential licensee.” Samsung further objects to this topic as overly broad, unduly burdensome, beyond the scope of Commission Rule 210.27(b), lacking any reasonable limitation as to time and/or scope, not relevant to the claims or defenses of any party to this Investigation, not proportional to the needs of the Investigation, and/or not reasonably calculated to lead to the discovery of admissible evidence. Samsung further objects to this topic to the extent it seeks information not in Samsung’s possession, custody, or control. Samsung further objects to this topic to the extent that it seeks information that, if disclosed, would result in the violation of any legal or contractual obligation to third parties, including confidentiality obligations. Samsung further objects to this topic to the extent it seeks information protected by attorney-client privilege, the work product doctrine, the common interest privilege or any other applicable privilege or immunity doctrines.

Subject to its General and Specific Objections, Samsung responds as follows: Samsung will produce one or more witnesses to provide relevant, non-cumulative testimony within its possession, custody, or control regarding non-privileged facts relating to the licenses identified in Interrogatory No. 13.

TOPIC NO. 15:

The ownership, sale, offer to sell, license, mortgage, assignment, or transfer of any rights

[REDACTED]

to the Asserted Patents or Related Patents, including any related documents, and including Samsung's valuation, acquisition, and ownership of the Asserted Patents or Related Patents, including the identity of all Persons who currently have or previously had or claimed to have any financial interest in the Asserted Patents, and the facts and circumstances of any acquisitions or assignments of the Asserted Patents.

RESPONSE TO TOPIC NO. 15:

In addition to its General Objections, Samsung objects to this topic as vague, unclear, and ambiguous, including without limitation its use of the phrases "any financial interest" and "circumstances of any acquisitions or assignments." Samsung further objects to this topic as overly broad, unduly burdensome, beyond the scope of Commission Rule 210.27(b), lacking any reasonable limitation as to time and/or scope, not relevant to the claims or defenses of any party to this Investigation, not proportional to the needs of the Investigation, and/or not reasonably calculated to lead to the discovery of admissible evidence. Samsung further objects to this topic to the extent it seeks information not in Samsung's possession, custody, or control. Samsung further objects to this topic to the extent that it seeks information that, if disclosed, would result in the violation of any legal or contractual obligation to third parties, including confidentiality obligations. Samsung further objects to this topic to the extent it seeks information protected by attorney-client privilege, the work product doctrine, the common interest privilege or any other applicable privilege or immunity doctrines.

Subject to its General and Specific Objections, Samsung responds as follows: Samsung will produce one or more witnesses to provide relevant, non-cumulative testimony within its possession, custody, or control regarding non-privileged facts relating to Samsung's ownership of the Asserted Patents and the licenses identified in Interrogatory No. 13.

TOPIC NO. 16:

All persons or entities having a direct or indirect financial interest in the Asserted Patents or Related Patents, including but not limited to an interest in revenue generated from litigation relating to or monetization of the Asserted Patents and/or Related Patents.

RESPONSE TO TOPIC NO. 16:

In addition to its General Objections, Samsung objects to this topic as vague, unclear, and ambiguous, including without limitation its use of the phrases “direct or indirect financial interest” and “interest in revenue.” Samsung further objects to this topic as overly broad, unduly burdensome, beyond the scope of Commission Rule 210.27(b), lacking any reasonable limitation as to time and/or scope, not relevant to the claims or defenses of any party to this Investigation, not proportional to the needs of the Investigation, and/or not reasonably calculated to lead to the discovery of admissible evidence. Samsung further objects to this topic to the extent it seeks information not in Samsung’s possession, custody, or control. Samsung further objects to this topic to the extent that it seeks information that, if disclosed, would result in the violation of any legal or contractual obligation to third parties, including confidentiality obligations. Samsung further objects to this topic to the extent it seeks information protected by attorney-client privilege, the work product doctrine, the common interest privilege or any other applicable privilege or immunity doctrines.

Subject to its General and Specific Objections, Samsung responds as follows: Samsung will produce one or more witnesses to provide relevant, non-cumulative testimony within its possession, custody, or control regarding non-privileged facts relating to the licenses identified in Interrogatory No. 13.

CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on April 24, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

<i>Counsel for Respondents Ouraring Inc. and Oura Health Oy</i> Jasjit S. Vidwan James A. Fussell, III Saqib J. Siddiqui Bryan C. Nese MAYER BROWN LLP 199 K. Street NW Washington, DC 20006 Tel: 202-263-5282 Robert G. Pluta Nicholas H. Ciulla MAYER BROWN LLP 71 S. Wacker Drive Chicago, IL 60606 Tel: 312-782-0600 Email: Oura-ITC@mayerbrown.com	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☐ Via Electronic Filing (EDIS) ☒ Via Electronic Mail
---	---

/s/ Brian A. Treggs

Brian A. Treggs
Senior IPT Specialist
O'Melveny & Myers LLP
400 South Hope Street
Los Angeles, CA 90071

Exhibit O

REDACTED IN ENTIRETY

Exhibit P

UNITED STATES INTERNATIONAL TRADE COMMISSION

In the Matter of:	)	Investigation No.
CERTAIN SMART WEARABLE DEVICES,	)	337-TA-1468
SYSTEMS, AND COMPONENTS THEREOF	)	

CONDENSED TRANSCRIPT WITH KEYWORD INDEX

Pages: 1 through 117
Place: Washington, D.C.
Date: March 10, 2026

HERITAGE REPORTING CORPORATION

Official Reporters

1150 Connecticut Avenue, N.W., Suite 305

Washington, D.C. 20036

(202) 628-4888

contracts@hrcreporters.com

1 UNITED STATES INTERNATIONAL TRADE COMMISSION
2 Washington, D.C.
3 BEFORE THE HONORABLE DORIS JOHNSON HINES
4 Administrative Law Judge
5
6 In the Matter of:) Investigation No.
7 CERTAIN SMART WEARABLE DEVICES,) 337-TA-1468
8 SYSTEMS, AND COMPONENTS THEREOF)
9
10
11 Remote Hearing
12
13 International Trade Commission
14 500 E Street, S.W.
15 Washington, D.C.
16
17 Tuesday, March 10, 2026
18
19 CASE MANAGEMENT CONFERENCE AND MARKMAN HEARING
20
21 The Hearing commenced in Courtroom B, pursuant to the
22 notice of the Judge, at 9:00 a.m. Eastern.
23
24
25 Reported by: Karen Brynteson, FAPR, RMR, CRR

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1	P R O C E E D I N G S	1
2	(9:01 a.m.)	2
3	JUDGE JOHNSON HINES: Good morning, everyone, and	3
4	please be seated.	4
5	We're here for a Claim Construction Hearing and	5
6	Case Management Conference in Certain Smart Wearable	6
7	Devices, Systems, and Components Thereof, Investigation No.	7
8	337-TA-1468.	8
9	May I have appearances from counsel, please. And	9
10	we'll start with the Complainant.	10
11	MR. VIDWAN: Good morning, Your Honor. Jasjit	11
12	Vidwan with Mayer Brown on behalf of Complainant Oura.	12
13	Today I'm joined by my colleagues Robert Pluta,	13
14	Saqib Siddiqui, Christopher Schultz, Michael Lindinger --	14
15	MR. LINDINGER: Good morning, Your Honor.	15
16	MR. VIDWAN: -- Matthew Stanford, as well as we	16
17	have a client representative, Ms. Stephanie Espada.	17
18	JUDGE JOHNSON HINES: Good morning. Thank you.	18
19	And welcome.	19
20	And for Samsung.	20
21	MR. TRAINOR: Good morning, Your Honor. Sean	21
22	Trainor from O'Melveny on behalf of the Samsung Respondents.	22
23	And with me are my colleagues Marc Pensabene --	23
24	MR. PENSABENE: Good morning, Your Honor.	24
25	MR. TRAINOR: -- and Ryan Yagura.	25

MR. YAGURA: Good morning, Your Honor.

MR. TRAINOR: Also we have representatives from Samsung here, Dan Girdwood, Matt Bathon, and Arvind Iyengar.

JUDGE JOHNSON HINES: Good morning. And welcome. And for the Reebok Respondents.

MR. SMITH: Good morning, Your Honor. This is Stephen Smith from Cooley. With me is Lowell Mead. We represent The Original Fit Factory and the Reebok entities.

JUDGE JOHNSON HINES: Good morning. Thank you. And welcome.

MR. MCCRUM: Good morning.

JUDGE JOHNSON HINES: And for Zepp.

MR. MCCRUM: Good morning, Your Honor. Ryan McCrum from Jones Day on behalf of the Zepp Respondents. It's just me today.

JUDGE JOHNSON HINES: Good morning, Mr. McCrum.

MR. MCCRUM: Nice to see you.

JUDGE JOHNSON HINES: All right. We have two things to accomplish today. We have discovery issues that were raised for a case management conference and then the claim construction hearing. I'd like to start with the discovery issues.

All right. I received a letter on March 5th from counsel for the Complainant and responsive letters on March 6th from -- one from Samsung, one from Reebok, and one from

Zepp. And I'd like to start with some questions, if that's all right.

You can stay where you are.

And my first question is for counsel for Samsung. I understand from the letters that -- with respect to corporate depositions, that Samsung has said that corporate designees will be provided on or about March 17th. Is that correct?

MR. TRAINOR: Correct, Your Honor. We have provided specific dates for all of our 30(b)(6) designees in Korea to begin next week, on Wednesday of next week.

JUDGE JOHNSON HINES: And I'm sorry. Can you speak up a little?

MR. TRAINOR: Yeah. So Samsung, we have provided dates for all of our 30(b)(6) designees in Seoul. They will -- those depositions have been offered and accepted, and they begin next Wednesday and will carry through to the following Friday, the 26th, I believe that is.

And they've been accepted, and as far as I'm aware, there's no outstanding 30(b)(6) disputes as far as --

JUDGE JOHNSON HINES: All right. So after the submission of the letters, Samsung provided specific dates?

MR. TRAINOR: Correct, Your Honor. We provided specific dates and then more specific dates last night that were accepted by Oura's counsel overnight.

9

1 JUDGE JOHNSON HINES: All right. Is that
2 correct?

3 MR. PLUTA: Yes, Your Honor.

4 JUDGE JOHNSON HINES: Okay. Mr. Trainor, is it
5 also correct that Mr. Jung, and correct me if I'm saying the
6 name wrong, was offered -- a date for his deposition in a
7 personal capacity was offered and agreed for March 20th?

8 MR. TRAINOR: That is correct, Your Honor.

9 JUDGE JOHNSON HINES: All right. So then we have
10 Mr. Lee, Mr. Kim, Mr. Chiou, and Mr. Rahman for individual
11 depositions; is that correct?

12 MR. TRAINOR: Correct. We are still trying to
13 work through that. The other witnesses work for entities
14 that are, while technically aside from one, who is
15 Mr. Lee -- Mr. Chang Wook Lee does not work for Samsung
16 Electronics at all. He works for a company called Samsung
17 Biologics. We have no custody or control or relationship
18 with Samsung Biologic, other than sharing the same Samsung
19 name. My -- our understanding is he's located in New
20 Jersey. We originally thought he was an SSI employee,
21 Samsung Semiconductor employee, in Korea, but it turns out
22 it was a different Chang Wook Lee. And we believe that that
23 gentleman now works for Samsung Biologics in New Jersey.

24 JUDGE JOHNSON HINES: Is Samsung Biologics a
25 subsidiary or affiliate of Samsung?

10

1 MR. TRAINOR: I believe it is a subsidiary of
2 Samsung Electronics Company Limited in Korea. No, I'm
3 sorry, that's incorrect. It is not a subsidiary. SSI and
4 SRA are subsidiaries of SEC. Samsung Biologics is not.
5 It's a separate entity under the Samsung group, unrelated to
6 SEC, other than being brother and sister corporations.

7 JUDGE JOHNSON HINES: Is it Samsung's position
8 that, however you describe the corporate relationship
9 between the different entities, including Samsung Biologics,
10 that the Respondents here, Samsung Respondents here, have no
11 ability to obtain Mr. Lee of Samsung Biologics for
12 deposition?

13 MR. TRAINOR: That is correct, Your Honor.

14 JUDGE JOHNSON HINES: All right. Let's set
15 Mr. Lee aside for the moment.

16 Have the Respondents provided dates for the
17 deposition of Mr. Kim, Mr. Chiou, and Mr. Rahman?

18 MR. TRAINOR: No, not yet, Your Honor, because we
19 don't believe that they possess any relevant information.
20 Mr. Chiou bought his ring for his own personal use. It was
21 acquired from his Samsung.com e-mail account so that he
22 could take advantage of his flex spending account, but it
23 was not bought in any relation to -- other than for personal
24 use.

25 JUDGE JOHNSON HINES: I saw in the responsive

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1 letter, and I assume you're talking now about Mr. Chiou,
2 that he was the individual that purchased the ring for his
3 personal use. You say the remaining employees merely
4 informally assessed the Oura's rings user experience.

5 MR. TRAINOR: That was Mr. Rahman, Mr. Kim, and
6 Mr. Park, all of whom work with SRA, Samsung Research
7 America. They do not do any reverse engineering. They did
8 not, you know, try to figure out how the software worked.
9 It was just to gain the -- insight into the user experience
10 with the rings.

11 JUDGE JOHNSON HINES: Right. You noticed in your
12 letter that no one tore down the rings or provided them to
13 anyone else who did.

14 In my view, the issue of whether something was
15 torn down or not is not a gating question. It seems to me
16 that what you all said about these witnesses' knowledge and
17 their assessment of the Oura rings user experience is
18 relevant. And so to the extent that Mr. Kim, Mr. Chiou,
19 Mr. Rahman -- I didn't see an issue for Mr. Park, but maybe
20 that is an issue as well -- to the extent those individuals
21 have that information, it's relevant, and dates should be
22 provided for those witnesses.

23 MR. TRAINOR: One follow-up request, Your Honor.
24 Samsung does treat these entities as -- while they're under
25 the -- kind of the auspices of Samsung Electronics America,

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1 they are really treated as separate entities. Would it be
2 possible to have subpoenas issued to them? And we will not
3 hold back the ten days; we will make them available but just
4 under the guise of a subpoena rather than a 30(b)(1) notice?

5 JUDGE JOHNSON HINES: An interesting thing,
6 Mr. Trainor, in the responsive letter that you provided, I
7 didn't see that Samsung raised the issue of the separate
8 corporate entity status. So, honestly, my first question
9 for you that I wrote down was it appears you have abandoned
10 the position that witnesses will not be provided because
11 they work for other Samsung entities, because I did not see
12 that in your responsive letter. So I'm a little surprised
13 to be hearing it now.

14 MR. TRAINOR: Okay.

15 JUDGE JOHNSON HINES: Do you have a response to
16 that? I mean --

17 MR. TRAINOR: We -- we --

18 JUDGE JOHNSON HINES: We have these letters for a
19 purpose, and that is so I understand what issues are going
20 to be addressed, and I thought that was not one of them.

21 MR. TRAINOR: Your Honor, we focused on what we
22 believed were the relevance issues and did not address the
23 corporate issues in the letter. And for that I apologize.

24 JUDGE JOHNSON HINES: Well, the corporate issues
25 in the way that they are being presented are a gating issue,

13

1 right?

2 MR. TRAINOR: Correct, Your Honor.

3 JUDGE JOHNSON HINES: Can I get a response from

4 counsel for Oura with respect to Mr. Trainor's proposal on

5 these personal deponents?

6 MR. PLUTA: Yeah, Your Honor, our understanding

7 was similar to yours. Initially, when we started conferring

8 about this issue, Samsung flat-out refused to provide the

9 witnesses because they were separate -- at separate

10 companies.

11 They seemed to have abandoned that in their

12 letters, and it appears from the letters that they actually

13 spoke to the witnesses. So we think they have plenty of

14 control and the notices that we've served are sufficient for

15 obtaining their deposition under Your Honor's ruling.

16 I mean, we think whether there's a subpoena or

17 not, form over substance at this point, so we're happy to do

18 whatever Your Honor suggests, but we think the 30(b)(1)

19 notices should be sufficient under these circumstances.

20 JUDGE JOHNSON HINES: All right. I want to

21 consider that issue. I'll give you guidance before we close

22 here today.

23 MR. PLUTA: Okay.

24 MR. TRAINOR: Thank you, Your Honor.

25 JUDGE JOHNSON HINES: One other thing. This

14

1 isn't specific necessarily to the Samsung, but we're talking

2 about Samsung first, that I wanted to point out. These

3 depositions that move forward and the 30(b)(6) witnesses

4 that dates have been provided for -- and I appreciate that

5 the parties have now agreed on that and taken that off the

6 table, so I want to recognize that. But I do also want to

7 say, looking at the procedural schedule, and given when

8 witnesses are being provided, it's going to be difficult to

9 make an argument that Oura did not provide information in

10 its supplements to infringement contentions when witnesses

11 are not provided until after that date.

12 So I would urge the parties to take that into

13 account. We can discuss, and will likely with respect to

14 other Respondents, issues on the dates that are set in the

15 schedule for fact discovery cutoff and initial expert

16 reports, given the dates that witnesses are being provided,

17 but I did want to raise the issue with respect to contention

18 interrogatories and, you know, where we are now in the

19 schedule. All right.

20 Are there any other questions or comments?

21 MR. PLUTA: Not with respect to Samsung, Your

22 Honor. We have one more remaining dispute with respect to

23 Reebok.

24 JUDGE JOHNSON HINES: All right. Reebok was next

25 on my list. So thank you, Mr. Trainor.

15

1 Okay. My understanding -- and, Mr. Smith, will

2 you be addressing this for Reebok?

3 MR. SMITH: I will, Your Honor.

4 JUDGE JOHNSON HINES: All right. Thank you.

5 MR. SMITH: Given the amount of tables, Your

6 Honor, I thought it would be easier if I came up here.

7 JUDGE JOHNSON HINES: That's fine. Thank you.

8 MR. SMITH: With the microphones.

9 JUDGE JOHNSON HINES: I appreciate that. Just

10 make sure that you're close enough to the microphone.

11 My understanding that, under a supply agreement,

12 Reebok's supplier agreed to provide documents and

13 information required by law. Is that your understanding as

14 well?

15 MR. SMITH: Your Honor, if I may just very

16 quickly set the stage, and I'll directly answer your

17 question. The Original Fit Factory has the ring, and the

18 Reebok entities supplied the license. We, The Original Fit

19 Factory, have an arrangement with Joint Chinese Group. That

20 is the manufacturer. We asked them for the documents and

21 they declined.

22 JUDGE JOHNSON HINES: Okay. That's not my

23 question.

24 MR. SMITH: Oh, I'm sorry.

25 JUDGE JOHNSON HINES: Which you actually said you

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1 were going to answer, which is, does the agreement say that

2 the supplier agrees to provide documents and information

3 required by law?

4 MR. SMITH: Yes. Yes, and I think it's

5 questionable whether that covers this kind of situation,

6 Your Honor, but nonetheless we asked for them.

7 JUDGE JOHNSON HINES: All right.

8 MR. SMITH: And they refused.

9 JUDGE JOHNSON HINES: So -- okay. Thank you.

10 The agreement does say that. Thank you.

11 So counsel for Oura, I would like to get from you

12 a description of what documents or information that Oura is

13 seeking from Reebok or the Reebok Respondents. I understand

14 there's different names. I'm calling the Reebok Respondents

15 Fit Factory and Reebok. So I am grouping them together,

16 just so there's hopefully some clarity.

17 MR. PLUTA: Your Honor, to date, we've received

18 one CAD file from Reebok. Apparently, all the other

19 technical specifications and documents are in the possession

20 of Joint Chinese. So what we're missing at this point and

21 what we would like are technical specifications,

22 requirements documents, schematics, block diagrams, and data

23 sheets relating to the accused products, features, and

24 functions, basically the regular technical documents that

25 are produced in such cases. And the --

17

1 JUDGE JOHNSON HINES: All right. So let me make
2 sure I have this correct. Oura is seeking technical
3 specifications, requirements documents, schematics, block
4 diagram -- and block diagrams describing features and
5 functions of the accused products?
6 MR. PLUTA: And data sheets, Your Honor.
7 JUDGE JOHNSON HINES: All right. Let me try this
8 again.
9 Oura is seeking from Reebok technical
10 specifications, requirements documents, schematics, block
11 diagrams, and data sheets describing the features and
12 functions of the accused products. Is that correct?
13 MR. PLUTA: Yes, Your Honor.
14 JUDGE JOHNSON HINES: All right. Mr. Smith,
15 based on the correspondence between the parties and the
16 discussion today, Reebok, the Reebok Respondents, are
17 ordered to produce technical specifications, requirements
18 documents, schematics, block diagrams, and data sheets
19 describing the features and functions of the accused
20 products by March 16th. Do you understand that order?
21 MR. SMITH: I do, Your Honor.
22 JUDGE JOHNSON HINES: All right.
23 MR. SMITH: Can I respond?
24 JUDGE JOHNSON HINES: Not yet. I want you to
25 understand or ask me any questions that this is an order and

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1 this has the same effect as a written order that would
2 issue. Do you understand that?
3 MR. SMITH: I do.
4 JUDGE JOHNSON HINES: All right. Mr. Smith, I'd
5 like you to communicate with your supplier, the supplier of
6 the Reebok Respondents, that the Reebok Respondents have
7 been ordered to provide documents and information including
8 technical specifications, requirements documents,
9 schematics, block diagrams, and data sheets describing the
10 features and functions of the accused products. Is that
11 understood?
12 MR. SMITH: Yes, Your Honor.
13 JUDGE JOHNSON HINES: All right. If the Reebok
14 Respondents do not comply with the order that I've just
15 explained to you, then consequences of not complying with
16 that order will be considered, including but not limited to
17 adverse inferences. Is that understood?
18 MR. SMITH: Yes, Your Honor.
19 JUDGE JOHNSON HINES: All right. I would also
20 like a report from the Reebok Respondents to be submitted,
21 not filed, but to be submitted on compliance with the order
22 by March 17th. Is that understood?
23 MR. SMITH: Yes, Your Honor.
24 JUDGE JOHNSON HINES: All right. Is there
25 anything else we need to discuss?

19

1 MR. SMITH: Yes, Your Honor, just for the record,
2 the Reebok entities have produced any of those documents you
3 listed that are in our possession, custody, and control.
4 We've asked the original -- excuse me -- the Joint Chinese
5 Group for the documents that you've listed. They refused.
6 We will put that in our report. We will ask them again in
7 light of Your Honor's order, and we will stress to them that
8 we are under compulsion to do so and that they need to
9 produce these documents.
10 JUDGE JOHNSON HINES: All right. Thank you very
11 much.
12 MR. SMITH: Thank you.
13 JUDGE JOHNSON HINES: Are there any questions
14 from Oura with respect to documents from the Reebok
15 Respondents?
16 MR. PLUTA: No, Your Honor. Thank you.
17 JUDGE JOHNSON HINES: All right. Mr. Smith,
18 don't go away.
19 What is the status of providing witnesses for
20 deposition from the Reebok Respondents?
21 MR. SMITH: Good news, Your Honor, right before
22 the hearing we've confirmed we're going to produce witnesses
23 on the 25th and 26th. There will be two 30(b)(6) witnesses,
24 and then by the end of the week, we will provide specific
25 topics and the names of each individual that would be

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1 testifying on that particular topic.
2 JUDGE JOHNSON HINES: All right. To the extent
3 there are issues with respect to the close of fact discovery
4 on March 31st or initial expert reports on March 10th, in
5 light of the order to the Reebok Respondents to produce the
6 information I identified, I would at least consider
7 extending dates for fact discovery from the Reebok
8 Respondents, as well as expert report on infringement for
9 the accused Reebok products.
10 Let's see how things move, but I want to tell you
11 that I would consider at least doing that, given where we
12 appear to be with respect to the production of documents
13 related to the Reebok accused products.
14 Are there any questions on that?
15 MR. PLUTA: No, Your Honor. Thank you.
16 JUDGE JOHNSON HINES: Mr. Smith?
17 MR. SMITH: No, Your Honor.
18 JUDGE JOHNSON HINES: All right. One final thing
19 with respect to Reebok. I understood from the letters that
20 Reebok is committed to providing samples. What's the status
21 of that commitment?
22 MR. SMITH: I need to check on that, Your Honor.
23 We're committed to providing. We'll try to provide it this
24 week.
25 JUDGE JOHNSON HINES: All right. So the Reebok

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1 Respondents are ordered to provide samples of the accused
2 products by March 12th. Is that understood?
3 MR. SMITH: Yes, Your Honor.
4 JUDGE JOHNSON HINES: All right. Thank you.
5 Is anything else we should discuss with respect
6 to discovery from the Reebok Respondents?
7 MR. SMITH: No, Your Honor.
8 JUDGE JOHNSON HINES: All right. Thank you.
9 Okay. Let's move on to Zepp, Mr. McCrum.
10 I understood from the parties' correspondence
11 that Zepp provided windows of availability for 30(b)(6) and
12 30(b)(1) witnesses. Is that correct?
13 MR. MCCRUM: That's correct, Your Honor.
14 JUDGE JOHNSON HINES: All right. Zepp should
15 provide specific dates and specific locations for its
16 30(b)(6) and 30(b)(1) witnesses by March 12th.
17 MR. MCCRUM: Understood, Your Honor.
18 JUDGE JOHNSON HINES: All right. Is there
19 anything else that we should discuss with respect to
20 discovery from Zepp?
21 MR. MCCRUM: The only thing that I would mention,
22 Your Honor, just so the record is clear, we have actually
23 provided -- we'll have -- we've provided dates to Oura for
24 30(b)(6) and 30(b)(1)'s. I am talking to the client and all
25 witnesses tonight, and we will confirm those dates, but I

22

1 think we're at 99 percent sure of those.
2 JUDGE JOHNSON HINES: Okay. All right. Thank
3 you for that.
4 MR. MCCRUM: Thank you.
5 MR. PLUTA: And there may be -- just wanted to
6 preview for Your Honor, there may be a witness that needs to
7 go one day out of time, and to the extent that needs to
8 happen, we'll file a joint motion.
9 JUDGE JOHNSON HINES: Okay. That's fine. And
10 that's, like, understood and not atypical. All right.
11 Is there anything else that we need to discuss
12 about discovery?
13 MR. PLUTA: None from Oura, Your Honor.
14 JUDGE JOHNSON HINES: And from Samsung?
15 MR. TRAINOR: No, Your Honor.
16 JUDGE JOHNSON HINES: And from the Reebok
17 Respondents?
18 MR. SMITH: No, Your Honor.
19 JUDGE JOHNSON HINES: And for Zepp?
20 MR. MCCRUM: No, Your Honor.
21 JUDGE JOHNSON HINES: All right. Thank you very
22 much.
23 Okay. Is there anything else we need to discuss
24 before we move on to claim construction?
25 MR. VIDWAN: No, Your Honor.

23

1 JUDGE JOHNSON HINES: Okay.
2 MR. TRAINOR: No, Your Honor.
3 JUDGE JOHNSON HINES: Thank you.
4 Have the parties talked about an order of
5 presenting the claim terms?
6 MR. VIDWAN: Yes, we have, Your Honor. The
7 parties have presented the terms we're going to argue first.
8 And in our case, the housing term, the Complainant is going
9 to go first. For the other two terms, Respondents will go
10 first.
11 JUDGE JOHNSON HINES: Okay. Good. It surprises
12 me that sometimes the parties haven't thought about this
13 before they come in, so I'm glad that you did.
14 And that's fine that we proceed that way.
15 Mr. Schultz, good morning.
16 MR. SCHULTZ: Good morning. Your Honor,
17 Christopher Schultz from the law firm of ArentFox Schiff
18 also on behalf of Complainant. May I proceed?
19 JUDGE JOHNSON HINES: Yes, please.
20 MR. SCHULTZ: Thank you.
21 About ten years ago, our client developed a
22 groundbreaking innovation in the wearable device market. It
23 was groundbreaking because Oura was the first company that
24 figured out how to fit all of the electronic components that
25 sensed health parameters in a wearable device into the form

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1 factor of a ring.
2 Now, this isn't a ring where circuits and
3 batteries are stacked up on top of a ring, which we saw in
4 the previous investigation before Your Honor. This is a
5 ring that people actually want to wear. And that's
6 important because the more you wear a wearable device, the
7 more effective it is in measuring biometrics parameters and
8 determining the health of the user.
9 Now, we have received substantial notoriety and
10 awards for our development and our disruption of the market.
11 And those are shown on slide 3.
12 But like any great success, we also received some
13 unwanted attention in the form of companies attempting to
14 trade on the success and innovation of Oura. And three of
15 the accused products in this investigation are shown here.
16 We had a prior investigation, again, in the 1398 case, where
17 the rings looked also remarkably similar to Oura's
18 commercial product.
19 But, fortunately, Oura invested heavily in the
20 United States patent system to protect their innovation.
21 And in this case, there are four patents asserted. The '178
22 patent was from the 1398 investigation. And the three other
23 patents share the same specification as the '178 patent but
24 claim the form of the ring in slightly different ways in
25 each case. And each of these patents describes how you fit

25

1 all of these electronics into this ring form factor in an
2 elegant, sleek way.

3 Now, shown on slide 6 are two embodiments shown
4 in the '178 patent. And, indeed, all of the patents, as I
5 mentioned, they share the same figures. And highlighted in
6 the exploded view of Figure 8 in blue and purple are the
7 internal housing component and the external housing
8 component. The external is in blue. The internal is in
9 purple. They surround the electronics of the device.

10 And, by the way, the internal and external
11 housing components, that's the terms used in the claims of
12 the '178 patent. The other claims -- the other patents
13 describe it differently in certain aspects.

14 But special mention needs to be made to Figure
15 13, which also shows the blue external housing component and
16 the purple internal housing component. In this case, the
17 purple internal housing component is formed entirely of
18 potting material. Potting material is a type of material
19 that, during manufacturing process, it is a gelatinous form.
20 It hardens over time during manufacture and becomes a rigid
21 structure that encases the components and couples to the
22 external housing component, which in many of the cases, the
23 commercial products, the external is a metallic shell, the
24 internal housing component is a potting material. And
25 that's the case with all of the accused products.

26

1 And why Figure 13 deserves special mention is
2 because virtually every Respondents' products in this case
3 and the 1398 case practice Figure 13. So the true nature of
4 this dispute in claim construction is Respondents' attempt
5 to construe the claims in a way that Figure 13 is not within
6 the scope of the asserted claims, because they practice
7 Figure 13. So if they can find a way to exclude Figure 13
8 from the claims, which it isn't, it gives them a
9 non-infringement argument.

10 Just to go through how the terms are used in the
11 claims that are asserted, the external and internal housing
12 components are recited in claim 1 of the '178 patent. And
13 it describes how these -- the function -- these components
14 perform.

15 And, indeed, with reference again to Figure 13,
16 Figure 13, the housing -- the potting material performs all
17 of the functions mentioned here in -- with respect to the
18 internal housing component. It defines an inner
19 circumferential surface of the finger-worn wearable device.
20 It's coupled with the external housing component, and at
21 least a portion of the inner circumferential surface of the
22 internal housing component is configured to contact a tissue
23 of a user when the finger-worn wearable device is being worn
24 by the user. That describes exactly what the potting
25 material in Figure 13 does and the potting material in

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1 Respondents' products, for that matter.

2 Claim 1 of the '244 patent claims it slightly
3 different. It claims a housing generally, then an external
4 housing component -- I'm sorry, an external housing, without
5 the word "component" -- and an internal potting. Of note,
6 this says the housing comprises an internal potting.

7 Claims inform claim construction just like the
8 specification. This is stating the housing comprises the
9 internal potting. Compare that to all the arguments letters
10 you're about to hear from Respondents about, oh, a potting
11 is not a housing. A potting performs a different role. A
12 potting fills space. It doesn't -- it doesn't provide a
13 structure. Well, this flies in the face of all of their
14 arguments.

15 Claim 1 of the '159 patent, again, claims a
16 housing generally and recites external and internal
17 housings. Also, claim 2 of the '159, not shown here,
18 recites that the internal housing is formed by potting in a
19 manufacturing potting step. Again, the claims providing
20 clues as to what housing means, and in this case housing
21 comprises potting material. Explicitly stated in the
22 claims.

23 Claim 17 is a little different, of the '759
24 patent. It claims a housing generally. It does not
25 distinguish between the internal and external housing

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1 components.

2 So what is the dispute with respect to claim
3 construction? Your Honor is likely familiar with our
4 proposed construction. It is identical to the construction
5 that Your Honor ordered in the 1398 investigation. And
6 Respondents also have that part of your construction in
7 their construction, but they have an addendum that's
8 highlighted in red.

9 Now, since this construction does come from a
10 1398 case, it does inform the discussion to figure out where
11 did it come from? Part of the -- and Your Honor's
12 construction is noted here in citation to Exhibit J at 14.
13 Part of it is a structure that encloses space. I think we
14 can agree that that's the ordinary, everyday meaning of
15 housing, of a housing.

16 It also says, "which does not necessarily exclude
17 potting material." This was added because both of the
18 proposed constructions in the 1398 case sought to exclude
19 potting material. The first one says a structure that
20 encloses, rather than fills space. And, indeed, we see that
21 argument throughout the briefs in this case, that potting
22 material fills space and, therefore, cannot be a housing.

23 That was one of the rejected constructions. The
24 other rejected construction was an internal structure
25 comprised of non-potting material. That's more direct, that

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1 the structure has to be non-potting material. And Your
2 Honor recognized in that case that these were both attempts
3 to exclude potting material from the housing. And Your
4 Honor rejected those attempts.

5 So what is the 1468 proposed construction about?
6 Well, it really bears no difference from the rejected second
7 construction here. A structure comprised of non-potting
8 material is a structure that cannot consist entirely of
9 potting. It's saying the same thing in a slightly different
10 way.

11 And Your Honor provided the justification, which
12 we'll discuss with respect to the intrinsic evidence, "the
13 specification specifically discloses that the external and
14 the internal housing may be made of potting material and
15 identifies overlapping materials that may be used as both a
16 housing and as potting material."

17 Your Honor also addresses an argument made here,
18 at the top of that paragraph. "Ultrahuman also contends
19 there was no written description support or enabling
20 disclosure." We'll discuss that. They make the same
21 argument again here.

22 Your Honor also noted there is nothing in the
23 language of claim 1 or claim 17 expressly precluding any
24 particular materials or category of materials from being the
25 internal or external housing components.

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1 or a housing is partially formed of potting material. What
2 does that mean? Do they mean that it can be 90 percent
3 potting material and 10 percent something else? Because
4 they're not talking -- their construction cannot apply to
5 this embodiment. And there's another embodiment in Figure
6 12D, I believe, where the external housing component is all
7 potting material.

8 Their construction that cannot consist entirely
9 of potting material flies in the face of these clear
10 examples in the patent.

11 And, Your Honor, I won't belabor this point, but
12 we were accused of misrepresenting the record when we said
13 they're making the same arguments that were made in the 1398
14 investigation, that Your Honor has already addressed. Well,
15 when I'm accused of or we're accused of making
16 misrepresentations to the Court, I take that seriously. So
17 we went back and we looked at their briefs in both cases.
18 And not only do they make the identical arguments in both
19 cases -- and there are two slides detailing these
20 arguments -- they're identical arguments and they seem like
21 they were written by the same person.

22 The first entry here, in both cases, they
23 objected to how the dispute was being framed. In the 1398
24 case, the actual dispute is whether the internal housing
25 component may be made of potting material alone. In the

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1 These findings -- this holding is at odds with
2 everything you're going to hear today from Respondents.

3 So what are the problems with Respondents'
4 construction? I've already noted the first one. It's the
5 same as the construction rejected in 1398 investigation.

6 It's also at odds with the intrinsic evidence.
7 And we'll talk about that. It's also -- seems to be
8 entirely unnecessary and unclear. When they say cannot
9 consist entirely of potting, they say we need that
10 construction because you can't have a device constructed
11 100 percent of potting material. Well, I say that's
12 unnecessary. None of the domestic industry products, none
13 of the accused products are constructed 100 percent of
14 potting material. They're asking Your Honor for an advisory
15 opinion on a product that's not at issue and that doesn't
16 exist.

17 It's also unclear. Now, if -- their argument is
18 that the entire housing cannot be a potting material, well,
19 the patent never says that. If their argument is that the
20 internal housing component cannot consist entirely of
21 potting material, the patent doesn't say that. The patent
22 says the opposite.

23 Look at Figure 13. The entire internal housing
24 component of Figure 13 consists of potting material.
25 Nowhere in the specification does it say a housing component

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1 1468 case, the only dispute here is that housing components
2 cannot be formed entirely of potting.

3 Next entry, the housing components may include
4 some potting, but they cannot be made solely from potting
5 material. In the 1468 case, Respondents seek to clarify
6 that the housing components cannot be formed entirely of
7 potting, even if they may be formed partially from potting.
8 Again, where does the specification say that? Nowhere.

9 Three more entries. "In complete contrast to a
10 housing, potting glue used to adhere components to a surface
11 is a material that fills -- rather than encloses -- a
12 space." In the 1468 case: "A 'housing' must be a
13 structural enclosure that defines and encloses space -- not
14 a filler or sealant that fills space after the housing is
15 assembled."

16 In the 1398: "The specification expressly
17 distinguishes potting glue from internal and external
18 housings." In 1468: "The specification consistently
19 distinguishes 'housing' from potting in all embodiments."

20 Your Honor, the point of all this is what they
21 should have said is that Your Honor was wrong. They are
22 arguing that Your Honor was wrong in the first case and
23 making the same exact arguments.

24 Now, looking at the evidence, Your Honor was not
25 wrong. Your Honor's decision relied on the intrinsic

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1 evidence such as the summary of the invention, which
2 explicitly states the external housing portion comprises a
3 substantially transparent external potting. It also says in
4 another section, the internal potting comprises a
5 substantially transparent external potting. The
6 specification states that the internal housing can be formed
7 of a polymer. The specification also states that the
8 external potting is a polymer.

9 The same materials. You'll see nowhere in the
10 patent where it says a component -- when a component is
11 formed of a potting material, it has to be formed of
12 something else too; it cannot be formed entirely of potting
13 material. That's not what the patent says.

14 Now, for their part, they make this argument
15 that -- again, it's an argument that we've seen before --
16 potting material and housing have different roles. Now, off
17 the bat, I will say that even if they're right about this,
18 they're asking for a special definition of housing that
19 departs from the ordinary meaning. I don't think there's
20 any dispute about that.

21 To adopt their construction, the Court must find
22 a clear and unmistakable redefinition of the ordinary
23 meaning of housing, lexicography, or disavowal. I don't see
24 that argued anywhere in their papers. They say, well,
25 housing has a different role from potting material. And

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1 cites a dictionary definition for those adjectives or
2 functions. On the next page, he cites a dictionary
3 definition that potting encases, protects, and embeds. I
4 have yet to see them describe a difference between
5 "enclosing" and "encases." And I can't discern one.
6 "Protecting" is protecting. And "embedding,"
7 when these components are embedded in potting material, and
8 potting material hardens, undoubtedly it's providing support
9 to these components.

10 So the expert essentially has equated the
11 functions of potting and housing in his declaration.

12 And unless Your Honor has any questions, I don't
13 believe I have anything further.

14 JUDGE JOHNSON HINES: I have two that should be
15 fairly simple. Is there any dispute on the level of skill
16 for these claim construction disputes?

17 MR. SCHULTZ: No, there is not, Your Honor.

18 JUDGE JOHNSON HINES: All right. Have the
19 parties proposed and agreed to a level of skill for purposes
20 of claim construction?

21 MR. SCHULTZ: I'm informed that our brief does
22 have a level of skill, level of ordinary skill in the art,
23 Your Honor.

24 JUDGE JOHNSON HINES: All right. You mentioned
25 Dr. Young. Was Dr. Young deposed?

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1 they're wrong about that too. They say housing is a rigid
2 structure and potting serves to seal or fill a space. Well,
3 I never -- they never state why filling a space somehow
4 disqualifies something from being a housing.

5 But let's explore this distinction. A housing is
6 a rigid structure. Well, in all of these rings -- and I
7 know Your Honor received some samples in the last case -- if
8 you look at the internal potting that defines the inner
9 surface of the ring, it is a rigid structure.

10 And I challenge Respondents to claim that it's
11 not. It's a rigid structure that encloses the components.
12 It's a rigid structure that protects the components and
13 encases them. Are those not functions performed by a
14 housing? They certainly are.

15 And the undeniable truth is that -- not that
16 potting is different from housing; potting is a type of
17 housing. It's a type of housing described in the
18 specification.

19 Now, they take us to task for not providing an
20 expert declaration, but expert testimony in contravention to
21 the intrinsic evidence shall be given no weight, according
22 to the Federal Circuit. So what did their expert actually
23 say? Well, he helps our cause.

24 On one page, he says a housing performs the
25 function of enclosing, protecting, and supporting. And he

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1 MR. SCHULTZ: We did not depose him, no.

2 JUDGE JOHNSON HINES: All right. Thank you. I
3 don't have any other questions.

4 MR. STANFORD: Your Honor -- excuse me -- Matthew
5 Stanford for Complainants. Would you like a paper copy of
6 these slides?

7 JUDGE JOHNSON HINES: I have one.

8 MR. STANFORD: Would your attorney advisor?

9 JUDGE JOHNSON HINES: We'll take one.

10 MR. STANFORD: May I approach?

11 JUDGE JOHNSON HINES: Yes.

12 MR. PENSABENE: Likewise, Your Honor, we have
13 paper copies of ours. I can bring them up.

14 JUDGE JOHNSON HINES: I have paper copies, but if
15 you could bring up one too, Mr. Pensabene.

16 MR. PENSABENE: Good morning, Your Honor. May I
17 proceed?

18 JUDGE JOHNSON HINES: Yes, please. Thank you.

19 MR. PENSABENE: Marc Pensabene from O'Melveny &
20 Myers representing the Samsung Respondents. I'll also be
21 arguing on behalf of the other Respondents in the case. So
22 you're not going to have multiple arguments.

23 JUDGE JOHNSON HINES: Great. Thank you.

24 MR. PENSABENE: I want to start off -- and it's
25 not, quite frankly, relevant to claim construction, but I

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1 just want to set the record straight. Counsel for
2 Complainant went on and on about how Oura is an innovator,
3 they came to the market fresh and developed this ring, and
4 then they invested a lot in the patent system, and
5 suggesting these patents originated with Oura.

6 Just to be clear, all four of these asserted
7 patents did not originate with Oura. These were, in fact,
8 cited as prior art to an Oura patent that Oura eventually
9 disclaimed. They disclaimed their own patent, and they
10 purchased these patents along with another company because
11 that company was first. So I just want to make sure that's
12 clear. Again, not relevant, but to the extent that the
13 Complainants addressed it, I just want to make sure the
14 record was clear.

15 There are four different patents here. They
16 all -- all the asserted claims, all of the asserted patents,
17 include housing or housing component as a term. And
18 although the terms are slightly different in each of the
19 patents, the parties completely agree that they should be
20 construed consistently.

21 The parties also agree that Your Honor's prior
22 construction in the 1398 investigation applies here. We
23 accept that. And so we agree that a housing is an external
24 structure that encloses space. And we agree that it may
25 include some potting material.

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1 Where the disagreement arises is the Respondents
2 just ask for clarification of a point that we respectfully
3 believe was not really fully addressed in the prior
4 investigation. Maybe it wasn't an issue. I don't know.
5 But it wasn't fully addressed, at least from the way we see
6 it. And that's the highlighted language in the Respondents'
7 construction.

8 Stated simply, the dispute is whether or not a
9 housing or a housing component can consist entirely of
10 potting. The Respondents submit that it cannot consist
11 entirely of potting. That would not be a housing. The
12 Complainant says, yes, there can be a housing, or a housing
13 component even, made entirely of potting.

14 And I just want to be clear, you know, we're not
15 asking for an advisory opinion. I believe counsel suggested
16 that nothing accused in this case has an all-potting housing
17 and therefore this is not relevant. Well, this is very
18 relevant to this case, Your Honor, because some claims just
19 claim a housing, some claims claim an external housing and
20 internal potting. So there are claims that describe the
21 internal pieces of potting. But there are some claims that
22 talk about an external housing and an internal housing.

23 And so it's the Complainant's position that that
24 internal housing component can be entirely potting. We say
25 that it cannot be. And so this is not an advisory opinion.

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1 It's a very real dispute.

2 I think there has also been a little bit of
3 confusion in Respondents' -- in the Complainant's brief and
4 even in their argument here today. They go on and on about
5 how Respondents' construction is just a rehash of what was
6 argued before, about materials. And, in fact, reading the
7 Complainant's opening brief, they misstate our position.
8 They misstate our construction as being "cannot consist
9 entirely of potting materials."

10 That's not what this is about. You know, while a
11 material, the choice of material certainly is a factor in
12 determining whether something is potting or a housing, it's
13 not the only determinative consideration. You also have to
14 consider the structure and function of the component to see
15 whether it's potting, a potting or a housing.

16 JUDGE JOHNSON HINES: Can I ask a question?

17 MR. PENSABENE: Sure.

18 JUDGE JOHNSON HINES: So Respondents' position is
19 that the claimed housing internal/external component, that
20 group of claim elements, it cannot consist entirely of
21 potting?

22 MR. PENSABENE: Correct, Your Honor.

23 JUDGE JOHNSON HINES: Okay. How is that
24 different from "cannot consist entirely of potting
25 material"?

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1 MR. PENSABENE: Well, I --

2 JUDGE JOHNSON HINES: Is there a difference or --
3 I think that's the point you're making, and I just want to
4 drill down on that.

5 MR. PENSABENE: It is my point in some regards.

6 And what I'm -- the point I'm trying to make is that the
7 choice of materials isn't going to determine whether it's a
8 potting material or a potting or a housing. And I think the
9 example of a polymer is a good example.

10 You can't just say something is a polymer and
11 from that decide whether it's potting or a housing. And
12 I'll get into this a little bit more later on, but that's
13 why we're trying to get away from focusing on what material
14 it is and determining what is its role, what is its
15 structure. Material is part of that, but that's not
16 determinative. You have to look at the whole.

17 JUDGE JOHNSON HINES: Okay.

18 MR. PENSABENE: Now, if you look at the
19 Respondents' actual construction, again looking at the
20 structure, the function, as well as material, we see that
21 the specification and the claims draw a very clear
22 distinction between the housing and the potting.

23 And the Respondents' construction preserves that
24 distinction. It keeps that distinction alive. And it's, in
25 fact, consistent with all the disclosed embodiments.

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1 Importantly, the Respondents' construction follows the plain
2 and ordinary meaning, and it's supported by extrinsic
3 evidence, by dictionary definitions and the expert
4 testimony.

5 Most of what you heard the Complainant talk about
6 was attorney argument. They're trying to rebut an expert
7 declaration with attorney argument. And in addition to the
8 lack of evidence, what they are proposing is something
9 that's not disclosed in the specification, it's not enabled,
10 and would be completely non-functional.

11 JUDGE JOHNSON HINES: May I ask another question?

12 MR. PENSABENE: Please.

13 JUDGE JOHNSON HINES: Is it Respondents' position
14 that the expert declaration is required here for claim
15 construction?

16 MR. PENSABENE: It's not required for claim
17 construction, but when you take a position as to how a
18 person of ordinary skill in the art would understand a word,
19 I think an expert declaration is going to carry a lot more
20 weight than pure unsupported attorney argument.

21 JUDGE JOHNSON HINES: All right. Thank you.

22 MR. PENSABENE: So now starting with the
23 specification, the specification describes four very
24 distinct embodiments. And in each one of these embodiments,
25 it distinguishes between a housing and a potting based on

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1 the structure and the function of those different
2 components.

3 Importantly, you'll see the specification never
4 describes any component that's comprised entirely of potting
5 as being a housing. And I want Your Honor, with all due
6 respect to listen very carefully to my argument,
7 Complainant's argument, but it's just argument. Look at
8 what the patent actually says. Look at what the evidence
9 actually says. And I think Your Honor can draw the right
10 conclusion.

11 So starting first with the first embodiment, it's
12 called the internal housing, external potting embodiment.
13 This is not my characterization. This is the way the
14 patentee characterized it.

15 And if you look at the specification describing
16 this embodiment, it consistently describes the inner piece,
17 the blue, 212, as being the internal housing, and the
18 internal housing is a function of defining the internal
19 surface, defining the space that is the ring.

20 The purple piece is called the external potting
21 or encapsulant. And you can see the potting, it serves the
22 encapsulant or filling purpose, that seal the components
23 inside, to protect those components from water, from dust,
24 from vibration, and things like that.

25 JUDGE JOHNSON HINES: Can you go back to the

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1 previous figure?

2 MR. PENSABENE: Sure, absolutely.

3 JUDGE JOHNSON HINES: So in Figure 12D, I assume
4 you would disagree that element 1214 is not an external
5 housing?

6 MR. PENSABENE: Absolutely, Your Honor. We
7 disagree that 1214 would be an external housing component.
8 And this is not -- again, this is where I'm asking Your
9 Honor not to just listen to attorney argument but to look at
10 the evidence.

11 The specification never calls 1214 an external
12 housing component, nowhere.

13 JUDGE JOHNSON HINES: Counsel for Oura argued
14 that potting is a type of housing. What's your response to
15 that?

16 MR. PENSABENE: We strenuously disagree. I mean,
17 a potting -- if you talk to someone of skill in the art like
18 Dr. Young, who submitted an expert declaration here, he'll
19 explain that a housing provides the shape. In other words,
20 it defines the outer shape of the ring. Okay? Without that
21 housing, you wouldn't have a ring shape.

22 The potting, as described in the patent, is
23 always applied to the housing. It takes the shape of the
24 housing. It doesn't have a shape on its own. And maybe
25 that's kind of an important way to look at it. It's the

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1 housing that provides the shape, the fundamental -- the
2 beams or the framework for what you're making. The potting
3 fills in.

4 Without the housing, you couldn't have the
5 potting.

6 JUDGE JOHNSON HINES: So how does that apply to
7 Figure 12D?

8 MR. PENSABENE: So 12D, the inner housing is
9 formed first, okay? So the inner housing forms the ring.
10 That's the metal part. You then put the electrical
11 components inside that little cavity there. And then the
12 potting is filled in around the electrical components.

13 It, they call, encapsulates them. And what that
14 means, it basically fills in all the space around the
15 electrical components and makes sure that they don't get
16 wet, that they don't get dirty because that would hinder the
17 functioning of it.

18 JUDGE JOHNSON HINES: Does the element 1214 in
19 Figure 12D define the outer shape of the ring?

20 MR. PENSABENE: It does form the outer shape of
21 it; in other words, the outer shape is the outside of the
22 potting, but the potting alone can't do that. In other
23 words, the potting alone doesn't define anything. It just
24 fills in space. It's like when I fill the glass of -- you
25 know, something with water, yes, the top surface of the

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1 water, you know, defines the top, but it doesn't mean it's
2 defining the shape of it.

3 JUDGE JOHNSON HINES: All right. Thank you.

4 MR. PENSABENE: If I turn now to embodiment 2,
5 this is kind of the reverse of the one we were just talking
6 about. It has got the housing on the outside, the external
7 housing component, and the potting is on the inside. Again,
8 the specification consistently refers to them, the blue
9 part, as being the external housing, and it does the
10 function of defining the space. It provides the
11 latticework, the framework.

12 The internal potting, it extends between it.
13 It's filled in there. It fills in that space. And here you
14 can see -- this is exactly what I was talking about -- how
15 the potting kind of fills in the space between the
16 electrical components and keeps them from getting wet, keeps
17 contaminants from getting in there. That's what a potting
18 is.

19 And, again, I'm not asking Your Honor to take my
20 word for it. You can read the declaration of Dr. Young, who
21 explains this in detail.

22 JUDGE JOHNSON HINES: In Figure 13, does element
23 1314 define the inner shape of the ring?

24 MR. PENSABENE: It depends what you mean --
25 again, it depends what you mean by "define." If you mean

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1 that that is the inner shape of it, yes. Does the potting
2 do that alone? No, it can't. It can't do that without
3 having the housing to support it. And the same would go for
4 the prior embodiment, embodiment 1.

5 The potting is not going to define anything
6 unless it has a housing to support it. Embodiments 3 and 4,
7 I'll concede, are less relevant to this case, but, again,
8 they are wholly consistent with the Respondents'
9 construction.

10 These -- this one has two housings, an internal
11 housing and an external housing. And actually this one -- I
12 take back what I just said. This one is relevant because
13 this is what claim 178 -- the claim 1 of the '178 patent is
14 directed to. Claim 1 of the '178 patent talks about an
15 internal housing and an external housing. And that's
16 exactly what we have here. And in this case, the potting is
17 just filled in around the outside, around the edges, to seal
18 it in there.

19 But, again, those pieces are described exactly
20 consistent with the Respondents' construction, you know,
21 that housing pieces are defining the shape, they're setting
22 the shape, and the potting layers are used -- they fill it
23 in. They seal it up. And, again, I said the same thing for
24 embodiment 4.

25 So what do we take away from this? And, again,

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1 this is not attorney argument. This is the facts, the
2 specification. The facts are that, across all embodiments,
3 the housing is described as defining or enclosing the space.
4 The potting is always described as sealing or filling in
5 that space.

6 What the specification never describes -- and I
7 challenge, you know, counsel to show us -- it never
8 describes a housing or housing component consisting solely
9 of potting. It never shows a component that's solely
10 potting and says, oh, here's the inner housing component.
11 It just doesn't do that.

12 It also doesn't show anything -- it doesn't show
13 anything that's exclusively potting as defining or setting
14 the shape. There's no embodiment that's just a potting
15 housing. There's no such thing.

16 Now, Oura makes a big deal, they claim that the
17 external housing component can be formed of potting
18 materials and potting materials -- can be formed of potting
19 materials. And what they rely on is something from the
20 specification that talks about the external housing portion
21 comprises potting and the internal housing comprises
22 potting.

23 And what they ask Your Honor to do is they ask
24 you to look at, you know, embodiments 1 and 2 and say these
25 are examples of that. You know, these are examples of the

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1 internal housing component being all potting and the
2 external housing being all potting.

3 But there's a couple of problems with this.
4 First of all, the specification never says -- it never
5 describes an embodiment where a housing or a housing
6 component is all potting. It is nowhere. There's nowhere
7 in the spec that says that.

8 This -- the quotes that they do rely on just say
9 that the external housing portion comprises potting, and the
10 internal portion comprises potting. It means that you could
11 include potting, which we don't dispute, but there's nothing
12 that says it can be all potting. It simply wouldn't
13 function. Again, I refer Your Honor to Dr. Young's
14 declaration for that. Also --

15 JUDGE JOHNSON HINES: Can you explain that a
16 little bit more? You refer to Dr. Young's declaration, but
17 what is it about potting that precludes it from being either
18 an internal housing or an external housing?

19 MR. PENSABENE: A housing, the way that term is
20 used, means that it provides structure. It provides the
21 basic shape. And that's exactly what we saw in all of these
22 embodiments.

23 They always have a housing component that
24 provides the basic shape. It could be the inner piece of
25 the ring. It could be the outer piece of the ring. But in

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1 every case, the housing provides that shape. It defines the
2 shape.

3 It determines how big that ring is. Is it going
4 to fit my finger or my daughter's finger? Okay? That's
5 what the housing does. And it defines the space in which
6 the electrical components are placed.

7 The potting -- and I think counsel actually
8 explained it pretty well -- the potting is applied as a
9 liquid, as a gel. It flows into something. And what does
10 it flow into? It flows into the housing. It flows around
11 the electrical components and, therefore, seals it up.

12 If you don't have a housing to support it, to
13 form the shape of the ring, you can't flow the potting into
14 anything. There's nothing to hold it. And there's nothing
15 in the specification that describes using potting alone to
16 form a ring.

17 JUDGE JOHNSON HINES: Thank you.

18 MR. PENSABENE: The other problem with counsel's
19 argument, and he pointed to, you know, Figure 12D and he
20 pointed to Figure 13, and he said this one in particular is
21 very special. You know, he went on and on about this one,
22 very special. You know, he says the patent says -- and I
23 tried to take notes quickly. He looked at Figure 13 and
24 said the patent says, look, here's an internal housing made
25 of potting.

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1 water or jello or facial cream. So, clearly, the reference
2 to any material in that first sentence doesn't mean what
3 counsel apparently is suggesting.

4 And, likewise, the fact that an internal housing
5 or the external housing can be a polymer and potting can be
6 a polymer, that's not determinative. Again, we're trying to
7 get away with focusing too much on the material, looking at
8 the structure and function.

9 And looking at the structure and function, we see
10 that a -- potting and housing are not interchangeable.
11 They're not the same thing.

12 And here we've got the testimony of Dr. Young to
13 address this directly. And he explains that the
14 specification's reference to polymers, the way it has been
15 argued by Complainant is misleading. Okay? Because
16 polymers are a broad genus of molecules, a broad genus of
17 substances.

18 And for a housing, you could use a hard plastic,
19 and a hard plastic is considered a polymer. Okay? And it
20 would provide the shape and the structure. But a hard
21 plastic would not function well as a potting. For a
22 potting, you would use a softer material like a silicone.
23 And this is from the specification, these examples. It's
24 not something he made up.

25 You would use a softer polymer, like a silicone,

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1 And I'll -- can we jump to the end, please,
2 Mr. Yagura.

3 Here's their slide, okay? And what they do, they
4 point to 1314 and they say, look, it's an internal housing;
5 the patent says it. And that's exactly what counsel said.

6 But what I thought was interesting is that he
7 didn't put any of the specification up. And the reason
8 is -- if you go back to 17, please -- the reason is the
9 specification doesn't call 1314 an internal housing. Never.
10 Counsel didn't show you anything and he can't show you
11 anything because it doesn't exist. The patent calls 1314
12 internal potting throughout. There's nothing that describes
13 that as being an internal housing. That's pure attorney
14 argument.

15 Now, Oura also makes this material overlap
16 argument. Right? They say, the internal housing, the spec
17 says the internal housing can be formed of any material,
18 and, in fact, the internal housing can be formed of a
19 polymer such as plastic. And then they conclude that,
20 because the internal housing can be formed of a polymer, and
21 potting is a polymer, therefore, the housing can be potting.

22 And there's a number of problems with this
23 argument. First of all, I don't think anyone, let alone a
24 person of skill in the art, is going to take the first
25 sentence literally. An internal housing cannot be formed of

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1 and the silicone would flow around the components and seal
2 them and encase them. And that's exactly what the potting
3 does. So just saying that something is a polymer and that
4 both things can be made of a polymer doesn't make them
5 interchangeable.

6 And, actually, the patent makes this point better
7 than even I could. The patent talks about many different
8 things that could be made of polymers, things like the
9 actuators, the optical element, the cover on the case. All
10 of these things can be made of polymers, but it doesn't mean
11 that the cover on the case or that the actuators are
12 housings.

13 So you have to look beyond just the fact that
14 it's a similar material or the same class of material, I
15 should say. In fact, you know, common sense also supports
16 this. If you think about it, the tire on your car and the
17 bumper cover on your car are both made of polymers, but no
18 one would think to take the rear bumper off your car, wrap
19 it around your wheel, and call it a tire. So, again, the
20 focus on polymers being used for both, I think, is
21 misleading and doesn't really support the Complainant's
22 construction.

23 I want to talk briefly about the claim language.
24 Again, the claim language, looking at the actual claim
25 language, this strongly supports the Respondents'

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1 construction. When it talks about the external housing or
2 the internal housing, it talks about those things defining
3 the inner circumferential surface. It defines the shape.
4 In other words, that is what is the latticework, the
5 framework, the girders, if you will, upon which the ring is
6 built. It also talks about the cavity being filled -- being
7 formed between these components.

8 And, in fact, claim 17, you know, makes clear
9 that they define the cavity. Likewise, look at 244 patent,
10 claim 1 --

11 JUDGE JOHNSON HINES: Can we go back to the
12 previous slide?

13 MR. PENSABENE: Sure.

14 JUDGE JOHNSON HINES: Do I understand correctly
15 the PTAB held claim 17 invalid?

16 MR. PENSABENE: I honestly don't recall, to be
17 honest, Your Honor.

18 JUDGE JOHNSON HINES: All right.

19 MR. PENSABENE: I apologize.

20 JUDGE JOHNSON HINES: No worries.

21 MR. PENSABENE: Looking at the claims of the '244
22 patent, again we see they consistently talk about the
23 external housing having the exterior surface of the ring,
24 the internal potting surrounds the battery, surrounds the
25 printed circuit board, surrounds the components. It flows

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1 typically a rigid material, typically like a metal or a
2 solid or hard plastic, and it forms the external and
3 internal structures of a device. It defines the shape of
4 it.

5 The potting, on the other hand, serves a
6 different role, and it's formed with different materials.
7 So materials are a piece of it but not determinative. The
8 potting fills the voids. It flows into it. It flows into
9 and takes the shape defined by the housing. And a person of
10 ordinary skill would understand that, from this
11 specification, these are two different things.

12 Can we go to the end, again, Mr. Yagura?

13 So, again, this is one of Complainant's slides.
14 And they didn't have a rebuttal to Dr. Young's expert
15 declaration. They didn't depose him. They don't have
16 anything to cross him on. They don't have anything to
17 disprove what he says.

18 So what does Oura do? They put up this slide and
19 they say, look, these words mean the same thing in
20 Dr. Young's report, you know, for a housing and for a
21 potting. These words mean the same thing, and so you can't
22 believe what he says.

23 Well, two things there. First of all, that's
24 just attorney argument. They don't have an expert coming in
25 and saying that. They don't have dictionary definitions to

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1 into those things. It encapsulates them and protects them
2 from things like water. Very different purposes.

3 And, finally, if we turn to the ordinary meaning
4 of these terms, we see that, again, the Respondents'
5 construction is fully supported by the dictionary
6 definitions. You know, it describes the housing as being a
7 container, enclosing, supporting, protecting. It's a case
8 or enclosure. It's like the outside of your phone or the
9 outside of a computer. It's the outside that forms the
10 shape of the whole thing.

11 Potting, on the other hand -- and, again, I think
12 counsel did a pretty good job describing this -- that's
13 something that flows into something. It flows in as a
14 liquid or gel, and it surrounds something, it embeds them,
15 it encases them, which is very different than simply
16 enclosing. You know, your computer cover encloses the
17 computer, but to encase something, you have to, like,
18 completely surround it. It fills the voids. It fills the
19 spaces around it to protect it from water. That's the
20 purpose of potting.

21 Again you don't have to take my word for it,
22 attorney argument. You don't have to rely solely on the
23 dictionaries. We also submitted the declaration of an
24 expert, Dr. Young. And he explained, consistent with all
25 these things, all these definitions, that a housing is

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1 support that. That is just attorney argument, and that
2 should be given no weight.

3 And if we're going to submit attorney argument on
4 this, I would submit that supporting something is very
5 different than embedding it. Enclosing it is very different
6 than encasing it. As I said, when you talk about supporting
7 something, that's the framework on which you build
8 something. When you embed something, you're, like, covering
9 it with a protective material completely surrounding it so
10 that no water gets in. Very different concepts.

11 So, you know, Oura's attempt to rebut Dr. Young
12 really falls flat, should be given no weight at all.

13 Can we go back to 24, please.

14 And, lastly, I just want to -- I also want to
15 talk about the validity considerations. As Dr. Young
16 testified, the specification does not enable a person of
17 ordinary skill in the art to make a ring with a housing made
18 entirely of potting. It's just nowhere disclosed and
19 there's no enablement.

20 You know, if you have the internal housing
21 component and the external housing component and they're all
22 made of potting, there's no disclosure how to make that. So
23 you can't construe "housing" or "housing component" to
24 include an all-potting material. It's just not supported or
25 enabled.

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1 And the last point, I suppose, is just the fact
2 that Oura criticizes our use of a negative limitation, but,
3 you know, we do more than submit a negative limitation. We
4 affirmatively define it. And then we exclude what should be
5 excluded. This is appropriate not under Your Honor's ground
6 rules but also a Federal Circuit precedent, the Lenovo case,
7 which we cite in our brief.

8 So, in conclusion, I will just say that the
9 Respondents' construction preserves this clear distinction
10 in the specification between the housing and the potting.
11 It's consistent with all embodiments and follows the plain
12 and ordinary meaning, as well as the extrinsic evidence and
13 expert declaration. And what Oura does is they don't point
14 to anything, anything in the specification that identifies
15 an all-potting component as being a housing component.
16 Nowhere. You won't see it at all.

17 Unless there is any questions, Your Honor?

18 JUDGE JOHNSON HINES: I do. Can you return to
19 your slide 15.

20 MR. PENSABENE: 15, sure. That one?

21 JUDGE JOHNSON HINES: Yes. Thank you. And there
22 you are addressing two statements in the specification at
23 column 2, lines 21 to 22, and column 2, lines 44 to 45.

24 MR. PENSABENE: Correct.

25 JUDGE JOHNSON HINES: And in the second one,

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1 column 2, lines 44 to 45, the specification states that the
2 internal housing portion comprises a substantially
3 transparent internal potting, right?

4 MR. PENSABENE: Correct.

5 JUDGE JOHNSON HINES: So I wanted to get an
6 understanding from you. In your view, would -- how would
7 one of skill in the art understand that disclosure?

8 MR. PENSABENE: That you could have the internal
9 housing have potting material formed on the inside of it so
10 then, when you put it together, it seals things up.

11 JUDGE JOHNSON HINES: Okay. Does that disclosure
12 mean that the internal housing portion can be exclusively
13 potting?

14 MR. PENSABENE: We don't read it that way, Your
15 Honor.

16 JUDGE JOHNSON HINES: Why not?

17 MR. PENSABENE: Again, because it only says
18 "comprising." It means it includes potting. It doesn't
19 exclude other material. And there's absolutely no
20 disclosure suggesting that you can make something entirely
21 of potting.

22 If the term is construed to mean the internal
23 housing can be all potting, the external housing can be all
24 potting, that is just not supported by the specification,
25 and it would not be functional. It's not enabled.

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1 There's no teaching of how to form that unless
2 you have some housing to support it.

3 JUDGE JOHNSON HINES: All right. Is that
4 understanding that you just explained -- it seems to focus
5 on what "comprises" means.

6 MR. PENSABENE: It -- that word is a part of the
7 understanding, yes. It's also informed by what the spec
8 discloses.

9 JUDGE JOHNSON HINES: Right. So, in your view,
10 one of skill would see that disclosure and understand that
11 the internal housing portion can include potting but must
12 include other materials?

13 MR. PENSABENE: Yes, Your Honor.

14 JUDGE JOHNSON HINES: All right. And is the same
15 true with respect to the disclosure at column 2, lines 21 to
16 22, with respect to the external housing portion?

17 MR. PENSABENE: Yes, Your Honor.

18 JUDGE JOHNSON HINES: All right. Thank you.

19 MR. PENSABENE: Thank you, Your Honor.

20 MR. SCHULTZ: Your Honor, I have nothing further.

21 JUDGE JOHNSON HINES: All right. Thank you.

22 And, Mr. Pensabene, I think I may have forgotten
23 to ask you a question.

24 MR. PENSABENE: I'll come back.

25 JUDGE JOHNSON HINES: It's quick, so you can stay

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1 there.

2 MR. PENSABENE: Okay.

3 JUDGE JOHNSON HINES: Is there agreement among
4 the parties about the level of skill in the art?

5 MR. PENSABENE: Yes.

6 JUDGE JOHNSON HINES: And is Mr. Schultz correct
7 that the statement that Complainant made on the level of
8 ordinary skill in their briefs is what Respondents agree to?

9 MR. PENSABENE: If we haven't stated one that
10 agrees with that in our brief, then, yes, that is what we
11 agree to.

12 JUDGE JOHNSON HINES: Okay.

13 MR. PENSABENE: There's no dispute about the
14 level of skill.

15 JUDGE JOHNSON HINES: All right. Thank you. I
16 just wanted to clarify that point. Thank you very much.

17 MR. PENSABENE: Thank you, Your Honor.

18 JUDGE JOHNSON HINES: All right. Then hearing
19 nothing further from Complainant, I think we can move on to
20 the next term.

21 Actually, before we do that, why don't we take a
22 break, and we'll come back in 15 minutes.

23 (A recess was taken at 10:18 a.m., after which
24 the proceedings resumed at 10:33 a.m.)

25 JUDGE JOHNSON HINES: Thanks, please be seated.

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1 All right. Before we move on to the next term, I
2 wanted to return to the issue of the Samsung individual
3 witnesses.

4 Thank you.

5 When we were chatting earlier, there was mention
6 of Mr. Park?

7 MR. TRAINOR: Correct.

8 JUDGE JOHNSON HINES: I didn't see Mr. Park in
9 the letters, but I understand that a subpoena -- I signed a
10 subpoena for Mr. Park.

11 MR. TRAINOR: Yes.

12 JUDGE JOHNSON HINES: And that it was served.

13 MR. TRAINOR: Correct.

14 JUDGE JOHNSON HINES: Okay. March 5th and March
15 6th are the dates for that, which noticed a deposition on
16 March 23rd.

17 MR. TRAINOR: Correct.

18 JUDGE JOHNSON HINES: Okay. Obviously those
19 dates can change, notice dates. Is that deposition moving
20 forward pursuant to that subpoena?

21 MR. TRAINOR: It will, Your Honor.

22 JUDGE JOHNSON HINES: All right. Have you
23 provided a date for Mr. Park's deposition?

24 MR. TRAINOR: We are obtaining a date for
25 Mr. Park and will provide that to Oura shortly.

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1 MR. TRAINOR: That is correct, Your Honor.

2 JUDGE JOHNSON HINES: All right. Then counsel
3 for Oura, take that into account. It sounds like,
4 Mr. Trainor, that there's already been contact with Mr. Kim,
5 Mr. Chiou, Mr. Rahman, correct?

6 MR. TRAINOR: That is correct, Your Honor.

7 JUDGE JOHNSON HINES: Okay. I want to make one
8 thing clear in proceeding this way. I will accept
9 proceeding this way because it will resolve the dispute and
10 get discovery to move forward. I want to make crystal clear
11 that we are not proceeding this way because I necessarily
12 agree with Samsung's position.

13 MR. TRAINOR: Understood, Your Honor.

14 JUDGE JOHNSON HINES: That is, it should not be
15 stated later that there is agreement that the separate
16 corporate status of the entities that employ Mr. Kim, Mr.
17 Chiou, or Mr. Rahman are not under the control of the
18 Samsung Respondents. There is no decision on that either
19 way.

20 MR. TRAINOR: Understood, Your Honor.

21 JUDGE JOHNSON HINES: Okay. I don't want this to
22 be used later to say that discovery in some other
23 investigation or to the extent there are trial subpoenas or
24 anything like that, that there is any relationship. This is
25 solely to resolve this issue here.

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1 JUDGE JOHNSON HINES: Okay.

2 MR. TRAINOR: We are in contact with him and are
3 representing him, even though he is a former employee.

4 JUDGE JOHNSON HINES: Thank you, okay.

5 For Mr. Lee, Mr. Kim, Mr. Chiou, Mr. Rahman, my
6 understanding is that you have said that the Samsung
7 Respondents would accept subpoenas for the depositions of
8 those individuals. Is that correct?

9 MR. TRAINOR: Except for Mr. Lee, who I believe
10 he is at Samsung Biologics. Samsung Biologics is a
11 completely separate entity from the Samsung electronic
12 entities.

13 JUDGE JOHNSON HINES: All right. So for Mr. Kim,
14 Mr. Chiou, and Mr. Rahman, the Samsung Respondents have said
15 they would accept subpoenas for those depositions.

16 MR. TRAINOR: That is correct, Your Honor.

17 JUDGE JOHNSON HINES: Okay. So for those three
18 individuals, I will ask Oura to apply for subpoenas for
19 those individuals's depositions and can -- counsel, can that
20 be done by tomorrow?

21 MR. PLUTA: Yes, Your Honor.

22 JUDGE JOHNSON HINES: All right. I believe,
23 Mr. Trainor, that you said that the Samsung Respondents
24 would accept shorter than the normal response times for
25 subpoenas issued to Mr. Kim, Mr. Chiou, and Mr. Rahman?

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1 MR. TRAINOR: Completely understood. We will not
2 be making this argument.

3 JUDGE JOHNSON HINES: All right.

4 Now, with respect to Mr. Lee, Samsung has taken
5 the position that the Samsung Respondents here have a
6 different relationship with that entity and will not agree
7 to accept a subpoena for Mr. Lee, correct?

8 MR. TRAINOR: Correct, Your Honor.

9 JUDGE JOHNSON HINES: All right. Oura is free to
10 apply for a subpoena to Mr. Lee. In this situation where
11 presumably Respondents, the Samsung Respondents' counsel is
12 not representing Mr. Lee, the response time should not be
13 shortened for that subpoena.

14 I would ask Oura to apply for that subpoena by
15 tomorrow as well, along with the subpoenas to the other
16 individuals we just addressed and then we will move forward
17 on that basis. I am cognizant of the time frame for the
18 close of fact discovery. My view is that the parties have
19 been in good faith engaging in discussions about how
20 discovery from a number of individuals, including Mr. Lee,
21 should proceed.

22 So if there is a need to go beyond the deadline
23 for fact discovery for discovery from Mr. Lee, I will allow
24 that. I will ask the parties to let me know and to seek an
25 extension of the deadline for fact discovery if that's

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1 needed for Mr. Lee.
 2 Are there any questions on how we are proceeding
 3 with Mr. Lee?
 4 MR. TRAINOR: No, Your Honor.
 5 MR. PLUTA: No, Your Honor.
 6 JUDGE JOHNSON HINES: All right. Is there
 7 anything else we should discuss with respect to discovery
 8 from Samsung?
 9 MR. TRAINOR: Not today, Your Honor.
 10 JUDGE JOHNSON HINES: Okay. Thank you. We can
 11 move on to the next term.
 12 MR. YAGURA: Good morning, Your Honor. Ryan
 13 Yagura of O'Melveny & Myers on behalf of all Respondents.
 14 The term is "substantially transparent."
 15 May I proceed?
 16 JUDGE JOHNSON HINES: Please.
 17 MR. YAGURA: So the dispute over whether the term
 18 "substantially transparent" in claim 10 of the '244 patent,
 19 the dispute is whether it is definite or indefinite.
 20 Respondents propose the term is indefinite because the
 21 intrinsic record provides no guidance, no boundaries, no
 22 definitions on what constitutes the degree of transparency
 23 required to satisfy this claim term.
 24 Complainants, on the other hand, their position
 25 is that it only requires a degree of transparency -- and I

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1 appears. If we could jump to the specification, this is now
 2 slide 33. The '244 patent has over 50 figures, if you count
 3 all the subparts, nearly 50 columns of text. So we will
 4 call it a long patent specification.
 5 However, the specification really provides no
 6 definitions, no boundaries, no guidance as to what
 7 constitutes "substantially transparent." It provides no
 8 examples for us to take a look at, no data.
 9 In fact, this term, "substantially transparent,"
 10 it only appears twice in the 50 columns of text in the
 11 specification. So the first passage is at column 35, lines
 12 38 to 41. This is talking about a box, the lid of a box
 13 that holds a wearable computing device or WCD. And it says
 14 that the lid can be substantially transparent to allow
 15 viewing of the WCD while enclosed therein and can be made of
 16 any type of material, such as polymer, glass, et cetera.
 17 So we're talking about a level of transparency in
 18 a box, so that when the consumer is looking through the box,
 19 the consumer can actually see that there is the wearable
 20 computing device within it. That provides no guidance
 21 whatsoever as to what "substantially transparent" means in
 22 the context of a wearable computing device like a ring where
 23 you're passing infrared or red light from a vertical cavity
 24 surface emitting laser through the potting to the user's
 25 skin and, depending upon the characteristics of the user's

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1 will just quote here -- sufficient to permit visible
 2 infrared or near infrared light to pass through the internal
 3 potting.
 4 So in Complainant's view, any amount of
 5 transparency that allows any amount of light to pass through
 6 the potting would satisfy this limitation. Your Honor is
 7 plenty familiar with the case law.
 8 I've put on slide 30 just recent Federal Circuit
 9 cases that affirm that when it comes to terms of degree,
 10 like substantially transparent, they are indefinite unless
 11 the intrinsic record, which is the claims, the
 12 specification, and the file history provide, you know, some
 13 objective guidance or some objective boundaries that would
 14 tell one of ordinary skill in the art what is and -- what is
 15 within and what is without the claim term.
 16 I am going to jump to slide 32, Your Honor. This
 17 is claim 10. Claim 10 recites a housing, which we have
 18 talked about quite a bit today. That housing has an
 19 external housing and an internal potting. And it is really
 20 the internal potting term I would like to focus on. It
 21 says: An internal potting at least partially surrounding a
 22 curved battery, a printed circuit board, and one or more
 23 components wherein the internal potting is substantially
 24 transparent to light.
 25 So that's the context in which this claim term

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1 skin, back to a sensor to then take some sort of a health
 2 measurement. This is talking about what transparency is
 3 required to see the product within the box.
 4 The second usage of "substantially transparent"
 5 is at column 39, lines 47 to 50. Now, this is talking about
 6 a timepiece computing device, also called a TCD, which is
 7 essentially a wristwatch, not a ring. And in this case, the
 8 specification states the overmold can be transparent or
 9 substantially transparent to allow electromagnetic radiation
 10 to pass through to be incident upon one or more components
 11 of the TCD or the wristwatch.
 12 And so here we're talking about really the bottom
 13 portion, Figure 45B, that is the bottom portion of the
 14 wristwatch. And you can see it encapsulates both the
 15 printed circuit board and the battery, which are 4550 and
 16 4540, I realize there's two 4550s. I think that's a typo in
 17 the patent but, anyway, it encapsulates those two
 18 components. It doesn't say what the substantial
 19 transparency is used for here, though.
 20 In other words, it does allow electromagnetic
 21 radiation to pass through to be incident on one or more
 22 components but it says nothing about what the components
 23 are. If we look at the patent, there are a lot of
 24 components there could be here.
 25 So, in any case, this teaches nothing at all

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1 about what level of substantial transparency is required
2 again for the ring when we're talking about the embodiment
3 where it is VCSELs or vertical cavity surface emitting
4 lasers, transmitting light on to a skin, depending upon the
5 nature of the user's skin, reflecting it back to sensors.

6 One other thing that is relevant about that
7 particular passage, Your Honor, in the same sentence, it
8 says overmold can be transparent or substantially
9 transparent. So it is not using these two terms
10 interchangeably. This is referring to some of the case law
11 that the Complainants have cited.

12 It, in fact, differently is referring to these as
13 two different design options. In other words, the overmold
14 can be either transparent or substantially transparent.
15 They must have two different meanings to be used in this
16 way.

17 If we go to slide 36, Complainants have pointed
18 Your Honor to different portions, three different portions
19 of the specification. All of those portions of the
20 specification use the word transparent. None of these
21 mention what substantially transparent is.

22 So here it talks about transparent to allow
23 light, electromagnetic radiation, such as visible IR or UV
24 light sources from inside the housing to pass through the
25 external -- this potting, but none of these passages say

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1 what degree of transparency would allow for this to happen.
2 We don't know whether it is 1 percent or 10 percent or
3 40 percent. There's absolutely no objective guidance given
4 in the patent specification, despite it being as long as it
5 is.

6 Just referring to Oura's plain -- alleged plain
7 and ordinary meaning of the term, transparent sufficient to
8 permit visible infrared or near infrared light to pass
9 through the internal potting, we see three problems with
10 this construction, Your Honor. The first is that this
11 doesn't really distinguish a transparent from a
12 substantially transparent material, even a transparent
13 material would also allow this.

14 The second is that if you interpret this broadly,
15 it would allow any material that has any degree of
16 transparency that allows any amount of light to pass through
17 the internal potting that would also be incorporated in this
18 construction.

19 And, finally, we have submitted the un rebutted
20 declaration of Dr. Young. The word sufficient adds more
21 ambiguity than it really solves. So, in other words, what
22 amount of light is sufficient would really depend, as
23 Dr. Young has opined, on the power of the vertical cavity
24 surface emitting laser, the characteristics of the user's --
25 particular user's skin, of which there can be a wide range

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1 depending upon the person, and also the degree of
2 sensitivity of the sensors.

3 So, in other words, there is all these things
4 there that when you read the specification in its entirety,
5 you can't tell right away, you can't tell from the
6 description what level of transparency would be sufficiently
7 transparent.

8 Okay. Do you have a question, Your Honor?

9 JUDGE JOHNSON HINES: I do. I didn't know if you
10 were finished.

11 Can you go to the claim language, the language of
12 claim 10. In particular, at the end of the claim, there is
13 an element that starts a first light-emitting diode
14 configured to emit visible light.

15 MR. YAGURA: Yes, Your Honor. This is slide 32.

16 JUDGE JOHNSON HINES: Thank you. So that portion
17 of the claim recites a first light-emitting diode, a second
18 light-emitting diode, wherein the first LED and the second
19 LED are positioned to emit one or more of the visible light,
20 the infrared light or the near infrared light through the
21 internal potting toward the tissue of the user.

22 I want to get your understanding of that claim
23 requirement relative to the recitation that the internal
24 potting is substantially transparent.

25 MR. YAGURA: Yes, Your Honor. So my

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1 understanding of that limitation, the first light-emitting
2 diode limitation, is that the potting has to be sufficiently
3 transparent, so depending upon the power of the
4 light-emitting diodes, that enough of the light gets through
5 such that it would actually reflect off of the tissue. And
6 then, to be clear -- and that is what Complainants have
7 said.

8 But I think we have to go further than that. The
9 next limitation says one or more light sensors. It has to
10 be enough light that it will actually reflect off of a
11 tissue and tissue are all different, depending upon, say,
12 characteristics like pigmentation.

13 It has to reflect off the tissue enough of that
14 light sufficient to be detected by the sensors that are
15 recited in the last element, and sufficient so the sensors
16 can then process that information to make some sort of a
17 calculation, as we know from the patent specification.

18 JUDGE JOHNSON HINES: Okay. Then why isn't --
19 aren't those recitations of the first light-emitting diode,
20 the second light-emitting diode, and the one or more light
21 sensors, why don't those operations that you have just
22 explained, why don't they inform what "substantially
23 transparent" means earlier in the claim?

24 MR. YAGURA: Yes, Your Honor. It is because when
25 one of ordinary skill reads the entire claim and the

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1 specification, you don't know -- that person doesn't know
2 whether it is 10 percent transparency, 30 percent
3 transparency, how much transparent -- what are the
4 boundaries of how much transparency will work for this case,
5 right?

6 In other words, an expert would have to go
7 through and take a vertical cavity surface emitting laser of
8 some amount of power, sensors of some amount of sensitivity,
9 and reflect them off of a variety of different types of skin
10 to figure out when you get enough signal to get the signal
11 required for processing this information.

12 In other words, it doesn't tell one of ordinary
13 skill in the art how you do this.

14 JUDGE JOHNSON HINES: All right. Thank you very
15 much. That was helpful.

16 MR. YAGURA: Sure, Your Honor.

17 So I think I ended by talking about on slide 37,
18 that Dr. Young had testified that one of ordinary skill in
19 the art can't tell how much transparency is needed depending
20 upon the different components used to make this all work.
21 They needed to have provided a range of transparencies that
22 would work for the intended vertical cavity surface emitting
23 laser, the intended type of person who would use it, and the
24 intended types of sensors being used.

25 Oura also pointed to expert testimony but to

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1 transparent transparency. He was talking about filtering,
2 the property of the materials called filtering which is some
3 materials will naturally filter some wavelengths of light
4 and other wavelengths of light.

5 So he was saying no, that is not true. Materials
6 -- you can have a completely transparent material that
7 allows all red light to pass through but it may not allow,
8 for example, purple light to pass through. And for the
9 purposes of this invention, this is kind of a red-herring.

10 As long as, if you're using a VCSEL laser, a
11 vertical-cavity surface-emitting laser that passes a red
12 light through, as long as it is transparent and all of the
13 red light passes through and is reflected back to the
14 sensor, it doesn't really matter if the material just so
15 happens to filter out, say, blue light.

16 Anyway, those are the two contexts in which they
17 cite to Dr. Anthony's position. We think that is extrinsic
18 evidence in a completely unrelated proceeding and it deals
19 with issues that really aren't the critical issue here,
20 which is how much -- how transparent is substantially
21 transparent.

22 Your Honor, in slide 41 we have tried to
23 summarize all of the cases that support our position. And I
24 won't go through them all. But I think they all have one
25 thing in common, whether you're talking about what is

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1 testimony in a different proceeding. So Oura pointed to
2 testimony of an expert, Dr. Anthony, who is in a post-grant
3 review proceeding for a patent that's not at issue in this
4 case, the '702 patent, as informative of the indefiniteness
5 issue here but his testimony wasn't.

6 In that case Dr. Anthony's statements were made
7 in the context of evaluating whether two prior art
8 references, this is Schroeder and LeBoeuf, whether the two
9 of them, which combined taught a ring, a wearable computing
10 device with a completely transparent internal potting
11 material, whether that was sufficient to satisfy the
12 substantially transparent requirement of the '702 patent
13 claims.

14 All he was really arguing is that a fully
15 transparent material would by definition satisfy a
16 requirement for a substantially transparent material. He
17 really wasn't addressing the question as to whether or not
18 this was a definite term.

19 They also point to his reply declaration in which
20 he was rebutting the testimony of Oura's expert,
21 Dr. Mercier, who was arguing at the time that the -- a
22 substantially transparent material had to allow all light to
23 pass through.

24 All wavelengths of light to pass through. What
25 Dr. Anthony was stating, it really had nothing to do with

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1 substantially blur-free in the context of image processing
2 as in the Clear Imaging Resource case -- Research case, or
3 whether you're talking about for example when a bore hole,
4 when two bore holes are in substantially opposite
5 directions, as in the exploratory case, the issue is that
6 the courts all found, whether it was the International Trade
7 Commission, whether it was district courts or the Federal
8 Circuit affirming district court positions, they all found
9 that unless the specification provides some sort of
10 objective guidance, some boundaries as to what constitutes
11 the substantially part of those actions, that the claims are
12 indefinite.

13 In all fairness, I've also summarized Oura's
14 cases. These are the cases that stand for Oura's position.
15 This is slide 42. And here what I would say these have in
16 common is that these are cases in which there were objective
17 boundaries somewhere in the intrinsic record. So, for
18 example, in the Eibel case, substantial pitch, the
19 specification provided an actual angle that was a
20 substantial pitch, four degrees or 4 percent.

21 In the case of Enzo, and in the case of Ecolabs,
22 this is not substantial -- not interfering substantially
23 linkage groups or substantially uniform detergents. There
24 were arguments, there was data provided in the file history
25 that showed examples of not interfering linkage groups or

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1 examples of uniform or not substantially uniform detergents.
 2 And, finally, I think they place most -- spend
 3 most of their time on this case Ultravision, in which Judge
 4 Payne in the Eastern District of Texas, he actually
 5 construed "transparent." And I think that case is very
 6 different than our case, Your Honor.

7 What Judge Payne said there is that the patentee
 8 used the terms "transparent" and "substantially transparent"
 9 interchangeably, and construed them both to be transparent
 10 or as transparent as humanly possible, I think is what he
 11 said.

12 But in that case, he found that they were used
 13 one in the same, whereas in our case, I think as I pointed
 14 out earlier, Your Honor, they are used as two alternate
 15 embodiments, the wristwatch embodiment said that the
 16 overmold can be transparent or substantially transparent.

17 What I would also say, Your Honor, is that Judge
 18 Payne issued two decisions at the same time. This is
 19 October of 2020. He issued the Ultravision decision finding
 20 these two terms interchangeable and, therefore,
 21 substantially transparent, transparent being the same, but
 22 he also issued within days of that the Clear Imaging
 23 Research versus Samsung case, in which he decided that
 24 substantially blur-free, and blur free were not used
 25 interchangeably in the specification.

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1 And although the purpose of substantially
 2 blur-free was recited in the claims and in the specification
 3 that you're trying to get an image that has low amounts of
 4 blur, the specification didn't provide any boundaries or
 5 guidance as to what constitutes substantially blur-free. So
 6 whereas he found substantially transparent to be transparent
 7 and, therefore, definite in the Ultravision case, he found
 8 substantially blur-free to be indefinite in the Clear
 9 Imaging Research case. And I think when you look at those
 10 cases, you have to really understand his reasoning, we have
 11 to look at them as a pair.

12 JUDGE JOHNSON HINES: All right.

13 MR. YAGURA: And that's my argument, Your Honor.

14 JUDGE JOHNSON HINES: Thank you --

15 MR. YAGURA: Thank you.

16 JUDGE JOHNSON HINES: -- very much.

17 MR. SIDDIQUI: Good morning, Your Honor.

18 Saqib Siddiqui for Complainant. May I proceed?

19 JUDGE JOHNSON HINES: Yes, please.

20 MR. SIDDIQUI: Thank you.

21 So, Your Honor, going straight to the claim
 22 language, as Respondents stated that context matters. And
 23 so the intrinsic record, the evidence, the specification,
 24 the file history are the most determinative factors in
 25 determining if a particular term has been given a metes and

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1 bounds. And so that's the issue with "substantially
 2 transparent."

3 And we submit that the claim itself, claim 10
 4 itself provides the metes and bounds for substantially
 5 transparent. In particular, the claim says that the
 6 internal potting at least partially surrounding a curved
 7 battery, a printed circuit board and one or more components,
 8 wherein the internal potting is substantially transparent to
 9 light. And so we are given the boundaries right there.
 10 We're talking about the internal potting that is used to
 11 form this ring.

12 And later in the claim it said, what does it mean
 13 to be transparent to light? What types of light? It says
 14 it needs to be substantially transparent to allow for the
 15 visible light, infrared light, or the near infrared light
 16 through the internal potting towards the tissue of the user.
 17 And that right there is what this patent is about. That
 18 right there is what the claim is about. It needs to be able
 19 to make the measurements and detections to provide all the
 20 benefits of the invention.

21 So the claim itself, Your Honor, provides these
 22 boundaries. And Your Honor asked this question to counsel
 23 for this claim 10, and said, Question: I want to get your
 24 understanding of what that claim requirement relative to the
 25 recitation that the internal potting is substantially

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1 transparent.

2 The answer was: So my understanding, my
 3 understanding of that limitation, the first light-emitting
 4 diode is that potting has to be sufficiently transparent, so
 5 depending upon the power of the light-emitting diodes, that
 6 enough of the light gets through such that it would actually
 7 reflect off of the tissue.

8 That was the understanding that they provided.
 9 That's the understanding that's in the claim. So if they
 10 can state it with reasonable certainty what their
 11 understanding of "substantially transparent" here is, I
 12 don't understand why they continue to argue that it's
 13 indefinite.

14 Moreover, looking at the specification, now, they
 15 pointed to portions of the specification that talk about the
 16 case of the charger, things like that, where it mentions
 17 substantially transparent. Is the claim talking about a
 18 case, is the limitation, or is it about potting?

19 It's about potting. And when we talk about
 20 potting, the specification provides these disclosures,
 21 Exhibit B at 16, 29 to 33, 16 to 18, 43 to 56. And each
 22 time they explain that you have to use transparent potting
 23 to configure to allow light to pass through.

24 Their gripe with this is they are using
 25 "transparent" here is not "substantially transparent." And,

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1 Your Honor, there's no requirement that the specification
2 uses the exact same words as the claims.

3 This portion of the specification, "transparent,"
4 provides the metes and boundaries of what "substantially
5 transparent" means, how it is limited. And so why is it
6 that this provides support?

7 And the reason for that, actually, Judge Payne
8 expressed it very clearly in his case and he said -- sorry,
9 Your Honor -- he again was talking about when you build
10 something, right, substantially transparent substrate, and
11 he explained that substantially transparent substrate and
12 transparent substrate are used interchangeably to account
13 for the engineering reality that there is no such thing as
14 perfect transparency.

15 So if we take off our lawyering hats here for a
16 little bit and we talk about the understanding from an
17 engineering perspective, what we're talking about here is
18 material that is being used to form potting. And the claim
19 tells us it needs to allow light to pass through.

20 And so the specification tells us the same thing.
21 So the claim guards for this possibility that when you make
22 something transparent, if your claim recites completely
23 transparent, that Respondents or others can't just introduce
24 an impurity or point to an impurity and say no, it is not
25 100 percent transparent. It is not perfectly transparent.

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1 So "substantially transparent" simply guards
2 against that possibility and explains that -- and recognizes
3 the engineering reality that you don't have perfect
4 transparency. And so that's why the specification, when it
5 provides the bounds and says you need to be transparent
6 enough for light to pass through to make those measurements,
7 it provides the support for the claim of substantially
8 transparent.

9 Moreover, if you go back to -- I am going to look
10 at their slides for a minute -- if you go back to their
11 slides, this is Dr. Anthony. This is Dr. Anthony. This is
12 their expert.

13 They try to run away from it a little bit. They
14 say: Look, he was talking about mapping it to prior art.
15 He was not talking about claim construction -- or I don't
16 want to couch what they said -- but they basically were
17 trying to run away from Dr. Anthony's opinions.

18 This was their expert. It's not extrinsic
19 evidence. It's submitted -- it's not unrelated. It's the
20 same specification. It's submitted in a PGR that they
21 filed. And it's their expert that's talking about the
22 claims that use similar language, so it's not unrelated.

23 Second, it's a PGR. They had an opportunity to
24 -- Dr. -- their expert had an opportunity to talk about
25 indefiniteness there. They had an opportunity to talk about

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1 indefiniteness in here, in this PGR, and they did not.
2 Instead, they decided to map the claim "substantially
3 transparent" to prior art.

4 So they are saying when you want to map to prior
5 art, then we can equate "transparent" to "substantially
6 transparent." But when it comes to infringement, they want
7 it out. That is not how it works. You need to construe
8 claims consistently.

9 Right here he is talking about -- their expert is
10 talking about rests on an incorrect and narrowed proposed
11 construction for substantially transparent material. Their
12 expert is talking about construing the term, interpreting
13 the term in the PGR.

14 He says, if you import a requirement, that
15 substantially transparent requires the material to be
16 transparent for all light to pass through, such as visible
17 light is wrong, okay?

18 So he says you don't need all light to pass
19 through. He is understanding substantially transparent when
20 he is mapping it to the prior art. Then he proceeds and
21 says independent claim 1 does not specify what wavelength or
22 light but that does not mean it is required to be
23 transparent to all visible light. It means substantially
24 non-blocking to the wavelength to which it is intended to
25 allow light to pass through.

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1 Your Honor, these are not -- these are not their
2 experts talking about just, hey, all I was just doing was
3 pointing to something in the prior art and saying it is
4 there. This is him doing claim interpretation.

5 This is him understanding the metes and bounds of
6 the claim, just like counsel did when you asked them the
7 question.

8 Next slide, on slide 40, same thing here. This
9 is, again, their expert's declaration. Thus, the
10 substantially transparent material does not need to be
11 transparent to all light, to all lengths, or the entire
12 visible light spectrum.

13 Rather, it simply requires transparency
14 sufficient for the light-emitting components to function as
15 described; namely, to emit visible light and infrared light
16 that can reach and return from the tissue.

17 JUDGE JOHNSON HINES: May I ask a question?

18 MR. SIDDIQUI: Sure, Your Honor.

19 JUDGE JOHNSON HINES: Based on what you are
20 pointing out in Respondents' slides 39 and 40, it seems like
21 your point is there was an argument made that "transparent"
22 is different from "substantially transparent."

23 MR. SIDDIQUI: That was what they are -- yeah.

24 JUDGE JOHNSON HINES: But earlier you cited case
25 law from, I believe it was the Eastern District of Texas,

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1 that --

2 MR. SIDDIQUI: Sorry, Your Honor.

3 JUDGE JOHNSON HINES: I'm sorry?

4 MR. SIDDIQUI: Sorry.

5 JUDGE JOHNSON HINES: Where relative to the

6 patent that was at issue in that case, which is not the

7 patent here or any related patents here, but in that case

8 the judge said that "transparent" and "substantially

9 transparent" are interchangeable.

10 So what is the Complainant's position here?

11 MR. SIDDIQUI: Sure.

12 JUDGE JOHNSON HINES: Are "transparent" and

13 "substantially transparent" interchangeable or do they mean

14 different things?

15 MR. SIDDIQUI: Your Honor, they are

16 interchangeable. As explained in the specification, the

17 support for the term "substantially transparent" for the

18 claim, for the claim is used -- is -- comes from these

19 portions of the specification where it talks about

20 transparent potting being transparent for light to pass

21 through.

22 And so as I explained, it is Complainant's

23 position that the claim recites "substantially transparent"

24 to guard for any possibilities that an argument isn't raised

25 that there's no such thing as perfectly transparent. And so

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1 the engineer -- keeping in mind the engineering realities

2 that we need to guard for, and account for impurities and

3 things like that, and being introduced, and so that's where

4 the "substantially transparent" is interchangeable with

5 "transparent."

6 JUDGE JOHNSON HINES: All right. Thank you.

7 MR. SIDDIQUI: And, just briefly, Your Honor,

8 what I was going to conclude on that slide with respect to

9 Dr. Anthony's position in the PGR, the language he uses

10 requires transparent sufficient for light upon

11 light-emitting components to pass is verbatim what we

12 included in our proposal for plain and ordinary. That is

13 also what counsel was up here when he was asked to explain

14 that, that's exactly the words they used as well, so it is a

15 consistent understanding.

16 In terms of case law, I just wanted to briefly

17 point out that the Federal Circuit has repeatedly confirmed

18 that relative terms, such as "substantially" do not render

19 the patent claims so unclear, like there is no default,

20 there is no standing rule just because you have

21 "substantial" in the claim that it is indefinite.

22 I also wanted to point out briefly that the cases

23 they had pointed to, again, one of the cases, actually Fiber

24 versus Ciena Corp., said that you don't necessarily need to

25 have strict numerical boundaries for indefiniteness. And

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1 they said up there, you need to explain how much light is

2 able to pass through. And, in fact, when their own cases

3 say that you don't need numerical boundaries for there to be

4 definiteness. And so context matters. None of the prior

5 cases they point to say substantially transparent within the

6 context of a ring, within the context of a potting material

7 for a ring, with the whole purpose being allowing light to

8 pass through to make measurements is indefinite.

9 All the cases that they point to are different --

10 talk about different contexts, different patents, different

11 inventions. And so that's why none of that case law

12 applies.

13 Any questions, Your Honor?

14 JUDGE JOHNSON HINES: I do have one more

15 question.

16 MR. SIDDIQUI: Sure.

17 JUDGE JOHNSON HINES: Your proposal is that

18 "substantially transparent" means "transparent sufficient to

19 permit visible infrared or near infrared light to pass

20 through the internal potting." Is that from the potting to

21 the skin, from the skin to the pot -- and does it include

22 what is reflected off of the skin through the potting again?

23 MR. SIDDIQUI: Yes, Your Honor.

24 JUDGE JOHNSON HINES: Okay. So it is both?

25 MR. SIDDIQUI: Yes. And it's sufficient to make

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1 that measurement. So --

2 JUDGE JOHNSON HINES: So it would necessarily be

3 both?

4 MR. SIDDIQUI: Yes, correct, Your Honor.

5 JUDGE JOHNSON HINES: Okay. Thank you.

6 MR. SIDDIQUI: Unless Your Honor has any

7 questions, Your Honor --

8 JUDGE JOHNSON HINES: That's it. I don't have

9 any more questions. Thank you.

10 MR. SIDDIQUI: Thank you, Your Honor.

11 MR. YAGURA: Could I provide a brief reply?

12 JUDGE JOHNSON HINES: Please.

13 MR. YAGURA: I feel like I was maybe misquoted

14 there. I would like to say I do think context matters.

15 That is not the question, though, that the

16 Federal Circuit raised. Every case that has been cited to

17 Your Honor from us and from the Complainants has context for

18 why something is substantially blur-free, substantially in

19 opposite directions. They all have that context in the

20 claims and in the specification.

21 What matters is whether or not the intrinsic

22 record provides objective boundaries or objective guidance

23 as to figuring out how do we interpret "substantially" in

24 that context? And that is what is missing here in this

25 case.

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1 So, in other words, if we divide up the cases, if
2 the cases talk about a substantial pitch, that's 4 percent,
3 it actually had a boundary there, substantially not -- not
4 interfering substantially. Those were linkage groups where
5 they provided examples of these chemical linkage groups that
6 were not substantially interfering. They provided examples
7 in the file history.

8 The cases they cite where a "substantially" term
9 is construed as definite is one in which objective
10 boundaries are set somewhere in the intrinsic record. And I
11 guess my argument here, Your Honor, is that is not the case
12 with this particular patent.

13 I heard counsel say a minute ago that he agrees
14 that "transparent" and "substantially transparent" are used
15 interchangeably in this case. And I will say that that is
16 what that case turned on. This is Complainant's slide 34.

17 Judge Payne in the Ultravision Techs case said
18 that "transparent" and "substantially transparent" were used
19 throughout the specification interchangeably, to basically
20 mean as transparent as humanly possible or as possible in an
21 engineering reality.

22 That is not their proposal here. They are not
23 saying that they both mean transparent to the highest degree
24 of transparent achievable by human processing techniques.
25 They are saying that it is only the level of transparency

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1 substantially transparent because fully transparent,
2 obviously, satisfies a requirement that something be
3 substantially transparent.

4 So that was the context in which that was being
5 argued. We did not challenge in the PGRs indefiniteness
6 because there are page limits and you have to pick your
7 fights. We picked our fights there. We picked the fights
8 over the prior art. Those were the same fights we picked in
9 the IPRs where you cannot challenge indefiniteness.

10 And, Your Honor, that's just, I guess, my best
11 explanation for the context of those -- of that declaration.
12 It is extrinsic evidence in the sense that it was statements
13 in a proceeding that had nothing to do with any of the
14 patents at issue in this case, though I agree it is the same
15 specification. It is just a different patent.

16 JUDGE JOHNSON HINES: Well, one question I was
17 going to ask you was your view on whether the prosecution
18 histories of the PGRs and IPRs that are on related patents
19 in the same family, whether those are and that is intrinsic
20 or extrinsic evidence?

21 MR. YAGURA: You know, without having to research
22 that, I don't know if I know the argument as a matter of
23 law, but I would say that expert declarations in unrelated
24 proceedings should be extrinsic. But we could brief that if
25 you like, Your Honor.

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1 needed sufficient to allow light to pass through the
2 internal potting layer.

3 Of course, that doesn't provide any actual
4 boundaries as to how transparent that is sufficient to allow
5 the vertical-cavity surface-emitting laser that they
6 identify to transmit light through to the skin and back
7 through to the sensors sufficient to provide some sort of
8 processing, some sort of data out of that.

9 So I guess I would say that although counsel said
10 that, I don't think that's what their construction really
11 says.

12 Finally, with respect to our expert, Dr. Anthony,
13 in the PGR proceedings, what I would say for context there,
14 because context does matter, is that Samsung was challenging
15 ten different Oura patents in those cases, I think five of
16 which now stand invalid or disclaimed. And they were a
17 combination of post-grant review proceedings and inter
18 partes review proceedings.

19 One of those you can challenge anything. In
20 another one you can't challenge indefiniteness. It would
21 not be any surprise that Samsung and its experts took
22 consistent positions throughout all the challenges were
23 based on the prior art, and really what those declarations
24 were about is proving that prior art in this case, prior art
25 that was 100 percent transparent potting material satisfied

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1 JUDGE JOHNSON HINES: I would like that.

2 MR. YAGURA: Okay.

3 JUDGE JOHNSON HINES: And we can talk about when
4 that can happen. But I think it is a fairly discrete issue,
5 but yes, I think that would be useful.

6 MR. YAGURA: Okay. We will do that, Your Honor.

7 JUDGE JOHNSON HINES: At the very least, I would
8 like the parties to have the opportunity to explain their
9 position on that.

10 MR. YAGURA: Absolutely, Your Honor.

11 JUDGE JOHNSON HINES: We will get that set up
12 before we leave today.

13 MR. YAGURA: Great. That's all I have, Your
14 Honor. Thank you.

15 JUDGE JOHNSON HINES: Thank you.

16 MR. SIDDIQUI: Nothing further, Your Honor.

17 JUDGE JOHNSON HINES: All right. Thank you.

18 MR. PENSABENE: Your Honor, I have good news.
19 This is the last term.

20 JUDGE JOHNSON HINES: All right.

21 MR. PENSABENE: May I proceed?

22 JUDGE JOHNSON HINES: Yes, please.

23 MR. PENSABENE: The last dispute revolves around
24 the claim requirement regarding sensors in claim 1 of the
25 '244 patent. The core of the dispute is whether the claim

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1 requires a sensor to be used for measuring both metrics,
2 which is Respondents' position, or whether there can be
3 multiple sensors where each sensor only measures one of the
4 claimed metrics and whether that satisfies the claims.
5 That's the Complainant's position.

6 We think this is a matter that can really be
7 resolved by looking at the claim language itself. If you
8 look at the claim language, it recites one or more light
9 sensors, so there must be at least one sensor. And whatever
10 sensors there are, it must be configured to do two things,
11 to detect one or more of the various types of lights and to
12 measure the heart rate and the blood oxygenation level of
13 the user.

14 So it must do those things. And it must measure
15 both of those metrics.

16 Now, importantly, there is nothing in the
17 specification that requires that you use, for example, two
18 different sensors to measure these metrics. So because
19 there's nothing in the specification that requires a
20 different reading of the conjunctive word "and," it must be
21 given its plain meaning, the conjunctive meaning, so as to
22 require that there be at least one sensor that measures both
23 of these metrics.

24 Now, if we look at just the claim limitation
25 we're talking about itself, we see there is an interesting

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1 construction requires that the sensors themselves perform
2 these measurements, perform these calculations.

3 But that's not what our construction says. All
4 our construction says is that the sensor is used to measure
5 the heart rate and blood oxygenation.

6 And, in fact, on this point, the parties are in
7 100 percent complete agreement. So on the right, I have got
8 an excerpt of the Complainant's opening brief. And you will
9 see actually the same material in their presentation in just
10 a couple of minutes.

11 What they are highlighting is exactly consistent
12 with what we're saying, is that together the processing
13 module and the sensor module enable the wearable computing
14 device to perform multiple functions, including measuring
15 the heart rate and the oxygen.

16 And they highlight that right there in the
17 figure. You can see here is the sensor module. And it
18 includes the light sensors. So everyone agrees that the
19 sensors can't perform this measurement by themselves and the
20 processor can't perform the measurement by themselves. It
21 is a silly argument.

22 And the last argument they make is that our
23 construction somehow results in an antecedent problem
24 because we refer to at least, wherein at least one of the
25 sensors is used to measure.

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1 dichotomy. When it is talking about the sensors detecting
2 the light, it uses the disjunctive, it says it can detect
3 one or more of these different wavelengths of light.

4 But when it comes to the measurement and
5 measuring the heart rate and the blood oxygenation, it uses
6 the conjunctive, so the sensor must do both.

7 I see Your Honor perhaps has a question brewing?
8 JUDGE JOHNSON HINES: No. No. I am just
9 processing.

10 MR. PENSABENE: This same dichotomy is also seen
11 when we compare claim 1 to claim 10. Claim 1, as I said, is
12 drafted in the conjunctive, requiring that the sensor, that
13 at least one sensor measure both of those things; whereas
14 claim 10 is in the disjunctive, measures one or more.

15 So if what the applicant, the patentee intended
16 was that you can have multiple sensors and each one only
17 needs to measure one of these measurements, they knew how to
18 draft that, and they did that for claim 10. But claim 1 is
19 different.

20 Claim differentiation applies. Here they clearly
21 intended that you have the one sensor that measures both.
22 Oura has two other arguments, neither one of which is
23 particularly persuasive.

24 First, they mischaracterize our construction.
25 They mischaracterize our construction to say that our

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1 We believe that Your Honor is fully capable of
2 understanding what our construction means, i.e., that we're
3 referring to the light sensors, which are stated earlier in
4 our construction. But to the extent there is any ambiguity,
5 you know, we're fine with just adding the word "light" to
6 our construction, to make clear we're talking about the
7 light sensors being used to measure the heart rate and blood
8 oxygenation.

9 Unless Your Honor has any questions.

10 JUDGE JOHNSON HINES: I do have a question.

11 MR. PENSABENE: Sure.

12 JUDGE JOHNSON HINES: So both claims 1 and claim
13 10 of the '244 patent recite one or more sensors.

14 MR. PENSABENE: Correct.

15 JUDGE JOHNSON HINES: Okay. In doing this
16 construction, why would it be wrong to consider the
17 functions here to detect, to measure, as being performed by
18 the group?

19 MR. PENSABENE: Because that's not what the claim
20 says. What the claim says is that the one or more sensors
21 are configured. So you have to have at least one sensor
22 configured to do what this says.

23 You can have multiple sensors configured to do
24 the measurement, like together. You may have like different
25 wavelengths of light. And, in fact, the claim recognizes

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1 that because it says you can have different wavelengths of
2 light detected by the different sensors.

3 So you might, for example, have different sensors
4 detecting different wavelengths of light but they both are
5 used to do both measurements of the heart rate and the blood
6 oxygenation. In other words, the patentee knew how to use
7 the word "or" if that's what they meant.

8 JUDGE JOHNSON HINES: Right. Your point being
9 with respect to --

10 MR. PENSABENE: Claim 10.

11 JUDGE JOHNSON HINES: -- claim 10.

12 MR. PENSABENE: Right.

13 JUDGE JOHNSON HINES: Your slide 48.

14 MR. PENSABENE: Or, Your Honor, if the patentee
15 intended what you're suggesting, and I understand what
16 you're suggesting, they could have written the claim as has
17 at least one sensor to measure heart rate, has at least one
18 sensor to measure blood oxygenation, and nothing precluding
19 it from being the same sensor, but that's not what the claim
20 says.

21 The claim says you have at least one sensor
22 configured to do both those measurements.

23 JUDGE JOHNSON HINES: And is your view if you
24 have multiple sensors, that the multiple sensors, each of
25 the multiple sensors have to be configured to do both of the

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1 can have multiple light sensors performing these different
2 functions.

3 And I think -- I think maybe the premise of that
4 question might have been that Respondents are really sort of
5 jumping the gun here. They are taking a big leap and just
6 assuming that the light sensor is what is measuring heart
7 rate and blood oxygenation.

8 Yes, they acknowledge that the processor is
9 involved in there, but their construction is still flat out
10 saying that it is the sensor that is measuring heart rate
11 and blood oxygenation. And that's not what the original
12 claim language says.

13 So I think it's a good place to go back and start
14 with the claim language. So as you can see on the top here
15 on slide 22, the claim language says one or more light
16 sensors. It's important to keep that term in mind. This is
17 not just a sensor. This is a light sensor. It is not a
18 heart rate sensor. It's not a blood oxygenation sensor.
19 It's a light sensor.

20 That one or more light sensors configured to
21 detect one or more of, and then listing various types of
22 light, emitted to measure the heart rate and the blood
23 oxygenation level of the user.

24 The plain language of the claim explains that the
25 light sensor is detecting light that has been emitted to

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1 detect function and the measure function in claim 1?

2 MR. PENSABENE: No, if you have multiple sensors,
3 the other sensors can measure other things or measure just
4 one of them. There has to be at least one sensor that is
5 configured to do both.

6 JUDGE JOHNSON HINES: Okay. But setting aside
7 there are other sensors to do other things, any sensor that
8 would meet claim 1 would, in your view, do both functions,
9 they would do the detect function and the measure function?

10 MR. PENSABENE: Yes, absolutely. And that's not
11 just my opinion. I mean, that's what the specification
12 says.

13 The specification says the sensor module together
14 with the processor module performs the function, including
15 measuring the heart rate and pulse oximetry. This is not my
16 argument. This is the spec saying it.

17 JUDGE JOHNSON HINES: All right. I may have
18 another question for you, but I don't right now.

19 MR. PENSABENE: Thank you, Your Honor.

20 MR. STANFORD: Good morning, Your Honor. Matthew
21 Stanford for the Complainant, Oura, again.

22 So I would like to start by, I guess, addressing
23 your question to Respondents' counsel there at the end, and
24 whether or not the one or more starting aspect of this claim
25 element means that you need to have one light sensor or you

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1 measure heart rate or blood oxygenation. It is not the
2 light sensor itself that is a heart rate sensor. As we
3 spoke about earlier with some other terms, the LEDs emit
4 light. That light goes out -- and actually we can jump to
5 the figure here, Figure 2, which Respondents also noted.

6 If you look here on the orange and red portions,
7 we have an IR LED and a red LED. Those LEDs emit light.
8 That light is then detected by the light sensor.

9 This is not -- there is no heart rate
10 determination yet. There's no blood oxygenation
11 determination by that light sensor. And light sensor is
12 receiving in the signals, the reflected light back from the
13 user's skin, taking that information in that signal,
14 transferring it over to the processor, which then analyzes
15 it and is able to determine heart rate, blood oxygenation,
16 or a number of other metrics that the specification
17 describes.

18 So it is important that we don't skip ahead to
19 just assuming that the "to measure" portion of the claim --
20 and I will jump back to the claim language, to here, that
21 the "to measure" portion of this claim language is
22 automatically referring to the configuration of the light
23 sensors.

24 JUDGE JOHNSON HINES: So is it Oura's position
25 that the phrase "to measure the heart rate and blood

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1 oxygenation level" modifies the visible light, the infrared
2 light, or the near-infrared light?

3 MR. STANFORD: That's correct. And I just want
4 to point out, in addition to that, that the reason that we
5 believe that is because of this word or not the only reason
6 but one of the reasons is because of this word "emitted"
7 that's in between there. It is talking about detecting the
8 light that was emitted to measure heart rate and blood
9 oxygenation. That light was emitted from the LEDs for the
10 purpose of measuring heart rate and blood oxygenation.

11 It's not the light sensor that's determining the
12 heart rate. It's that this light was emitted for the
13 purpose of then being detected by the light sensor, which is
14 then going to be processed by the processor to determine a
15 heart rate or determine a blood oxygenation.

16 JUDGE JOHNSON HINES: All right. Thank you.

17 MR. STANFORD: I would also like to point out,
18 again, like I mentioned the word "emitted" here is
19 important. And if we look over to Respondents'
20 construction, right before the red word "wherein" you will
21 notice that the word "emitted" is missing. Where is it?
22 They took it out. But they didn't explain why they took it
23 out. Not anywhere in their briefing, it wasn't in the
24 presentation you just heard from Respondents' counsel.

25 Now, I suspect maybe a reason they took it out is

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1 because it helps support their position by creating a
2 disconnect between the light sensors being configured to
3 detect and their position being that the light sensors are
4 also configured to measure. And if you take out this word
5 "emitted," it helps create a context that creates a
6 disconnect and creates these two separate functions; whereas
7 that is not what the original claim language is saying.

8 Also, as we mentioned, and our argument was
9 called silly for this, but the sensor, the light sensor is
10 not what is performing the heart rate measurement. The
11 light sensor is doing what the name connotes, it is sensing
12 light. It is detecting light.

13 And without explaining it, they are making this
14 big leap to just assume it does, and then continue and
15 devote much of their briefing to the conjunctive term "and,"
16 with whether or not heart rate and blood oxygenation or just
17 one or the other is being covered by this claim term.

18 And I would like to point out one more change
19 that their construction makes to the claim. The portion
20 they have added here, which is, again, highlighted in red
21 says "wherein at least one of the sensors." Well, that's
22 not what the beginning of the claim says. The beginning of
23 the claim says one or more light sensors.

24 Why are they changing the claim language? Are
25 they trying to create a different meaning here? One or more

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1 is an optional phrase. There could be one light sensor;
2 there could be multiple light sensors.

3 But by adding this portion to the end here, they
4 are saying you must have only one sensor that does both
5 heart rate and blood oxygenation. Adding this portion in
6 restricts out that "or more" portion of the light sensors
7 for the purpose of, in their view, heart rate and blood
8 oxygenation evaluation.

9 We talked about this already and I won't harp on
10 it too much. The claim language is important. That's why
11 Oura's construction is there is no construction that is
12 necessary. The claim language itself is quite clear, the
13 one or more light sensors detecting light that is emitted to
14 measure heart rate and blood oxygenation. That's pretty
15 clear from just the words on the page.

16 Now, Respondents are trying to contort this
17 language to require as I have highlighted here a "to detect"
18 function and a "to measure" function by the light sensors.
19 But that's not what the disclosure supports.

20 The disclosure, as Respondents repeatedly
21 acknowledged, the disclosure discusses that it is the
22 processor module and the sensor module that together perform
23 these functions.

24 The processor module is what is actually
25 performing the processing. The sensor is what's detecting

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1 the light. Their construction ignores the processor aspect
2 of this disclosure by adding -- by the claim only stating at
3 least one sensor is used to measure heart rate and blood
4 oxygenation, they are misleading the reader. Because
5 processor is not mentioned in the claim language under their
6 construction.

7 So under their construction, just reading its
8 plain reading of their construction, it is that the sensor
9 is what is performing this heart rate measurement and this
10 blood oxygenation measurement. That's not the case. The
11 light sensor is detecting light. It is then used -- the
12 processor then uses the information within that light signal
13 to evaluate or measure heart rate and blood oxygenation.

14 It looks like you might have had a question
15 there.

16 JUDGE JOHNSON HINES: I do have a question. Are
17 there embodiments disclosed in the specification where
18 different sensors are used for heart rate and blood
19 oxygenation?

20 MR. STANFORD: The specification leaves open the
21 possibility for multiple sensors to be used for each one,
22 yes.

23 JUDGE JOHNSON HINES: And where is that?

24 MR. STANFORD: So even in this portion, you can
25 see on the screen here, the sensor module with the processor

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1 module is working together to determine -- to function as a
2 heart rate sensor or a pulse oximeter. So it leaves open
3 the possibility that you could have multiple light sensors
4 detecting different wavelengths of light, for example,
5 instead of, for example, one light sensor.

6 There is also a discussion in the specification
7 of how -- this isn't specific to heart rate, but for some of
8 the other functions that the processor serves as, the use of
9 the temperature sensor or accelerometer could be used to
10 supplement instead of, say, for example, the light sensor.

11 I believe it is -- forgive me if I am slightly
12 misstating this -- but those are used in the context of,
13 where maybe the light -- there is an ambient light issue
14 where the light sensor isn't getting as accurate a detection
15 as it would like or some other circumstances where a certain
16 sensor could supplement.

17 JUDGE JOHNSON HINES: So looking at the parts of
18 the specification that are cited on your slide 24, is it
19 Oura's view that the sensor module can comprise multiple
20 sensors?

21 MR. STANFORD: Yes. The sensor module could
22 comprise multiple sensors. In fact, it does, even looking
23 at the example here in Figure 2.

24 If you see two sensor modules, 220, and then
25 there is a box around the various sensors there.

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1 But, again, their construction is, again,
2 misleading or missing the point here. It is that the light
3 sensor is not what is functioning as a heart rate sensor and
4 as a blood oxygenation sensor. That would be very helpful
5 for them, because it would give them a non-infringement
6 position that there needs to be one sort of hybrid sensor
7 that is both a heart rate sensor and a blood oxygenation
8 sensor.

9 But instead what the patent is describing, what
10 the claim is reciting is that it is a light sensor detecting
11 light, emitted to measure these two metrics. It is just
12 measuring the light and providing that information over to
13 the processor, which then functions as the specification
14 explains, functions as the heart rate sensor or the pulse
15 oximeter, which is what measures blood oxygenation.

16 Just as one final point, Respondents' own
17 briefing seems a little unclear on their own interpretation
18 of their construction. In one instance they say that while
19 Respondents' construction requires the sensors to have some
20 involvement in measuring the metrics, it does not exclude
21 other components from being used or having some involvement.

22 Then later on it states that the one or more
23 light sensors are configured to perform two functions. The
24 light sensors are performing the detect function and the
25 light sensors are performing the "to measure" function.

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1 JUDGE JOHNSON HINES: All right.

2 MR. STANFORD: Does that answer your question?

3 JUDGE JOHNSON HINES: It does.

4 MR. STANFORD: Now, if we could pull up
5 Respondents' slide 50. So here they point to saying that
6 the parties agree that a processor and a light sensor are
7 both used to measure the claimed metrics. And that is
8 partially true. We do agree because the specification says
9 it that the processor and light sensor are both involved
10 here, but that's not what their construction says. Their
11 construction says that it is the light sensor that is used
12 to measure, there, again, leaving out the functioning of the
13 processor.

14 So it becomes a misleading construction; whereas
15 Oura's construction is much more clear. It sticks much more
16 to the original claim language where the light that has been
17 emitted and detected by the light sensor that is used to
18 measure heart rate and blood oxygenation.

19 If we will jump back to our slides. Thank you.

20 Finally, the Respondents' counsel spent a fair
21 amount of time on this term "and" and its conjunctive
22 meaning and whether or not it is just one of heart rate or
23 blood oxygenation or both are required even comparing it to
24 claim 10, which actually recites the alternative there or
25 one or both, excuse me.

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1 So which is it? Does it have some involvement or
2 is it the one performing the measurements? Their briefing
3 is unclear. Some involvement, as vague as that is, Oura
4 potentially could even agree that there's some involvement,
5 if "some involvement" were to mean that the light sensor
6 detects light and then provides that light signal over to
7 the processor for the processor to function as the heart
8 rate sensor and the pulse oximeter, which is what the
9 specification describes, but if really what they are meaning
10 is the second excerpt I have here, where it's the light
11 sensors that are functioning as a heart rate sensor and as a
12 pulse oximeter or to measure blood oxygenation, then that is
13 where they run afoul of both the original claim language and
14 of the disclosure in the specification.

15 Are there any further questions?

16 JUDGE JOHNSON HINES: No. Not right now.

17 MR. STANFORD: Thank you.

18 MR. PENSABENE: May I respond briefly?

19 JUDGE JOHNSON HINES: Yes, please. And I do have
20 a question for you.

21 MR. PENSABENE: Okay. Did you want to ask your
22 first question or would you like me to go first?

23 JUDGE JOHNSON HINES: Why don't you go first.

24 MR. PENSABENE: Okay. I'll just start again with
25 our slide 50. And I quite frankly was a little confused by

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1 what Oura is trying to argue here.

2 To be absolutely clear, we are not claiming, our
3 construction does not require that the sensor by itself
4 perform a measurement. We're not looking for a "gotcha"
5 non-infringement argument or something like that. There's
6 no dispute that we are not saying the light sensor alone
7 performs the measurement.

8 Our construction is very clear. It is used to
9 perform the measurement. In other words, how is this light
10 detected? Oura came up here and said: Well, it's not the
11 light sensor that does the measurement, it's the light.
12 Well, how is the light used to make this measurement if not
13 through the light sensor?

14 So I just want to clarify that. We all agree
15 that it's a combination of the light sensor working with the
16 processor to actually do the measurement. The light sensor
17 detects the light, sends the values to the processor, and
18 the processor calculates it.

19 Now, Oura criticizes us -- this I found really
20 quite mind boggling -- they criticize us for not mentioning
21 the processor in our construction. But Oura doesn't either.
22 So according to their construction, this calculation just
23 magically is done. They don't explain how these things like
24 the heart rate and blood oxygenation are actually measured.

25 They say it is measured by the light but light

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1 And why does it do that? It does it to measure
2 the -- the metrics.

3 JUDGE JOHNSON HINES: Okay.

4 MR. PENSABENE: In other words, if I can, that's
5 the way the claim should be broken up.

6 JUDGE JOHNSON HINES: So --

7 MR. PENSABENE: This is the actual claim
8 language.

9 JUDGE JOHNSON HINES: Okay. So in Respondents'
10 view, to measure the heart rate and the blood oxygenation
11 level of the user is modifying one or more light sensors?

12 MR. PENSABENE: Correct, Your Honor.

13 JUDGE JOHNSON HINES: All right.

14 So if you don't have an answer to this, it's
15 fine. There's a recent case in the Federal Circuit
16 addressing this issue of phrases modifying other phrases.
17 And it is Netflix v. DivX. It issued on February 13th.

18 I completely understand why the parties didn't
19 address it in the briefs, given the timing of the briefs.
20 But in that case, the Federal Circuit said a modifier with
21 two distinct possible modificans is susceptible of modifying
22 either one. The modifier is presumptively understood to be
23 tied to the nearest available semantically plausible
24 modifican, where commas or other textual signals are not
25 used.

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1 doesn't do the measurements. Light is used in making the
2 measurement. And how is it used? By being detected by the
3 light sensor. That's completely consistent with our
4 proposed construction.

5 JUDGE JOHNSON HINES: Can you go to your slide
6 44?

7 MR. PENSABENE: Sure.

8 JUDGE JOHNSON HINES: And I want to focus on the
9 language of the claim, which is here in the left-hand
10 column, slide 44.

11 "One or more light sensors configured to detect
12 the one or more of the visible light, the infrared light, or
13 the near-infrared light emitted to measure the heart rate
14 and the blood oxygenation level of the user."

15 The question I have for you is, in the claim
16 language, does emitted to measure or to measure -- excuse me
17 -- does to measure the heart rate and the blood oxygenation
18 level of the user, does that modify the light or does it
19 modify the one or more light sensors?

20 MR. PENSABENE: I am glad Your Honor asked that
21 question because I think Oura is moving that word "emitted"
22 to where it doesn't belong. Emitted is referring to the
23 light because earlier in the claim, it talks about the light
24 being emitted. And this is saying it's configured to detect
25 one of the lights that's been emitted.

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1 As I said, that case is Netflix versus DivX. It
2 is Case Number 24-1541. And it issued from the Federal
3 Circuit on February 15th, 2026.

4 Given here that the parties seem to have a
5 dispute about this particular phrase in the disputed term
6 and what it modifies, I would like the parties to consider
7 that case and whether it's -- I am not suggesting that it is
8 necessarily relevant. There could be other reasons that
9 it's not. It does seem to address an issue that is close to
10 an issue that the parties are disputing here.

11 So unless you have something specific to say
12 about this case, and I started out by saying I understand if
13 you don't, then I would like to get further briefing from
14 the parties addressing that case.

15 MR. PENSABENE: Sure. We will be happy to do
16 that. My mental connection to Westlaw is broken down at the
17 moment, so I can't pull that case up, but I do want to just
18 point out one other thing. I think here the claim language
19 itself is instructive as to where the modifier goes.

20 And I said the Complainants are moving the word
21 "emitted" to the measurement, emitted to measure. But if
22 you look at earlier in the claim -- and I apologize, it is
23 hard to see -- but the claim talks about the light-emitting
24 diodes emitting visible light, emitting different, you know,
25 wavelengths of light. So the emitted is clearly just being

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1 part of the light that's been emitted. It is not that it is
2 emitted to do that. It's that is just a modifier of the
3 light because that's the way it was recited in the claim
4 earlier.

5 So, you know, the claimants are being cute in
6 moving this word to measure to change the meaning of the
7 claim, but I don't think that's proper. I think without
8 having looked at that case, Your Honor, I would say that
9 this is a little different because the claim language itself
10 makes clear what the modifier is and moving the word
11 "emitted" to the second part is not proper, given the
12 earlier claim limitations.

13 JUDGE JOHNSON HINES: Okay.

14 MR. STANFORD: Your Honor, if I may.

15 JUDGE JOHNSON HINES: Yes, please.

16 MR. STANFORD: I wanted to correct something
17 really quickly in an answer to one of your questions. I
18 will leave my comments on the Netflix case to our additional
19 briefing.

20 JUDGE JOHNSON HINES: Okay.

21 MR. STANFORD: But you asked me about whether or
22 not there could be multiple light sensors if there was an
23 embodiment that covered that.

24 JUDGE JOHNSON HINES: Yeah.

25 MR. STANFORD: Helpfully one of my colleagues

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1 So I would like the parties to talk about
2 supplemental briefing and I will allow a supplemental
3 response. In terms of page numbers, I would like the
4 parties to propose that. These seem to be fairly discrete
5 issues. So I would hope you wouldn't need more than ten
6 pages, but if you do, then you do.

7 I would like the parties to address both of the
8 issues that I identified. One is the IPR and PGRs in the
9 related patents and their status as intrinsic or extrinsic
10 evidence, and the second is the Netflix case that I
11 mentioned.

12 If the parties could discuss and submit a
13 proposal for supplemental briefing, is it possible to do
14 that by Thursday, close of business Thursday? Mr. Trainor?

15 MR. TRAINOR: Yes, Your Honor. We will work with
16 Oura to get that done.

17 MR. VIDWAN: Yes, Your Honor.

18 JUDGE JOHNSON HINES: Okay. So submit the
19 proposal. You don't need to file it. And then we will
20 likely issue an order memorializing the dates and numbers of
21 pages.

22 Is there anything else that we should address
23 now?

24 MR. VIDWAN: Nothing for Complainants, Your
25 Honor.

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1 looked at the answer when I couldn't come up with it on the
2 top of my head. If you look at the embodiment related to
3 Figure 24B, you will be able to find an instance, at least
4 one instance where the specification is describing having
5 multiple light sensors.

6 JUDGE JOHNSON HINES: All right. Do you have the
7 column?

8 MR. STANFORD: Sure. It begins on column 28,
9 line 31 and runs through the bottom of that column, so to
10 line 67.

11 JUDGE JOHNSON HINES: All right. Thank you.

12 MR. STANFORD: No problem. Any other questions,
13 Your Honor?

14 JUDGE JOHNSON HINES: No.

15 MR. STANFORD: Thank you very much.

16 JUDGE JOHNSON HINES: Okay. So I had said
17 earlier that we would get dates for supplemental briefing
18 before we left, but I have changed my mind.

19 The parties, I understand, when we talked about
20 the discovery issues, it's a busy time. So instead of me
21 saying what you should do, I would like the parties to meet
22 and confer regarding providing supplemental briefing. I
23 would like it to be a little bit sooner than later, but I am
24 cognizant of the fact that there's a lot going on for you
25 all right now.

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1 MR. TRAINOR: Nothing for the Samsung
2 Respondents.

3 MR. MCCRUM: Nothing from Zepp, Your Honor.

4 MR. SMITH: Nothing from the Reebok Respondents,
5 Your Honor.

6 JUDGE JOHNSON HINES: All right. Thank you. I
7 do want to thank you all for your preparation today. It was
8 extremely helpful.

9 I would also like to thank the client
10 representatives who attended. I know you have other things
11 that are important and need to do, so I appreciate you
12 taking time to do this today.

13 With that, we're adjourned. Thank you.

14 (Whereupon, at 11:52 a.m., the Case Management
15 Conference and Markman Hearing adjourned.)

CERTIFICATE OF REPORTER

TITLE: Certain Smart Wearable Devices, Systems, and
Components Thereof

INVESTIGATION NO: 337-TA-1468

HEARING DATE: March 10, 2026

LOCATION: Courtroom B

NATURE OF HEARING: Case Management Conference/Markman
Hearing

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Exhibit Q

April 29, 2026

The Honorable Doris Johnson Hines
Administrative Law Judge
U.S. International Trade Commission
500 E Street, SW
Washington, DC 20435
JohnsonHines1468@usitc.gov

Re: *Certain Wearable Devices*, Inv. No. 337-1478 – G.R. 5.6.1 Discovery Dispute

Dear Honorable Judge Johnson Hines:

Respondents Ouraring Inc. and Oura Health Oy (“Oura”) seek fundamental information from Complainants Samsung Electronics Co. and its U.S. subsidiary Samsung Electronics America, Inc. (together, “Samsung”) to challenge Samsung’s conclusory domestic industry claims. Although Oura has sought this information for more than two months, Samsung has stalled discovery by repeatedly promising forthcoming supplements but then failing to deliver them. Oura respectfully requests that Samsung be compelled to provide complete interrogatory responses and document productions.

I. Samsung’s Pattern of Tactical Delays

Beginning February 27, 2026, Oura met and conferred multiple times with Samsung about its deficient economic domestic industry (“EDI”) and other interrogatory responses and document production, but always pausing before seeking to compel discovery where Samsung promised to provide curative supplements. Ex. A (Mar. 2, 2026, Ltr. R. Pluta to S. Trainor). For the last CMC, Oura submitted a dispute letter on March 30, which it withdrew after Samsung committed to curing those deficiencies by April 10. Ex. B (Dispute Letter); Ex. C (Apr. 1 Email J. Haines with N. Schroeder). But Samsung made only small supplements, leaving important issues of EDI bare.

The upcoming May 4 CMC is the last scheduled conference before the end of fact discovery. On April 21, Oura served Samsung a letter describing Samsung’s remaining deficiencies, including the missing EDI discovery, and offering to wait for Samsung’s cure on April 24 or to meet and confer. Ex. D. Samsung did not respond until Oura followed up, again requesting a meet and confer on April 27, at which point Samsung finally agreed to meet and confer on April 28. Ex. E (Apr. 27 Email R. Pluta with N. Schroeder). A couple hours before, Samsung served a responsive letter, standing its ground on discovery for domestic industry. Ex. F. The conference was not productive. Instead, Samsung indicated that its deponent, Mr. Martinez—offered for deposition on the last day of discovery—will be able to further elucidate on Samsung’s EDI contentions. Samsung’s EDI contentions have been to-date vague and conclusory. Ex. G

(Samsung Response to Rog. No. 11); Ex. H (Samsung EDI Contentions). Although Samsung’s “final” contentions are due May 7, this information is entirely within Samsung’s control and has been requested by Oura for months. Samsung seems intent on dumping all this information it has possessed since the beginning of this investigation in the very last days of discovery (if not thereafter). This leaves Oura significantly prejudiced to be able to test Samsung’s EDI claims.

II. Samsung Failed to Provide Sufficient Economic Domestic Industry Discovery

Samsung chose to file this ITC Investigation in retaliation for Oura enforcing its intellectual property rights against Samsung’s free riding in the wearable ring market. As a complainant, Samsung must prove its domestic industry. Samsung has thus far withheld the complete landscape of its worldwide investments in the DI Products, contending that sales data and spreadsheets that are U.S.-specific and that commingle relevant and irrelevant SEA expenses are sufficient. Samsung misunderstands its obligations. Oura is entitled to “all information,” including “the granular information...use[d] to arrive at aggregate information” in order to “test [Samsung’s] economic domestic industry.” *Certain Digital Video Receivers & Related Hardware & Software Components*, Inv. No. 337-TA-1103, Order No. 17 at 2-3 (July 18, 2018) (EDIS ID 658003). ALJs have found prejudice where complainants withheld documents that could support challenges to DI claims. *See, e.g., Certain Light-Emitting Diodes & Products Containing Same*, Inv. No. 337-TA-802, Order No. 15 at 4 (May 12, 2012) (EDIS ID 480786) (noting that “the complainant has the luxury of being able to fully prepare its domestic industry case even before filing the complaint”); *Certain Light-Based Physiological Measurement Devices & Components Thereof*, Inv. No. 337-TA-1276, Order No. 32 at 6-7 (May 5, 2022) (EDIS ID 771338) (finding that withholding production of DI documents until the week before final contentions was prejudicial and improper).

Samsung’s production looks nothing like it should. Samsung produced just two spreadsheets showing investments in plant, equipment, labor, and capital: **First**, SAMS382-011281 (Ex. I) (which appears duplicative of SAMS382-0026452 and shares the same file name, “2025 Legal ITC Subpoena Data_12082025 V1”) presents data organized around “cost centers” that do not identify the related products and are described by such cryptic fields as “Product Experience” and “IOT SVC.” *Id.* (2025 Legal CCTR Raw sheet). As it turns out, this is an omnibus spreadsheet that Samsung periodically updates for subpoenas. On April 24, after repeated requests by Oura, Samsung produced deposition testimony and exhibits that it had produced in response to subpoenas in past investigations. These show that SAMS382-011281 is entirely generic. It appears identical to Exhibit 5 to Samsung’s corporate deposition (SAMS382-0028515 (“Sheppard 05”)), Ex. J) in the 1448 Inv., except that SAMS382-011281 has a few more months of data. Samsung’s 1448 representative, Mr. Sheppard, testified that Exhibit 5 represented data pulled from Samsung’s SAP system and was created for the 1448 Inv. Ex. K (Sheppard Dep.) 23:19-24:14. Mr. Sheppard also admitted that the expenses reported were for “mobile products,” which include products as varied as tablets, ear buds, and flip phones—none of which are relied on here. *Id.* 147:18-148:20; *see also id.* 19:5-16 (distinguishing mobile products from “TVs or home appliance devices”). **Second**, SAMS382-0028070 (Ex. L) by its file name (“(250812) SEA Real Estate Status”) purportedly shows property information for SEA as of July 2025, but what it actually shows and how it relates to the DI Products remains a mystery. Samsung does not identify which of these properties it is claiming for EDI. Many lack “Occupancy/Capacity” information. And at least some are used by different entities: for example, an “Office” in San Jose, CA, is reportedly “SSI owned.”

Samsung's EDI contentions did not explain these documents or even appear to use them. Ex. H. They claim that Samsung has significant U.S. investments in plant, equipment, labor, capital, and expenditures related to the DI Products. They contain overstated allegations without any citations to supporting documents, making it impossible for Oura to know the sources for Samsung's claims. *See Certain Fiber-Optic Connectors, Adapters, Jump Cables, Patch Cords, Products Containing the Same, & Components Thereof*, Inv. No. 337-TA-1399, Order No. 31 at 6-9 (Aug. 8, 2024) (EDIS ID 830949) (compelling explanation of how documents directly support EDI contentions). They also do not identify non-U.S. costs or which U.S. costs are attributable to which DI Products—or even which of the three categories of phones, watches, and rings.

Because months of discussions had passed without Samsung admitting that its EDI discovery was thin, Oura issued targeted interrogatories spelling out the information it sought: which Samsung groups perform work related to the DI Products, which workers perform that work, their compensation for that work, which of those workers are not based in the U.S., which DI Products that work relates to, and where in the world that work is performed. Ex. M (Rog Nos. 15-20). Although Samsung served boilerplate objections and nominal responses on April 27 (*id.*), it did not substantively respond, said it was not prepared to discuss its objections during the parties' April 28 meet and confer, and has still not identified any non-U.S. investments in the DI Products nor described in any detail what work applies to which categories of DI Products (*i.e.*, phones, watches, and rings). Instead, Samsung incorporated by reference the document and contentions Oura had already identified as being incomplete, in addition to citing "forthcoming" deposition testimony of Mr. Martinez. *Id.* Such testimony—from a deposition that Samsung set for the last day of fact discovery—will not cure Samsung's deficiencies. Not only is Oura entitled to timely discovery on Samsung's claims, but depositions are not conducive to presenting granular data and explanations that are relevant to Samsung's significance claims. For example, Samsung's representative in a previous investigation was unable to answer basic questions about Samsung's expense report. *See* Ex. K (Sheppard Dep.) at 155:10-157:20. Moreover, Mr. Martinez in the 1468 Inv. was unable to answer any questions about non-U.S. operations. *See, e.g.*, Ex. N (Martinez Dep.) 179:15-21 (admitting that "outside of the U.S.," he did not "have visibility"). But his testimony did illustrate the gaps in Samsung's discovery responses in *this* Investigation. *See, e.g., id.* 176:8-12 (admitting that smart ring development happens "outside the U.S.").

In sum, Samsung has improperly withheld its full financial picture, maintaining that just two spreadsheets identify all "financial and investment information relating to its economic DI claims." Ex. O (Apr. 10 Email from N. Schroeder). This is not credible. Even if these two documents contain everything Samsung wants to rely on, their cherry-picked data would present the best of all possible pictures for Samsung's case. **First**, they show only U.S. investments by Samsung's U.S. subsidiary, cutting out the fuller picture of Samsung's foreign investments—through SEC or any other Samsung affiliates or third-party partners. **Second**, they cover expenses for an unmanageably large portfolio of products completely unrelated to the Asserted Patents. SEC and SEA brought this investigation and should have prepared proper evidence for its case. Relying on a stock, generic summary, withholding any explanation until the end of discovery, and refusing relevant discovery requested by Oura, is prejudicial to Oura's efforts to test Samsung's EDI claims.

Oura respectfully requests that the ALJ compel Samsung to provide the discovery described above by May 7.

Sincerely,
/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*

Exhibit R

REDACTED IN ENTIRETY

Certain Wearable Devices

Inv. No.: 337-TA-1478

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **RESPONDENTS' MOTION IN LIMINE NO. 3: TO PRECLUDE SAMSUNG FROM PRESENTING UNTIMELY EVIDENCE AND ARGUMENT OF SEA'S PURPORTED AUTHORITY TO PRACTICE THE ASSERTED PATENTS** was served upon the following as indicated below on August 24, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **PUBLIC VERSION OF RESPONDENTS' MOTION *IN LIMINE* NO. 3: TO PRECLUDE SAMSUNG FROM PRESENTING UNTIMELY EVIDENCE AND ARGUMENT OF SEA'S PURPORTED AUTHORITY TO PRACTICE THE ASSERTED PATENTS** was served upon the following as indicated below on August 31, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*